

Christian Men and How Masculine Norm Conformity is Correlated to Their Religiosity

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CHAPTER 1

INTRODUCTION

Sex roles and the Canadian understanding of gender have seen considerable changes in the last century. Also, the influence of Christianity has waned and is rarely seen as the answer to existential questions in modern Western society. Throughout all of these changes, there has been little contemporary research on what males consider masculinity and how this might be reflected in how they express themselves through their faith (Ward & Cook, 2011); this will important to research because there are many school aged boys that are asking these very questions in schools. Therefore, a consideration of how men understand masculinity and express their faith through different ideas of religiosity which may provide insight. Self-professing Christian men, from a variety of denominations that participated in this study.

In Canada, many churches are struggling to attract men, not only leadership positions, but to attend church at all (Francis, 2005). In high-school, many students were working through existential questions of their sexuality, self, and faith (king, 2004). Data was collected on a few

different demographic information factors that may influence these people in this study. The MNRI-46 is an inventory that considered nine different factors of masculinity; The NIRO considered three different factors of how people can approach and express their faith through religiosity.

It was important to understand what the majority of men think about masculinity and their faith within the context of a post-modern western world that is influenced by pluralism and a host of alternate ways of conceptualizing gender roles and corresponding identities because of the lack of research in this area. Much of the contemporary psychological research considers minorities groups like the LGBT community, women, visible minorities, or marginalized groups in their research, but it is still important to understand one of the largest and most influential group of society – men. We may then be able to better understand how less numerous demographic groups may be influenced by a large demographic of individuals that tend to hold positions of power and influence in Canada, such as Christian males. Mostly, it was my hope that the findings from this study might be used to better serve people in

religious communities, schools and the church by helping men to better understand themselves.

Purpose of the Study

The purpose of this study was to add to the growing body of literature about spirituality and religion. As of yet, there is no standard definition of religion and/or spirituality, which makes research difficult to both conduct and understand (Hill et al., 2000). The definitions are further complicated because contemporary usage often uses the two terms as separate entities, but traditionally, they were seen as interrelated and inseparable (Marler & Hadaway, 2002). This lack of definition is a concern because it will affect the accuracy of research being conducted, how the data is communicated, and how readers of published literature will interpret the findings.

Much of the contemporary research being conducted on religion focuses on minority groups like the LGBT community, adding to the growing body of female perspectives, or on the effects of spirituality on health outcomes (Hodges, 2002). This may be because, traditionally, these were marginalized groups in the church due to sexual sin (1 Cor

7:2) and the persecution by Christian communities which opposed different sexualities. Similarly concerning for the sake of accuracy, much of the research being conducted does not separate different religions, but considers all the data as one inclusive pool. This shows little or no consideration that God may be real and how this may factor into these people's lives. (Perrin, 2007)

The lack of research that I find interesting concerns Christian males (Ward & Cook, 2011). There are concerns amongst different churches that only 30% of most congregations are male, fewer men are involved in ministry and they are seeking leadership positions that the bible suggest they should (Titus 1:6-7; Millar & Stark, 1995). This may be due to masculine role conformity and their expression of religiosity. Men's ministry, which is lacking, is important for the future and health of the church as God's glory is best represented through both men and women (Catechism: 369). Christ Himself, when determining the leadership for sharing the gospel chose twelve male disciples who were hand-picked from thousands of followers (Mark 6:7, Luke 6:12-16). It is

important for its own health that the church continues to evolve in a manner that suits both males and females.

I aim to explore the relationships between masculinity role conformity and male expression of religiosity of Christian men to see if there are any connections between masculine sense of religiosity and their belief in what is to be masculine. As of yet, this appears to be the first time that this research has been done. Some studies on masculinity have shown that there are significant differences between the worldview of Christians and non-Christians about what is masculine (Parent & Moradi, 2009). The idea for this research has come from working in religious schools and questions that students and church goers have asked about their faith and sexuality. It is a small portion of a large puzzle, but one that is important to these persons and institutions.

Rational for Research

Psychology has a reputation for being anti-theotical (McMinn, 2009). It is the study of the psyche, and the processes therein. But, for some people, a spiritual world is a core part of their understanding of the world around them-a subjective filter of how to process motivation, the

world, and all relationships. A theological understanding of the world is in direct opposition to post-modernism and a constructionist understanding of the world; a Christian worldview is based on the belief that God exists and is a part of everything, which includes our understanding of ourselves and the world. While we may construct our own subjective understanding of the world around us, most Christians believe that the only objective understanding of humanity comes from God. Christians believe that a better understanding of the world, ourselves, and ultimate (or objective) truth comes from a better understanding of God through his word, revelations from the Holy Spirit, and examples of the predecessors of the faith.

As a professional group, psychologists that will work with a very diverse client pool, religious and spiritual beliefs have been almost ignored until lately. McMinn (2009) found that 90% of psychologists felt that religion was a very important part of understanding people and cultural diversity, yet 54% said that religion had no place in their life. This may explain why there has been less research on the Christian men, than with other people groups. It is important that a greater

understanding of the male Christian experience is researched through the psychological lens, so that we better understand how religious beliefs affect everyone's lived experience.

Though they may ask different questions, Perrin (2007) believes that it is as important to research 'Christian Spirituality' (his terminology) as it is to research any other of the Human Sciences, including psychology, anthropology, or sociology; they are all trying to understand the human experience. The simple fact is that the theotic worldview of Christians will lead to different questions about the human condition, and this may require different questions for research or analysis. Perrin uses the example that sin and grace are central to a Christian worldview, but this lens is infrequently used in anthropology, Chemistry, or other scientific lenses.

A conflict between understanding religion and science often arises because western science has developed the mythology that it is value free and unbiased, and that religious belief may infect this basic premise. Perrin (2007) argues that it is problematic to study the human experience when ignoring something that can be core to the one being

studied. Ripley (2012) argues in corollary, and expresses that not only can Christianity and Psychology unite, but, they must if we are to better understand the individual life experiences of people with religious beliefs. Even when researchers are studying spirituality, the researchers understanding of spirituality could be very different from the Christian understanding (Perrin, 2007), therefore leading to inaccurate conclusions about the data. A better understanding of the human experience of religious people requires a different lens to understand them by better phenomenology, tools, and more specific research.

There is an interesting phenomena developing as there is very little research done on specific religions. Most of the current research will group people of varying religions as one demographic. Many people that have strong religious convictions, believe that their particular beliefs are true (anti-post-modern). This can make research degrading or insulting to them. Just as people will replicate studies in different regions or countries to see how universal their findings are, we should consider different religions as different regions since people raised in the different faiths may show differing trends as well. For this research then, the

focus will be Christianity, specifically, to determine if there are correlation between how men perceive their masculine sex roles and how they express their religiosity.

The Questions Were:

1. What is the connection between male masculine norms and their level of religiosity?

The church has been attracting more religious women than men (Francis, 2005), I am curious what religious norms fit what men consider to be masculine and what are unacceptably non-masculine norms.

2. Is there a difference between male masculine norms and religiosity are expressed amongst different congregational settings?

Much of the research into Christianity does not consider different denominations (Perrin, 2007), I wonder how the church people attend represents either that they grew up in a denomination or chose a church to attend represents their view of masculinity.

3. Is there a difference between masculine norms and religiosity as per church attendance, marital status, and other demographic variables?

There can be trends found through demographics, and I want to consider this through Fowler's (1981) work on a person's development of spirituality and Christianity

Limitations

This study's limitations may have affected the results obtained from the measures used and therefore impacted the reliability of these findings. More specifically, a small homogeneous sample was utilized composed of predominantly Baptist and Mennonite participants, most were 50 years of age or older, and almost all had children. These two church congregations were located in cities from similar geographic regions. Typically, both Mennonite and Baptist colleges tend to have similar theological teachings in the areas being studied with both of these churches having similar congregational demographics that opted to participate in this study.

Given that the sample was composed primarily of men from Baptiste and Mennonite faiths, it may be worth investigating how these denominations and corresponding cultures contribute to intrinsic religious orientation, which they scored the highest for, and why the effect was not observed for extrinsic or quest orientation. Results from the ANOVA are supportive of denomination contributing to scores on the intrinsic orientation index, suggesting that how one approaches their religious faith is affected by their denomination – though this is a very small sample and as a result these findings may not be applicable to Baptiste and Mennonite males in general.

The quantitative measures used may not have been the best tools for the questions asked. There were many side comments written on the questionnaires. Until the concept, or more importantly, the definition, of religion and spirituality are standardized, I learned that various forms of qualitative inquiry may prove to be better approaches to answering these questions.

Definitions

Please note that some of these definitions will not be agreeable to all persons. Throughout the research there are many ways in which faith, worship, spirituality, and religiosity are used by different authors. This is the same for discussions on masculinity, sex roles, sex, and gender. This is further complicated through the integration of all these nebulous concepts through Christianity and academia. The following definitions are for when I am writing personal thoughts and interpretations, but I have tried to stay true to the words used in the relevant studies in the literature review which may, at times appear incongruous but was done to maintain the spirit of how the authors used the concepts in their research.

Sex and Gender: “Sex is used to refer to biological autonomy, while gender refers to the psychosocial meaning of the biological distinction” (Muehlenhard and Peterson, 2011).

Religion: Religion is a collective set of beliefs and practices that are “institutional, formal, outward, doctrinal, authoritarian, and inhibiting expression” [sic] (Hill, 2003).

Spirituality: Spirituality can be seen as the search for the sacred

(Pargament, 1997). It should be noted that many Christians shy away from the term spiritual, as they do not want to be connected to any form of pagan spirituality. Shneiders (2002) suggested that the term “Biblical Spirituality,” may be more accurate for Christian believers, as their belief in the bible is intrinsically connected to their spirituality.

Communal worship: Communal worship occurs when believers come together to worship as a community, such as church services or other gatherings.

Trinity: Christians believe (Grudem, 2004) that God is one being, but has been expressed in three separate beings: God the Father, Jesus Christ, and the Holy Spirit. God the Father resides in heaven, maintains all creation and intercedes when He sees fit. Jesus was God in the flesh, born to the Virgin Mary, and was sacrificed for the sins of all; this sacrifice allows anyone who accepts this sacrifice for their sins to go to heaven. The Holy Spirit is the gift

of God that resides in Christian believers that helps them to grow and become more like Christ.

Church (Christian): The church has varied definitions. The first is that it is a building that Christians go to worship, but can also have more uses like renting out the space for meetings, gatherings, sports, or weddings. The church can also be used to define the collective body of believers, either a specific denomination or all people who follow Christ.

Evangelical: According to Stackhouse (2007), the Evangelical movement has six components: It is Orthodox (supporters subscribe to the main tenets of the church to which they belong), Crucicentric (focuses on preaching of Christ on the cross), Biblicist (God's written word is the supreme guide for life), Conversionist (followers believe that everyone must trust Christ for salvation and cooperate with God for spiritual growth), Missional (bringing God's word to the world is a priority), Transdenominational (denominations matter less than advancing the Kingdom of God).

Denominations: Denominations are groups of people that all profess the Christian faith. Some of the main ones are: Catholic, Protestant, Anglican, Lutheran, Baptist, and Mennonite, but there are many others. There are some differences in how to interpret the bible, history, and future purpose of the church. These differences in beliefs have made considerable divisions in the church.

Marriage: Marriage is man and a woman who have made a profession of intent to the community and God of life-long commitment and servitude to God, each other, the church, and their family (Piper and Grudem, 2006; Grudem 2002). In Canada, any two people can be legally married. Depending on the province, if two people are cohabitating, and are intimate, they may be classified as common law which is legally similar to marriage.

Singleness: Singleness is a time when a person is not married.

Abstinence: Abstinence is a time when a person is not sexually involved with another person until they are married. To be abstinent is not the same as asexual. It is a choice about how to use their sexuality. This

may be for a person's entire life. For example, Catholic priests vow to practice this for their entire lives.

Organization of Chapters

This thesis is divided into 5 chapters. Chapter I is an introduction to the study and defines the terms that will be used throughout. Chapter II includes a literature review that focuses on masculinity, religion, and spirituality. Chapters III and IV examine the methodologies used and the results of the study. Finally, chapter V is the discussion of the research.

CHAPTER TWO

REVIEW OF THE LITERATURE

Biblical Definitions of Masculinity

For many reasons, different churches have different definitions of masculinity. The church is made of people, most are well intended, many believe in the message of the bible but some do not, some grew up going to a church while others came to faith later in life, everyone is at a different stage in their own journey, and everyone is influenced by the world around them. I propose that the feminist and the post-modern movement has had a strong influence on all churches (Cour & Hvidt, 2010). This influence has called to question many traditional practices of the church which includes sex roles, ordination, leadership, sexuality, marriage, and a myriad of other topics. It can be difficult to define masculinity, but many Christians believe in the authority of the Bible. As such, some definitions can be created using the Bible. It is important to note that the Bible uses the dichotic definition of sexes for humans. The Bible records how God created humans, male and female, and this is how

many that profess to be Christians have traditionally understood sexuality. (Gen 1:27, Gen 5:2, Mark 10:6).

This study is dealing with highly controversial, and nebulous concepts like faith, religion, and sexuality. To cover as much of these difficult concepts, I'll consider: teaching of sexes by denomination, the difference between religion and spirituality, what is Christianity, conceptual differences between the sexes for Christians, how individual personality differences affect beliefs, how different places in spiritual development affects beliefs, are there congregational differences, and lastly, how different places in the life cycle can affect where one is in their belief structure. These areas are included because they represent some of the largest areas that need to be defined and understood to begin this conversation.

What Many Christian Denominations Teach Regarding the Sexes

The Christian church is a large and complicated network of different groups of people, different cultures, differing theology, and

history. It is sometimes nebulous, rysomic, complicated, in conflict, horrible, loving, and beautiful. Many churches do not publish their theological stances, and have little theological underpinnings to what is being taught and a large number of preachers do not have a good understanding of the history of the church or Hebrew/Greek. This has made finding one definitive definition of what masculinity is through a religious paradigm very difficult. So, some of the most widely accepted work of a few of the largest churches' professions of faith, that has been published on this matter, will be used. With that said, many Christians have not read any theology, let alone which pertains to their own church, creating a much less homogeneous belief system than one might believe.

The Catholic Church is one of the largest denominations of Christianity, and its theology has been published in the Catechism, which is supposed to be the core beliefs of all its branches of the Church (known as Rights in the Catholic Church). Sections 369-371 of the Catechism decree that man and woman are different, but equal, and it takes both sexes to fully show God's glory. When God made woman from man, it brought man great love and joy thus allowing man to see

woman as another “I” and allowing man and woman to share the same humanity. God was not made in man or woman’s image, but, man and woman where made in His image; God is sexless. The Catholic Church does not have a specific statement about what masculinity is, but professes that men and women are different and that both are needed to understand to show God’s wisdom and glory.

Since the Protestant Reformation, started by Luther in 1517, many churches have come into being while others have fractured or changed. The word protestant is often used to describe all non-Catholic churches (though this term is less often used by the Anglican Church). There are many different churches that would fall under this category, Baptist, Lutheran, Mennonite, United, and so on. There are also many independent churches that are not connected to other churches on a local or international level. It is not possible to represent all of their views within the scope of this literature review. It is important to note, however, that the work of some theologians is widely used in many mainstream theology and divinity programs that will represent many of the non-Catholic churches in Canada. Piper and

Grudem (2006) are doctorate theologians and pastors who have written some of the most used textbooks in evangelical pastor and leadership training programs. Together, they have written a systematic theology book on the topic. In systematic theology, the belief is that the Word of God is the highest authority of truth, so to answer any question, they find everything that the Bible says about the topic and then come to a conclusion to their question. This approach relies very little on church tradition, which differs it from the Catholic Church, or current social trends, which differs it from the United Church. There can be different views of masculinity, however, many of the evangelical men that will be a part of this study will be trained under this paradigm through either pastoral training or through their pastors. After an extensive review of the Bible, Piper and Grudem have defined Biblical ‘manhood’ as follows: “At the heart of mature masculinity is a sense of benevolent responsibility to lead, provide for and protect women in ways appropriate to a man’s differing relationships” (p35). They continue to say that this definition is not exhaustive, but is the foundation for mature masculinity within the Christian community. Grudem (2000) wrote a widely used

theology text that covered many areas of theology. He did not write specifically to what is masculine, but he wrote on ‘man as male and female,’ and the separation of the sexes. Grudem’s (2000) ideas were that only as male and female can God be represented in His full glory through humanity, for three reasons: 1. Both sexes are equal in their personhood and necessary for each other. 2. People were not created to be alone and most were not created to be single. 3. There are differences in the roles for which we were created to participate, and there is a sex division of authority. This can be in authority, responsibilities, and other roles. Kostenberger (2010) agrees with all three of these points but puts considerable emphasis on: “getting married, providing for your family, raising children, leading, making wise decisions and being righteous, contributing to society, being understanding and respectful, and being courageous” (p.154). Men in the Christian church will have been raised to believe that they should fulfill multiple roles. In other words, men act to serve their family and community, with most getting married and raising families but all should serve their community through the gifts that they have been given. In

Christian theology, there is often an emphasis on men being protectors and providers for their families and others.

There have been some criticisms about even trying to define current masculinity since men have done a poor job of looking into and interpreting masculinity for themselves (Brandt, 2009). Much of the definition of what it is to be a man has come from the cultures and groups that hold power, and the social trends of the time (Brandt, 2009). Brandt makes the argument that the common view on male masculinity is currently locked into four archetypes: king (the leader), warrior (violent and aggressive), lover (passionate and self-centered), and the magician (the wise man). Most men do not fit into any of these archetypes, actually, almost none do explicitly. He suggests that more conversation among men need to be made to garner a deeper understanding of the nature of masculinity. Connell (2005) agrees with this, but suggests that hegemonic masculinities prevent the development of a better understanding of masculinity, and considerable discussion still needs to be made. A stronger understanding of masculinity can help us to better socialize young men into being healthier persons, both socially and

spiritually. This can lead to a better understanding of faith, relationships, and society.

Religion and Spirituality

Religion and spirituality are concepts that can have a deep and personal significance for many people. People have concerned themselves with existential questions throughout human history. The pyramids, the Tora, or the Mayan temples are a demonstration of the human search for meaning through the divine, but these definitions are changing in the United States (Hill, 2003). In the Western World, the Christian Church provided those existential answers. Historically, the two terms, religion and spirituality, were almost interchangeable. The definition of spirituality has changed significantly over time. Once, it was intrinsically entwined with religion, even rhysonic in nature since it was believed that spirituality could not happen without religion. Now, many people feel that they can be both secular and spiritual since the journey to personal fulfillment is truly personal and does not have to include a collective, or religious, attribute (Koenig, 2008).

Hill (2003) suggests that religion and spirituality are related and inseparable concepts, making a concise definition of each difficult to attain. Pargament (1997) suggested that spirituality can be seen as the search for the sacred. This search may be in a traditional or a non-traditional religious institution. The sacred is something that is set apart from the ordinary (Hill, 2003). The sacred may be God, transcendence, or ultimate reality. The sacred may be the intersection in the understanding of how religion and spirituality is connected. Religion is becoming more connected to a system of ideas or an institution that is formal, doctrinal, authoritarian, and inhibiting of personal expression and freedom. Spirituality, on the other hand, is personal, subjective, emotional, unsystematic, and supportive of personal expression (Koenig et al., 2001). In the United States, the ideas of religion and spirituality are often seen as dyadic and mutually exclusive.

Koenig (2008) suggested that it may be best to consider religion and spirituality as different, yet nebulous, concepts that are still developing. Much like a simple Venn Diagram, the two can be seen as separate concepts that have connecting points. The polarization of the

two concepts is problematic. First, all forms of spiritual expression happens, and is influenced, in a social context (Hill et al., 2000). This is ignored if the definitions are separated into institutional and individual, which denies the connection of the individual to any institution. Similarly, most religions are interested in influencing the individual through personal experience with the goal of reaching The Sacred. Second, the definitions give an implicit sense that spirituality is good and religion is bad. This over simplification ignores the potential benefits and downsides of both of them (Hill, 2003). Third, most people experience spirituality through religious organization, making measuring two completely separate constructs difficult (Marler and Hadaway, 2002). Similarly, people who are independently spiritual, but not religious, may be over-looked in research due to the difficulty in recruiting them through institutions. Finally, since many of the measures of religion and spirituality look at both individual and institutional domains, this may lead to needless replication of concepts and measures; we may be repeating research already done and calling the results something new (Hill, 2003).

It is difficult to compare studies about spirituality when the definition appears to still be fluid in meaning, which can be confusing for researchers. Koenig (2008) attempted to discuss some of the problems with different spiritual measurements; many spirituality scales tap into positive psychology, making research into the connection between mental health and spirituality flawed, like the popular spiritual well-being scale (Paloutzian and Ellison, 1982). Tsuang (2008) quickly published a rebuttal explaining that Koenig (2008) misrepresented Tsuang's research in a published article, because Tsuang's definition of spirituality in health care was different from the definition that Koenig was using for research. It is possible that different definitions of spirituality will need to be considered for different areas of study, but this makes the issue more confusing when researching spirituality. This can lead to miscommunication, flawed conclusions due to inaccurate information, or even that some research will not be considered by other researchers studying the same concept. Koenig (2008) suggests that for health care, as broad of an understanding as possible should be used so that no person feels discriminated against. It is also possible that a person's spirituality

can be considered in terms of degrees. This allows everyone to be considered spiritual for research purposes (Koenig, 2008). The debate about how to best understand the spiritual, what this means to an individual person is, and the effect it has on his or her life, is continuing.

Reflexive spirituality (Besecke, 2001) is to engage in an intentional and critical assimilation of different religious ideas and be able to assimilate them into one's spiritual outlook. It is being open to discussions on topics to better understand the positions of others, and through that, your own position, which may cause your understanding to grow. This helps a person to create meaning in his or her lives by connecting to others through a shared language. Besecke argues that the major crisis in modern society is a lack of meaning, but this meaning can be regained through shared discourse and a common language. Victor Frankl (2006) framed this lack of meaning that many people feel as an "existential Vacuum." The cure, he argued, was a more personal journey with a task to accomplish instead of simply developing a collective language.

“One should not search for an abstract meaning in life.

Everyone has his own specific vocation or mission in life

to carry out. A concrete assignment which demands

fulfillment. Therein he cannot be replaced, nor can his life

be repeated. Thus, everyone’s task is as unique as his

specific opportunity to implement it.” (pp. 108-9)

Similarly, an old Christian phrase, “a protestant work ethic,” comes from

the older expression: “I live to work, not work to live.” This suggests that

some people find their meaning in life more through living for God by

the work that they do, and less in being able to communicate their ideas

to other people. There is a diverse discussion about what meaning a

person finds through his or her spirituality.

There are still areas of growth for the study and research of

religion and spirituality. Koenig (2008) is suggesting that there are three

concepts that need to be considered when conducting research in this

area: religion, spirituality, and secularity. For this to be done effectively,

measures need to be developed that consider the independent factors of

all three constructs. Hill (2003) expresses concerns that current

instrumentation is not sensitive enough to understand minority religious groups since most measures are made for protestant Christian testing. Hill is also concerned that almost all testing in this area is through subjective self-reporting pen and paper tests and wants to see more objective means of measurement used, where more of the data is taken by the scientists. Most research focuses on how spirituality and religion often have a positive effect on health, but there are many times that people come to faith because of poor health or life circumstances; other people, lose their faith during times of loss (Hill, 2003). There needs to be more research on how health affects religious and spiritual wellbeing (Hill). There may need to be a change in how we test, and what we test, in future research.

Christianity

To be a Christian, literally means to be a Christ follower, or more accurately, a follower of the Anointed One. The simplest, most widely accepted, and oldest set of Christian beliefs are expressed through the Apostles Creed (Anderson, 2010). There are other creeds, many different theological understandings, different denominations, other religions that

use the Bible, but, this creed is the backbone to the Christian belief and before the split of the Catholic and Orthodox Church. As with most organizations and religions, there have been many disagreements about theology and doctrine. The first major split in the Christian faith happened in 1054, which created the Eastern Orthodox Church and the Catholic Church. Later, a monk named Luther nailed a list of ideas that he felt was wrong in the Catholic Church to the door of a church in 1517; he was excommunicated from the Catholic Church and is now, often, seen as the person that started the protestant reformation. From that point on, there has been a considerable amount of new denominations that have formed. This includes denominations like Baptists, Mennonites, Lutheran, and the Anglican Church. The theologies and goals of different denominations can widely vary.

Sex Differences

Research typically shows that there are sex differences in how men and women experience and connect to religion. Overall, men are less religious than women (Sullins, 2006; Stark, 2002). For church

attendance, there is a pretty consistent 70% female to 30% male split (Lummis, 2004). Lummis suggests that this may have been consistent over the last three centuries. Carroll (2004) would concur that this has been a trend in most places, though not all, but suggests evidence as far back as the 1600's. Lummis (2004) offers two common explanations for this difference. This first is that services have become more catering to women and will continue to do so as more women are moving into leadership positions. The second is that women are more inclined to the communal worship style and church sponsored social events. These two positions comprise the majority of research that focuses on gender related differences associated with religion and spirituality in contemporary society.

Thompson (1991) suggests that gender role socialization may explain the differences. It is possible that men are taught to avoid feminine behaviors, and the relational and community orientation of religious practices. Men are often taught to be independent, strong, dominant, competitive, and risk-taker, whereas many religions promote the authority of God, submission to God, cooperative religious activities,

emotional expression, group involvement, and admission of failings (Harris, 1997). These religious characteristics are similar to traditional feminine activities and oppose masculine socialization. Research shows that men who have more feminine characteristics tend to also be more religious. Thompson and Remmes (2002) have found that a feminine orientation was positively correlated with higher religiousness, fewer doubts about their beliefs, more frequent prayer, and more involvement in their church. Sherkat's (2002) findings concur since heterosexual women and homosexual men are significantly more likely to go to church than homosexual women and heterosexual men. In a study that compared the genetic and social influences between a child's and a mother's religious attitudes, Eaves (2008) found that only 10% of variance was accounted for by genetics, however, the effect of socialization and familial rearing could account for 50% of the variance. How a person, male or female, is socialized can affect his or her religious orientation.

Another popular theory is a hybrid between the physiological and sociological. Stark (2002) makes this argument based on the growing

body of research that suggests that high-risk behaviour and criminal activity are, at least in part, based on physiology. He suggests that similar to criminal behaviour, male orientation to religion is not purely socialization, but is also due to biology. This is not the same as cause and effect, but some men may be more inclined to a religious orientation and it is the environment that would help them to express or repress it. When researching men and women who are committed to ultra conservative Judaism, Sands (2007) found that the men were insecure about their weak language skills and learning difficulties, whereas the women were excited to learn and be a part of the community. Being in a vulnerable and ignorant position was anxiety inducing for many men and they were less likely to participate.

Millar and Stark (2002) have found some strong arguments against socialization: (a) There are consistent discrepancies between the prayer lives of men and women, even after 25 years, suggesting that even in a changing climate of how the sexes are gendered, there is still a sex difference. (b) They also found that gender difference in religiousness was higher in more liberal communities, suggesting that in places that

had less firm ideas of sex roles and their socializing effects, women were still more religious. (c) And lastly, they found that in areas that had strong sex role socialization, women were less religious than their liberal peers.

Another possible suggestion comes from Kanis (2002) who suggests that men and women may experience the world differently partly due to socialization, but also because male and female bodies are different. Theobiology suggests that the different embodiment of being male or female means that men and women may have a different spiritual or religious experience from each other. This can be due to biological difference that will include neurological makeup of the brain, the differences in hormones, or how the world can be interpreted through physiological differences. This may affect all parts of their religious experience, from communal worship (worshiping as a group like a church or a small group study) to their scriptural understanding of the Bible (which may have different interpretation of scripture and connection to the characters within). Women appear to be consistently more religious than men are through the numbers of people that attend

the church or the numbers of women that profess a faith (Miller and Stark, 2002; Miller and Hoffman, 1995). Harris (1997) has also suggested that men have consistent faith priorities to when they feel more spiritually secure, and only one of the ten involve communal worship in this sense of security.

In contrast to many of the other research that has shown that there are sex differences between men and women, Simpson, Newman, and Fuqua, (2008) considered both the sex of the participant, gender, and religious attitudes and found no difference. After testing almost 200 adult Christians from the southern United States, they found no statistical significance between sex or gender orientation; this suggests that sex differences in the psychology of religion are not as clear as assumed. Miller and Stark (2002) have also found similar results when considering gender attitudes, religious attitudes, and beliefs. They suggest that a new model that considers the risk taking behaviour of men should be considered, not the religiousness of women: Women are more religious than men to the extent that being irreligious constitutes risk-taking behaviour (Miller & Stark, 2002; Miller & Hoffman, 1995).

Francis (2011) suggests that gender orientation is the strongest predictor of attitudes toward Christianity and can account for all the variance seen; it explains gender orientation of attendees, feminine orientation of pastors, and religious attitudes (Francis, 2011). More research needs to be done considering sex, gender, and religious attitudes.

Personality

One of the topics that has been heavily researched is the correlation between personality and religion. This research will not consider personality due to time constraints; however, it is important to understand that there appear to be trends that will most likely affect the data attained. Without a control sample, it will be very difficult to ascertain how the data has been impacted by the individual personality traits.

It appears that one of the most common ways to understand personality comes from the Big Five theory. The big five aspects of personality are: Extraversion, Agreeableness, Conscientiousness, Neuroticism, and Openness to Experience. Saroglou (2002) has found

that intrinsic religiosity was connected to Extraversion, Agreeableness, and Conscientiousness, while extrinsic religiosity was positively correlated with Neuroticism. Kosek (1999) found that both intrinsic and quest aspects of religiosity were connected to the qualities of Agreeableness and Conscientiousness, while extrinsic religious orientation was linked to Extraversion. Little has been researched in the contemporary concept of quest religiosity, but Saroglou (2003, 2002) has found that spirituality and emotional stability was positively correlated with Extraversion, Agreeableness, Conscientiousness, and Openness; they were negatively correlated with Neuroticism. He also found that there is a negative correlation between openness and fundamentalism, and that a high level of extrinsic religiosity is connected to high Neuroticism which was supported by Maltby, (1995). Yonker's (2012) meta-analysis supports that there is a high correlation with Conscientiousness and Agreeableness for those that are religious. Overall, there appears to be a trend that the Intrinsic orientation is correlated with Agreeableness and Conscientiousness; the Extrinsic orientation is correlated with Neuroticism; spiritual meaning is correlated

with Extraversion, Agreeableness, and Conscientiousness, but has a negative association with Neuroticism; and the Quest orientation is correlated with the Neuroticism and Openness but negatively correlated with Conscientiousness (Henningsgaard & Arnau, 2008). Personality can be a factor that affects a person's religiosity and their desire to connect to a greater force, assuming it exists.

Spiritual Development Throughout the Life Cycle

A person's identity changes throughout his or her life cycle. It appears that their spiritual development can also change throughout one's life cycle. Loosely based on Erikson's model of psychosocial stages, Fowler (1981) developed a model that focuses specifically on stages of faith. It is a model that grew from interviews with people of ages from four to 88, men, women, and children, different Christian denominations, agnostics and atheists. This source is older, but the theory is still often used in contemporary research, and is often cited in published material. As I will consider the different ages of participants in the discussion to better understand the data, it is important to have an understanding of how people may approach their faith. There are some suggested age

frames, but age is not a direct indicator of spiritual growth. Many people will not pass the third stage, if they get there.

Fowler's Stages of Faith (Fowler, 1981)

1. Intuitive-projective faith (age three to seven):

The child is often aware of social taboos. Sex and death are two concepts that a child learns in this time. Kids have varied, exampled stories of faith and fluid ideas that are vastly influenced by adults. There is often no logical thought pattern. Imagination is first produced during this age, and eventually, the child will develop concrete operational thinking.

2. Mythic-Literal Faith (seven to adolescence):

Beliefs are internalized as literal, as are moral rules and attitudes. Much of the child's understanding comes through narrative and story. Usually, the child can gain literal meanings from the stories but has yet to gain the ability to be reflective. Often the move to stage three comes from having to work through contradictions in the stories that can lead to new meaning.

3. Synthetic-Conventional Faith (adolescence):

The adolescents' world now extends beyond just their family to include others such as friends, media, or co-workers. Faith must synthesize identity, values, and information. This is a stage where many people will remain for their entire life. One's faith can still be strong, a part of one's identity, and meaningful. There tends to be little self-reflection or challenging of one's belief. Authority figures are automatically trusted, and there is little desire to challenge the system. Moving to stage four usually comes through serious clashes of ideals, sanctioned leaders doing something contradictory to the belief system, or changes in policy that were once seen as unbreachable.

4. Individuative-Reflective Faith (transition from adolescences to adulthood):

This is the time that a person makes his or her faith his or her own. One takes responsibility for one's lifestyle, choices, and beliefs. This often happens in early adulthood, but it may not happen until later, or for some, never. This tends to be a demythologizing stage that changes symbols into reality, has considerable self-reflection, and separates the

self from the collective. In some ways, the faith becomes simpler and clearer, and is full of clear distinctions and absolutes.

5. Conjunctive Faith (unusual before midlife):

This stage involves a greater honesty with self. Much of what was repressed during stage four is now integrated into one's self. The need for absolutes tends to give way to comfort with paradoxes and contradictions. These people tend to recognize the prejudices, unconscious myths, ideal images, heuristics and the like that tend to build in us through social class, religious traditions, ethnic groups, or so forth. In stage five, people are ready for closeness to things that they used to find threatening, and they can appreciate symbols, myths, other religions, and rituals, which many people in stage four tend to find threatening.

6. Universalizing Faith.

Achieving this stage is very rare. People in this stage tend to see all people as their community, and as such, tend to shake up systems that oppress other people. Often, they become martyrs and many are more appreciated after they have died than when they were living. They are

the incarnators and actualizers of an inclusive human community, and can usually get along with people of all faiths and walks of life.

Difficulty with Testing Constructs

There are concerns with the testing constructs that are currently being used to understand faith, belief, religion, and spirituality in people's lives. Perrin (2007) argues that religions often deal with what people ought to be rather than what people actually are which conflict with what psychology can test for. Thomas Leahey (2005) makes the undisputable point that: “‘physics envy’ still leads mainstream psychologists to entertain the ‘fantasy’ that a bias-free Newton will arise among psychologists and propound a rigorous theory of behavior, delivering psychology unto the promised land of science” (p.166). However, this is unlikely to happen. Yonker et al. (2012) concur because spirituality and religion are active personal devotions and quests that are passionately sought after in a self-acknowledged framework of a sacred theological community.

Yonker et al. (2012) also criticize the tools being used because they found that despite the increased preference for spirituality in research,

religious items better predicted both salience and reduced risk taking behavior – this questions the notion that spirituality is the truest indicator of searching for meaning in life and the relationship with the sacred. To measure spirituality, there may need to be different testing constructs that need to be developed, which includes qualitative and quantitative methods, to better understand this aspect of people’s experience.

There is also a conflict in worldview between Christian researchers and secular researchers, even if they are trying to research the same topic. Perrin (2007) argues that researchers of Christian spirituality need to have a different set of assumptions, for example, the inclusion of the Holy Spirit, which is the force behind growth, maturation, and conversion. Perrin (2007) goes on to argue that there are going to be branches of psychology that may not be compatible with theistic beliefs. It can be difficult for non-believers to understand the world view of theistic beliefs as Perrin details:

“In determining the congruent or incongruent expressions of human life in the case of a particular individual with respect to the

established norm,
the therapeutic psychologist may recommend certain
behavior modifications, attitudinal shifts, exercises, or other
forms of remedy. But he or she, dealing with the individual
in this strictly empirical forum, is unable to deal with or
entertain the questions of the individual focused on
authentic or absolute meaning, transcendence, authenticity,
or the ultimate good in human life. Typically, these are
questions that deal with the spiritual dimension of human
life: that is, spirituality and/or religion.” (p. 177)

In the United States, Delaney (2007) found that many adults believe in
God (95%), claim an affiliation to a religion (94%), and say that their
religious beliefs are very or fairly important in their lives (85%). When
doing a survey of random members of the APA, McMinn (2009) found
that 54% of psychologists say that religion has no place in their lives; it
may be assumed that some psychologists may be unable to appropriately
help people that have different worldviews than their own (McMinn,

2009); we all have beliefs and value systems and these will affect our lives and work:

“Understandably, religious views and spiritual attitudes reflect an inner domain that is not directly observable, and therefore not measurable. The psychologist or psychotherapist who is not trained to deal with this dimension of the self—or, more importantly, who is not dealing with this dimension *of his or her own life*—may feel ill equipped to allow material from this level of the client to enter into the therapeutic process. But the point is, whether the psychologist speaks to this dimension directly or not, the framework out of which he or she works will, inevitably, involve an implied belief and value system. Because of this, therapeutic processes may operate as covert religions and spiritualities. It is these frameworks that need to become explicit in our use of psychological theories. As with the human sciences in general, psychologies operate within epistemological and ontological frameworks that ultimately

come to bear on the life of clients. This is no small issue,...”

(Perrin, 2007, pp.178-9)

Shults (2012) goes even further when suggesting that both psychology and theology need to be considered in forming a new branch of research, like clinical or evolutionary psychology, for this field to better understand what they are researching. It may lead to the development of better tools and research on the topic of religion and spirituality.

There are many difficult concepts to explore in the literature of this study. What is masculinity and what is the difference between religion and spirituality come first. But, as this study looks at Christian men, trying to find biblical definitions are important. What it means to be a Christian was considered being most of the people studied consider themselves Christian. Sex differences were considered being that this study asked males, and assumes that there are differences between a dichotic view of sexes. Personality and age may have affected the results of the study, so they were also considered. Lastly, there was a consideration for the ability to test for the nebulous conceptus of sexuality and faith. There was an effort to understand difficult concepts is this

paper. In trying to understand masculinity and religiosity, the author used two different paper and pen surveys and a demographic sheet.

CHAPTER THREE

METHODOLOGY

Participants

The sample was from two churches in a Midwestern Canadian city of different denominations, which largely Baptiste and Mennonites were sample. Different denominations tend to have different parts of theology emphasized, and the leaders in these two churches were trained at different schools of theology, and in different countries. The original plan was to target larger churches with the expectation that they would produce more volunteers. This not being possible, participating churches included one Baptist Church and one Mennonite Church, but was not able to work with a Catholic Church as had been hoped.

Although a much larger group of volunteers was preferred (60 to 100), 32 were eventually located. Notices were placed in the churches' weekly updates and on posters. Additionally, the pastor or priest of the church was asked to make an announcement during the weekly service with their congregation.

I had provided coffee and doughnuts for volunteers when they are filling out the inventories. I had all three inventories in an envelope, plus a consent form. I had welcomed and thanked the participants for their time. Before they started, I explained informed consent and that they were free to leave at any time. The inventories were completed in about 15 minutes to complete. I waited outside the door, and as the participants left, I collected the sealed inventories for later analysis.

Materials

I used two standardized and normed instruments, and a demographics sheet. Permission was given from the creators of the instruments with the agreement that I send them a copy of the data I received. One instrument had looked at the individual attitudes that the men had about masculinity, the other was used to better understand the priorities that the individual men have about religious practices.

CMNI-46

The Conformity to Masculinity Norms Inventory-46 (CMNI-46; Parent & Moradi, 2009) is a shortened inventory that has been adapted from the Conformity to Masculine Norms Inventory (CMNI; Mahalik,

Locke, Diemer, Ludlow, Scott, Gottfried, & Freitas, 2003). It uses a 4-point Likert scale to understand male sex role conformity. The items reflect 9 categories that come from a 46 item questionnaire. The 9 inventories are as follows:

1. Winning - looks at how important it is to win against other males.
2. Emotional Control – looks at attitudes about when it is appropriate to show emotions or restrain them.
3. Risk-Taking – looks at risky choices like dangerous sports or business transactions.
4. Violence – looks at how masculine it is to attain power through the use of force.
5. Power Over Women – looks at both intimate and professional relationships and the power dynamic between men and women.
6. Playboy – looks at numbers of sexual partners and attitude toward sexuality.
7. Self-Reliance – looks at how willing the person is to accept help from others.

8. Primacy of Work – looks at the importance of career over other factors in the participants life.

9. Heterosexual Self Preservation (formerly called Disdain for Homosexuals) – looks at how important it is that other people understand that the participant is heterosexual, and other people cannot confuse him with having any other sexual orientation.

NIRO

The New Indices of Religious Orientation (NIRO) was developed by Dr. Francis (Francis, 2007) to study individual differences in religiosity. It uses a 4-point Likert scale to tap into three different areas of religiosity. *Extrinsic Religiosity* considers how compartmentalized people's religion is, the connection they feel to the community in communal worship, and the social gains from being religious. *Intrinsic Religiosity* considers how integrated people's faith is in their entire life, to what extent church helps them feel closer to God, and to what extent their faith has value in itself and they do not seek social gain through it.

The last factor is *Quest Religiosity*. This factor deals with existential questions, embracing of self-criticism, openness to change, and readiness to embrace new perspectives. A person can be high in all three factors, low in all three factors, or high in one or two factors. There appears to be a strong connection between intrinsic and extrinsic religiosities, but the quest factor has shown to be less predictable (Francis, 2001). Francis also found that there is a significant difference in responses between people who considered themselves to be a Christian and those who did not self-identify with Christianity. The NIRO will be used to determine the participant's Religious orientation.

Design and Procedure

The design of this study included two likert scales, one to measure perceptions of masculinity and the other to measure the participants perceptions of religiousness. There was also a demographic sheet that looked at basic information like age and denomination. The design was simple but did use measures created by psychologists, and tested for validity.

To gain participants I spoke to pastors of two different churches in the area and put up posters. For those that volunteers I offered coffee and donuts. As they arrived I explained confidentiality and there rights as a participants. Each participant received a package with the two different scales, a demographic sheet, and a sheet with confidentiality explained. After explaining their rights and answering questions, I left the room. When they finished their scales, they put the papers back in an unmarked folder, and deposited it in the box provided. Between the two churches, 39 people completed the survey, all male.

The research project passed the ethics board at the University of Saskatchewan. I took care to make sure that everyone understood confidentiality and to maintain it. Any survey that had a name on it, or other identifying mark were shredded. After getting the surveys back I mixed up the order to prevent any chance of my being able to identify the participant.

Research Questions

1. What is the connection between male masculine norms and their level of religiosity?

2. Is there a difference between how male masculine norms and religiosity are perceived amongst different congregational settings?
3. Is there a difference between perception of masculine norms and religiosity in relation to church attendance, marital status, and other demographic variables?

Data Analysis

Hypothesis

Cohen (as cited in Puillant, 2013) will be used to determine correlational strength. A 0 means that there is no connection between variables and a perfect correlation between variables is 1. A small effect size, or correlation, will be between $r = .10$ to $.29$, a medium correlation will be $.30$ to $.49$, and a strong connection will be 0.50 to 1.0 . Nominal data gathered through the surveys can be used as interval data when performing parametric forms of analysis (Norman, 2010; Kuzon, Urbancnchek, McCabe 1996). Both tests have been tested and proven to be reliable and valid instruments for testing.

There were some trends considered through the demographic information that were examined for and considered:

- I thought intrinsic religiosity might have a strong connection to how often one prays on his own and not in a public setting – this was not seen.
- I thought that there will be a strong connection between men's self-assessment of their level of religiosity to both intrinsic and extrinsic factors, and may be a medium connection to emotional control, heterosexual self-preservation, and power over women. Only intrinsic, emotional control, and heterosexual self-preservation factors were seen.
- I thought that lower levels of education will result in higher levels of religious extrinsic factors found through the NIRO, as well as a higher need of masculine self-preservation, self-reliance, and playboy factors found in the CMNI-46. None of which was seen in this study.
- It was expected that higher levels of education will result in a higher quest factor found in the NIRO, and higher levels of winning, emotional control, and primacy of work found in the CMNI-46. None of these was seen in this study.

There was no correlation that relates to age:

- Considering Fowler's Spiritual development, I thought that there will be a strong connection with 20 - 30-year-olds and the intrinsic and quest factors of the NIRO scales. There were not enough participants of this age group to consider this statistically.
- People who are 50 and older may exhibit more definite beliefs in their faith and may have lower quest scores in the NIRO but higher scores on the CMNI-46. Older aged men were the predominant members of this research. However, there were not enough volunteers to act as a control group for other ages to test for statistical significance.

Predictions of Correlation, partial Correlation, and ANOVA's

To answer the first research question, which explores attitudes about masculinity and expression of faith, a general correlational analysis that looked at the nine independent factors of the CMNI-46 and how they

relate to the three independent factors of the NIRO will be used. I understand that this may produce a considerable amount of data, but it revealed trends. Not enough data, however, was found to formulate any statistically significant conclusions.

To answer the second research question regarding the different denominations, the denominations were compared independently against the three factors of the NIRO. There was a significant difference between those that self-identified as religious, and those that did not, on Intrinsic Orientation. Those that self-identified as religious scored higher overall. Those that self-identified as Mennonite scored higher on all factors compared to Baptists and the single Catholic participant. Although these scores were higher, the only significant difference was with the Intrinsic Orientation factor.

The third research question regarding the different life stages of faith was analyzed as follows: the data was compared to Fowler's (1982) understanding of faith development throughout the life cycle. This is a good reference point for guidance and comparison when trying to understand the data of

participants at different faith stages of their life. This was not used as many of participants were of the same age range.

CMNI-46

Mahalik et al.'s (2003) research to create the initial CMNI was completed in Texas. To verify the findings of Parent and Moradi's study (2011), research was done on Canadians that were predominantly Caucasian and Christian, though not exclusively, and this sample was used to develop the shorter CMNI-46. Parent and Moradi's study (2011) also found significant differences on each of the nine factors tested between Christians and non-Christians in their view of masculinity. I predicted that my research would produce very similar results to Parent and Moradi's work, since both churches in the study being tested were predominantly Caucasian and Christian; for example, heterosexual self-preservation was important in both studies. In chapter 4, we see that this is supported.

NIRO

The NIRO is a fairly new inventory and has not been used extensively in research which makes predications difficult to generate.

The survey has been tested and proven to be reliable and valid as a testing instrument(Francis, 2007). Intrinsic Orientation was shown to be much more important for both denominations and higher than expected.

Extrinsic Orientation, which consisted of statements focused on compartmentalization, social support, and personal support, was negatively correlated with the masculine norm of risk-taking, emotional control, and heteroself-preservation. Although the relationship was weak, it was significant in that higher scores on one correlated with lower scores on the other. This may suggest that those who use religion “for their own ends...to provide security and solace,” (Francis et al., 2016; p.3) may be less apt to taking risks, as they could possibly favour safer environments. This may also explain the negative correlation between extrinsic orientation and the masculine norm of violence, as violence is not typically conducive to environments of security, solace, and may not be religiously acceptable in many Christian situations. It is important to note that most of the participants had children and were married.

Extrinsic orientation that was found in my study was also found to be positively correlated with the masculine norms of emotional-

control and heterosexual self-presentations. Individuals who identify more closely with this orientation may be using religion as a means to create socially safe environments. These correlations are complementary in that they can lead to a more socially safe environment. Once again, the correlations were weak, but they were significant. Most of the participants were older family men, and this may have affected the need for emotional stability and possibly the heterosexual orientation of their lifestyles.

Overall, the research was a success and I was able to determine some trends. For example, Extrinsic Orientation and the positive correlation to emotional-control and heterosexual self-presentations. More trends may have been found if I had a larger participant pool. The findings were weak that were present, but still significant; I was not able to see any denominational differences from which I was hoping to derive some idea of how different congregations may raise their men to have different ideas on masculinity. I was also hoping to find some trends in relation to age and compare it to Fowler's work, but most of my participants were in there 50's and the homogeneous sample showed few trends.

CHAPTER 4

DEMOGRAPHICS

This chapter will report and discuss the results of the results of this study. Demographic data will considered first, descriptive statistics will then by reported and the inferential statistics will then be analyzed. The results will then be further analyzed in chapter 5.

Following extensive recruitment at two sites, 35 males completed the study's surveys. In total 34 participants considered themselves Christian, and one individual reported as "Other". With respect to age, 40% of the sample reported being over 50 years old, and 29% reported being between the ages of 35-50 years. Over half of the participants self-identified as Baptiste. Marital status proved to be a dominant factor in this research with 30 of 35 men reporting they were married. More so, 74% of them had three or more kids. This may be a reflection of the fact that 69% of respondents were 35 years or older.

The majority of the participants (23%) were Mennonite, and 3% were Catholic. The majority of the sample (86%) were married, with

only small portions identifying as single (9%) or divorced (6%). All of the participants had children, while 74% reported having three or more children. 97.1% of the participants felt that they were spiritual in a Christian capacity; only 80% of participants felt that they were religious. Details on demographic information are presented in Table 1.



~~Western Australia~~

~~Rottnest Island Authority Act 1987~~

~~Rottnest Island Regulations 1988~~

Version 05-d0-01As at 27 Apr 2015

Extract from www.slp.wa.gov.au, see that website for further information

Rottnest Island Regulations 1988

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Defined terms

~~Western Australia~~

~~Rottnest Island Authority Act 1987~~

~~Rottnest Island Regulations 1988~~

Part 1 — Preliminary

1. — Citation

— These regulations may be cited as the *Rottnest Island Regulations 1988*⁺.

2. — Commencement

— These regulations shall come into operation on the day on which the *Rottnest Island Authority Act 1987* comes into operation⁺.

3. — Terms used

— In these regulations, unless the contrary intention appears —

— ***adequate insurance cover***, in relation to a vessel, means adequate insurance cover of a kind specified by notice under regulation 72A(1);

— ***anchor***, a vessel, means to secure the vessel to the seabed or a beach by lowering from the vessel to the seabed or beach an anchor that, once lowered, can be taken back on board the vessel;

— ***annual admission payment*** means the annual payment in lieu of admission fees referred to in regulation 7;

— ***approved*** means approved by the Authority;

~~r.1~~

- ~~———— **bicycle** has the meaning given in the *Road Traffic Code 2000* section 3(1);~~
- ~~———— **certificate of registration** means a certificate of registration issued under the *Navigable Waters Regulations 1958*²;~~
- ~~———— **declare** and **declared** mean declare or declared to, and in a manner approved by, the Authority;~~
- ~~———— **length**, in relation to a vessel, means —~~
 - ~~———— (a) in the case of a vessel that is registered under the *Navigable Waters Regulations 1958*² —~~
 - ~~———— (i) the length of the vessel specified in the certificate of registration of that vessel; or~~
 - ~~———— (ii) if the Authority is not satisfied as to the accuracy of that registered length, the length determined under paragraph (b);~~
 - ~~———— and~~
 - ~~———— (b) in any other case, the distance from the fore part of the hull to the after part of the hull taken at the upperside of the uppermost weathertight deck or, in the case of an open vessel, at the height of the gunwale;~~
- ~~———— **liquor** has the meaning given in the *Liquor Control Act 1988* section 3(1);~~
- ~~———— **mooring** means any gear (including an anchor, stake, pylon or part of a jetty) set out on the seabed in a permanent manner to which a vessel or other floating structure may be secured by a chain, cable, wire or rope;~~
- ~~———— **mooring area** means each of the following —~~
 - ~~———— Porpoise Bay, Thomson Bay, Geordie Bay, Longreach Bay, Catherine Bay, Stark Bay, Narrow Neck and Marjorie Bay;~~
- ~~———— **mooring site** means a mooring site recorded in the register;~~
- ~~———— **mooring site licence** means a licence granted under regulation 20;~~

- ~~————~~ ***mooring site licensee*** means a person who holds a mooring site licence;
- ~~————~~ ***overall length***, in relation to a vessel, means the length of the vessel plus any bow sprit or marlin board;
- ~~————~~ ***owner***, in relation to a vessel, or aircraft, referred to in regulation 5(3), 6, 7A, 7B, 7C or 7D, includes a charterer, lessee or bailee of the vessel or aircraft;
- ~~————~~ ***permanent resident*** means a person resident on the Island for the purpose of —
 - ~~————~~ (a) any business undertaking authorised by the Authority; or
 - ~~————~~ (b) his employment on the Island;and includes a dependant of any such person;
- ~~————~~ ***register*** means the register referred to in regulation 25;
- ~~————~~ ***rental licence*** means a licence granted under regulation 15;
- ~~————~~ ***rental mooring*** means a mooring designated by the Authority as a rental mooring;
- ~~————~~ ***use*** in relation to a vehicle includes driving a vehicle and riding or pushing a bicycle;
- ~~————~~ ***vehicle*** has the meaning given in the *Road Traffic (Administration) Act 2008* section 4;
- ~~————~~ ***vessel*** means any floating object capable of carrying a person but does not include —
 - ~~————~~ (a) surfboards; or
 - ~~————~~ (b) windsurfing boards; or
 - ~~————~~ (c) canoes; or
 - ~~————~~ (d) surfskis; or
 - ~~————~~ (e) other non-motorized recreational flotations of a similar nature;

~~4.1~~

~~_____ **waters of the Island** means the waters referred to in section 4(b) of the Act.~~

~~_____ [*Regulation 3 amended in Gazette 30 Dec 1994 p. 7347; 4 Jul 1997 p. 3510-11; 15 Oct 2010 p. 5176; 17 Dec 2010 p. 6359-60; 25 Oct 2011 p. 4513; 24 Jan 2014 p. 113; 8 Jan 2015 p. 149.*]~~

~~**4. _____ Permission, meaning, granting etc. of**~~

~~_____ (1) Where in these regulations provision is made whereby an act or activity shall not be done or carried on without permission the reference to permission is to the permission of the Authority.~~

~~_____ (2) For the purposes of any such provision, the Authority may refuse permission or in the exercise of the power to grant permission may _____~~

~~_____ (a) grant permission generally or for any specific instance;~~

~~_____ (b) grant permission on and subject to such terms and conditions as it thinks fit including provision as to _____~~

~~_____ (i) the part of the Island to which the permission applies; or~~

~~_____ (ii) the class or description of persons to whom the permission extends; or~~

~~_____ (iii) the payment of any fee or charge whether before the act or activity commences or otherwise,~~

~~_____ and the Authority may amend or revoke a permission which has been granted.~~

~~_____ (3) A permission shall be in writing and shall be obtained before the act is done or the activity is commenced.~~

~~_____ (4) Where a permission has been given to a person subject to any condition the permission shall be deemed, in any prosecution against that person, to have lapsed during any period when the condition was not observed or performed according to its tenor by that person.~~

Part 2 — Fees

~~———— [Heading inserted in Gazette 29 Jun 2004 p. 2546.]~~

5. — Admission fees

~~—— (1) Subject to subregulation (5), an admission fee set out in Schedule 7 is payable in respect of every person who enters within the limits of the Island.~~

~~—— [(2) deleted]~~

~~—— (3) The admission fee is payable —~~

~~—— (a) in the case of a passenger on a vessel or aircraft in which persons are usually carried for reward, by the owner of the vessel or aircraft in accordance with regulation 6; and~~

~~—— (b) in the case of any other person, by that person as soon as is practicable after he enters within the limits of the Island.~~

~~—— (4) A person referred to in subregulation (3)(b) shall not fail or refuse to pay an admission fee payable by him under this regulation.~~

~~—— Penalty: a fine of \$750.~~

~~—— (5) An admission fee is not payable in respect of a person —~~

~~—— (a) who is under 4 years of age; or~~

~~—— (b) who is a member of the Authority; or~~

~~—— (c) who is a permanent resident on the Island; or~~

~~—— (d) who is a member of the crew of a vessel or aircraft in which persons are carried to the Island for reward; or~~

~~—— (e) who has paid an admission fee and has not returned to the mainland since that payment was made; or~~

~~4.1~~

~~————— (f) while he is on a vessel or aircraft that enters within the limits of the Island and leaves without being anchored or moored, or in the case of an aircraft without landing.~~

~~————— (6) The Authority may reduce, waive or refund, in whole or in part, an admission fee in circumstances it considers appropriate.~~

~~————— [Regulation 5 amended in Gazette 9 Nov 1990 p. 5589; 14 Jun 1991 p. 2914; 29 Oct 1993 p. 5928; 14 Dec 1993 p. 6667; 4 Jul 1997 p. 3511; 24 Apr 2003 p. 1272; 8 Dec 2009 p. 5002.]~~

~~6. Collection of admission fees by transport operators~~

~~————— (1) Subject to regulations 7A, 7B and 7C, the owner of a vessel or aircraft in which persons are carried to the Island for reward shall —~~

~~————— (a) collect the admission fee provided for by regulation 5, or cause it to be collected, from each passenger who travels in the vessel or aircraft before he enters within the limits of the Island; and~~

~~————— (b) remit the fees so collected to the Authority, together with a return or returns duly completed in such form or forms as the Authority may provide for the purpose —~~

~~————— (i) in the case of a vessel having a passenger capacity of up to 50 persons under the *Western Australian Marine Act 1982*, not later than 31 August in each year in respect of fees collected during the year that ended on the preceeding 30 June; and~~

~~————— (ii) in any other case, no later than 7 days after the last day of each collection period, in respect of fees collected during that collection period.~~

~~————— Penalty: \$1 000.~~

~~————— (1a) In subregulation (1)(b)(ii) —~~

~~collection period~~ means a period of 7 days commencing on a Wednesday and ending on a Tuesday.

- ~~(2) A person shall not pass to another person his ticket for travel to the Island on a vessel or aircraft with the intention of providing false evidence that the other person has paid an admission fee.~~

~~Penalty: a fine of \$750.~~

- ~~(3) If the owner of a vessel or aircraft fails to remit to the Authority the amount of any admission fees collected or required to be collected by him under subregulation (1), the Authority may recover from him the amount that has not been remitted in a court of competent jurisdiction.~~

~~[Regulation 6 amended in Gazette 30 Dec 1994 p. 7347;
24 Apr 2003 p. 1272; 4 Jan 2013 p. 23.]~~

~~6A. Audit of accounts etc. of certain transport operators as to admission fees~~

- ~~(1) The Authority may cause the accounts and records of admission fees collected by the owner of a vessel or aircraft who is required to remit admission fees under regulation 6(1)(b)(ii) to be audited.~~

- ~~(2) An owner of a vessel or aircraft shall not~~

~~(a) refuse or fail to provide to the Authority, within the time specified by the Authority, accounts and records requested by the Authority for the purpose of an audit under subregulation (1); or~~

~~(b) hinder or obstruct the Authority in the conduct of an audit under subregulation (1).~~

~~Penalty: \$1 000.~~

~~[Regulation 6A inserted in Gazette 24 Apr 2003 p. 1272.]~~

~~4.1~~

~~7. Annual fee for non-commercial vessels etc. in lieu of admission fees~~

~~(1) Where~~

~~(a) in respect of any vessel or aircraft (not being a vessel or aircraft in which persons are usually carried for reward) the relevant payment set out in Schedule 7 is paid in respect of any year, or part of a year, ending on 31 August following the payment; and~~

~~(b) an adhesive sticker issued by the Authority on receipt of that amount is exhibited on that vessel or aircraft in such a position as to be clearly visible from the exterior;~~

~~a person who is carried to the Island on that vessel or aircraft during that year is taken to have paid the admission fee required under regulation 5.~~

~~(2) A person who is in charge of the vessel or aircraft must ensure that the adhesive sticker is exhibited on the vessel or aircraft in accordance with subregulation (1)(b) while the vessel is moored within the limits of, or the aircraft is landed at, the Island.~~

~~Penalty: a fine of \$750.~~

~~[Regulation 7 inserted in Gazette 4 Jul 1997 p. 3511; amended in Gazette 17 Dec 2010 p. 6360.]~~

~~7A. Annual payment by charter operators in lieu of admission fees~~

~~(1) If~~

~~(a) the owner of a vessel in which persons are carried to the Island for reward by charter of that vessel, pays to the Authority, subject to subregulation (3), the annual payment calculated in accordance with Schedule 5~~

~~(i) in advance of and in respect of a financial year; and~~

- ~~————— (ii) ——— for the number of visits declared by the owner to be made by the vessel to the Island during that financial year;~~
- ~~————— and~~
- ~~————— (b) ——— an adhesive sticker issued by the Authority on receipt of the annual payment is exhibited on the vessel in such a position as to be clearly visible from the exterior;~~
- ~~————— a person who is carried to the Island on the vessel during that financial year for the sole purpose of participating in recreational fishing, or recreational diving, from that vessel shall be deemed to have paid the admission fee prescribed by regulation 5.~~
- ~~————— (2) ——— At the time when the owner of a vessel makes a declaration of the number of visits to be made to the Island under subregulation (1)(a)(ii), the owner shall also declare the number of visits, if any, made by the vessel to the Island during the previous financial year.~~
- ~~————— (3) ——— If the number of visits made by a vessel to the Island during the previous financial year is different from the number declared by the owner in respect of that financial year, the Authority may make an appropriate adjustment to the annual payment that the owner is required to pay under subregulation (1)(a).~~
- ~~————— (4) ——— A person who is in charge of the vessel must ensure that the adhesive sticker is exhibited on the vessel in accordance with subregulation (1)(b) while the vessel is moored within the limits of the Island.~~
- ~~————— Penalty: a fine of \$750.~~
- ~~————— [Regulation 7A inserted in Gazette 14 Dec 1993 p. 6667-8; amended in Gazette 30 Dec 1994 p. 7347; 17 Dec 2010 p. 6360; 4 Mar 2011 p. 701.]~~

~~4.1~~

~~7B. Aerodrome usage fees~~

- ~~— (1) Subject to regulations 7C and 7D, the owner of an aircraft in which persons are carried to the Island shall pay to the Authority, for each occasion when the aircraft lands at the Island, the aerodrome usage fee set out in Schedule 6 item 1.~~
- ~~— (2) If the owner of an aircraft pays the applicable aerodrome usage fee under subregulation (1) or annual payment under regulation 7C, a person who is carried to the Island in the aircraft shall be deemed to have paid the admission fee prescribed by regulation 5.~~
- ~~— [Regulation 7B inserted in Gazette 30 Dec 1994 p. 7348; amended in Gazette 29 Jul 2011 p. 3144.]~~

~~7C. Annual payment in lieu of aerodrome usage fees~~

- ~~— (1) Subject to regulation 7D, the owner of an aircraft in which persons are carried to the Island may pay to the Authority, instead of the aerodrome usage fee referred to in regulation 7B for each occasion when the aircraft lands at the Island, an annual payment —~~
 - ~~— (a) in advance of and in respect of a financial year; and~~
 - ~~— (b) calculated by multiplying the amount set out in Schedule 6 item 2 by the number of visits declared by the owner to be made by the aircraft to the Island during that financial year.~~
- ~~— (2) At the time when the owner of an aircraft makes a declaration of the number of visits to be made by the aircraft to the Island during a financial year, the owner shall also declare the number of visits, if any, made by the aircraft to the Island during the previous financial year.~~
- ~~— (3) If the number of visits made by an aircraft to the Island during the previous financial year is different from the number declared by the owner in respect of that financial year, the Authority may~~

make an appropriate adjustment to the annual payment payable by the owner under subregulation (1).

~~[Regulation 7C inserted in Gazette 30 Dec 1994 p. 7348;
amended in Gazette 29 Jul 2011 p. 3144.]~~

~~7D. Exceptions to r. 7B and 7C~~

- ~~(1) Regulations 7B and 7C do not apply~~
- ~~(a) in respect of an aircraft operated as part of a regular passenger transport service to the Island; or~~
- ~~(b) in respect of an aircraft, operated by an approved charter operator, in which persons are carried for reward from, and returned to, the Island without the aircraft having landed outside the limits of the Island.~~
- ~~(2) The aerodrome usage fee, if any, payable by the owner of an aircraft referred to in subregulation (1) that lands at the Island is as determined from time to time by the Authority.~~

~~[Regulation 7D inserted in Gazette 30 Dec 1994 p. 7348;
amended in Gazette 4 Jul 1997 p. 3512.]~~

~~7E. Main Ferry Jetty berthing fee~~

- ~~(1) The owner of a vessel shall before berthing that vessel at the Main Ferry Jetty at Rottnest Island pay to the Authority the relevant berthing fee set out in Schedule 8 for berths at that jetty.~~
- ~~(2) A person referred to in subregulation (1) who fails or refuses to pay a berthing fee payable by him under that subregulation commits an offence.~~
- ~~Penalty: \$1 000.~~

~~[Regulation 7E inserted in Gazette 29 Jun 2004 p. 2546.]~~

~~**4.1**~~

Part 3—Residence on Island

8. ~~Licence to occupy accommodation~~

- ~~— (1) The Authority may grant to a person a licence to occupy specified accommodation on the Island for a period specified in the licence.~~
- ~~— (2) The rent payable for a licence to occupy accommodation during any period shall be calculated at such rate as the Authority may from time to time determine for the occupation of that accommodation during that period.~~
- ~~— (3) A licence under subregulation (1) —~~
 - ~~— (a) may be granted subject to such conditions as the Authority thinks fit; and~~
 - ~~— (b) is not transferable and shall not vest by operation of law in any other person.~~
- ~~— (4) The Authority may, by notice in writing served on the licensee, forthwith cancel a licence if it is satisfied on reasonable grounds that the licensee has —~~
 - ~~— (a) failed to comply with a condition of the licence; or~~
 - ~~— (b) committed an offence against the Act or these regulations;~~
 - ~~— or has permitted or suffered some other person to do any of those things.~~
- ~~— (5) The rent paid for a licence that is cancelled under subregulation (4) is not refundable, in whole or in part.~~
- ~~— (6) Part VII of the *Property Law Act 1969* does not apply to a licence granted under this regulation.~~
- ~~— (7) In this regulation and in regulations 9 and 10 **accommodation** includes a camping site in the camping ground on the Island.~~

9. ~~Casual residence on Island~~

- ~~(1) A person shall not take up casual residence within the limits of the Island except —~~
- ~~(a) as the guest of a permanent resident; or~~
 - ~~(b) as a guest at the Rottnest Lodge Resort or the Rottnest Island Hotel; or~~
 - ~~(c) in accommodation specified in a licence granted to him under regulation 8; or~~
 - ~~(d) with the consent of that other person, in accommodation specified in a licence granted under regulation 8 to some other person; or~~
 - ~~(e) in a vessel that —~~
 - ~~(i) is anchored; or~~
 - ~~(ii) is secured to a rental mooring, or a mooring on a mooring site, and is authorised to be so secured under Division 2 or 3 of Part 4.~~
- ~~Penalty: \$1 000.~~
- ~~(2) For the purposes of this regulation, a person, not being a permanent resident, is deemed to have taken up casual residence within the limits of the Island if he remains there between sunset and sunrise without apparent means of taking his departure.~~
- ~~[Regulation 9 amended in Gazette 4 Jul 1997 p. 3512.]~~

10. ~~Conditions on r. 8 licences~~

- ~~(1) Without limiting regulation 8(3)(a) it is condition of every licence granted under that regulation that the licensee —~~
- ~~(a) shall keep the accommodation and its surrounds in a reasonable state of cleanliness; and~~
 - ~~(b) shall notify the Authority as soon as is practicable of any damage to the accommodation or its surrounds; and~~

~~4.1~~

~~————— (c) — shall not intentionally or negligently cause or permit damage to the accommodation or its surrounds.~~

~~————— (2) — In this regulation **accommodation** includes chattels provided with the accommodation.~~

Part 4 — Moorings

~~————— [Heading inserted in Gazette 4 Jul 1997 p. 3512.]~~

Division 1 — General control provisions

~~————— [Heading inserted in Gazette 4 Jul 1997 p. 3512.]~~

11. — Installing and using moorings

~~————— (1) — A person shall not without permission —~~

~~————— (a) — install a mooring for a vessel in the waters of the Island;
or~~

~~————— (b) — secure a vessel, or allow it to remain secured, to a mooring that is installed without such permission.~~

~~————— Penalty: \$1 000.~~

~~————— (2) — A person shall not secure a vessel, or allow it to remain secured, to a mooring in the waters of the Island unless —~~

~~————— (a) — the vessel is authorised under Division 2 or 3 to be secured to that mooring; and~~

~~————— (b) — the vessel exhibits, so that it is clearly visible from the exterior of the vessel —~~

~~————— (i) — an adhesive sticker issued for that vessel under Division 3; or~~

~~————— (ii) — a rental licence specifying that vessel.~~

~~————— Penalty: a fine of \$750.~~

~~————— (3) — A person shall not secure a vessel, or allow it to remain secured, to —~~

~~————— (a) — a mooring to which a vessel is already secured; or~~

~~———— (b) — a vessel that is secured to a mooring.~~

~~———— Penalty: a fine of \$750.~~

~~———— (4) — Subregulation (3) does not apply so as to prohibit a vessel with an overall length of up to 3.75 m from being secured to another vessel.~~

~~———— [Regulation 11 inserted in Gazette 4 Jul 1997 p. 3512-13; amended in Gazette 8 Dec 2009 p. 5002.]~~

~~**12. — Anchoring vessels**~~

~~———— (1) — A person shall not anchor a vessel, or allow it to remain anchored, unless the vessel lies in a position where —~~

~~———— (a) — no part of the vessel, or a vessel attached to it, is closer than 50 m to any mooring; and~~

~~———— (b) — the vessel, or a vessel attached to it, does not obstruct or interfere with access to a mooring.~~

~~———— Penalty: a fine of \$750.~~

~~———— (2) — Subregulation (1) does not apply in respect of a vessel that is required to anchor contrary to that subregulation to avoid or mitigate danger to human life or significant damage to property.~~

~~———— [Regulation 12 inserted in Gazette 4 Jul 1997 p. 3513; amended in Gazette 8 Dec 2009 p. 5002.]~~

~~**13A. — Securing vessel by means of another vessel's anchor**~~

~~———— (1) — A person must not secure a vessel, or allow it to remain secured, to an anchor lowered from another vessel.~~

~~———— Penalty: a fine of \$750.~~

~~———— (2) — Subsection (1) applies whether or not the anchor is still attached to the vessel from which it was lowered.~~

~~———— (3) — Subregulation (1) does not apply in respect of a vessel that is secured to a mooring comprising an anchor.~~

~~r.1~~

~~————— [Regulation 13A inserted in Gazette 25 Oct 2011 p. 4513.]~~

~~13. — Anchored and moored vessels to have competent operators~~

~~————— (1) A person shall not anchor a vessel or secure it to a mooring, or allow it to remain so anchored or secured, unless a competent operator of the vessel —~~

~~————— (a) is within the limits of the Island; and~~

~~————— (b) if the vessel remains so anchored or secured overnight, resides on the vessel or in casual residence on the Island under regulation 9.~~

~~————— Penalty: a fine of \$750.~~

~~————— (2) In subregulation (1) —~~

~~————— **competent operator**, in relation to a vessel, means an individual who —~~

~~————— (a) is over 18 years of age; and~~

~~————— (b) is capable of operating the vessel; and~~

~~————— (c) has responsibility for the vessel.~~

~~————— [Regulation 13 inserted in Gazette 4 Jul 1997 p. 3513; amended in Gazette 4 Jan 2013 p. 23.]~~

~~14. — Application of r. 11, 12 and 13 to person on vessel~~

~~————— For the purposes of regulations 11, 12 and 13, a person who is on a vessel that is anchored, or secured to a mooring, is taken to allow it to remain so secured or anchored unless the person shows to the satisfaction of the Authority that —~~

~~————— (a) the person does not have responsibility for the vessel; and~~

~~————— (b) another person is properly responsible for the vessel.~~

~~————— [Regulation 14 inserted in Gazette 4 Jul 1997 p. 3513; amended in Gazette 19 Jun 1998 p. 3302.]~~

Division 2 — Rental moorings

~~————— [Heading inserted in Gazette 4 Jul 1997 p. 3513.]~~

15. — Licence to occupy rental mooring

- ~~—— (1) The Authority may, on application under subregulation (2), grant to the applicant a licence for the use of a specified rental mooring by a specified vessel for a specified period.~~
- ~~—— (2) An application shall be ——~~
 - ~~—— (a) made by an individual over the age of 18 years; and~~
 - ~~—— (b) in an approved form that is duly completed.~~
- ~~—— (3) A rental licence may be granted on such conditions as the Authority thinks fit.~~
- ~~—— (4) A vessel is authorised to be secured to a rental mooring during any period if a rental licence for the use of that particular rental mooring by that vessel for that period is of effect.~~
- ~~—— (5) A rental licence is not transferable.~~
- ~~—— (6) In subregulation (1) ——~~
 - ~~—— *specified* means specified in the licence.~~
- ~~—— [Regulation 15 inserted in Gazette 4 Jul 1997 p. 3513-14.]~~

16. — Rent for r. 15 licence

- ~~—— (1) The rent payable for a rental licence during any period shall be calculated at such rate as the Authority may determine for use of that rental mooring during that period.~~
- ~~—— (2) If a licensee cancels a rental licence before the rental period specified in the licence has commenced, the Authority ——~~
 - ~~—— (a) may retain from the rent as a cancellation fee ——~~

~~r.1~~

- ~~_____ (i) \$15 if the cancellation is more than 48 hours before the notice period specified in the licencee; and~~
- ~~_____ (ii) 50% of the rent if the cancellation is less than 48 hours before the notice period specified in the licencee;~~

~~_____ and~~

- ~~_____ (b) shall refund or credit to the licensee the balance of the rent.~~

- ~~_____ (3) No rent is refundable or to be credited in respect of a licence cancelled under regulation 17 or cancelled after the rental period specified in the licencee has commenced.~~

~~_____ [Regulation 16 inserted in Gazette 4 Jul 1997 p. 3514.]~~

~~17. Cancellation of r. 15 licence~~

~~_____ The Authority may, by written notice given to the licensee, cancel a rental licence if it is satisfied on reasonable grounds that the licensee has _____~~

- ~~_____ (a) failed to comply with a condition of the licencee; or~~
- ~~_____ (b) committed an offence under the Act or these regulations;~~
- ~~_____ or caused or permitted another person to do any of those things.~~

~~_____ [Regulation 17 inserted in Gazette 4 Jul 1997 p. 3514.]~~

~~18. Damage to rental mooring~~

- ~~_____ (1) If a rental mooring is damaged or destroyed (the *loss*) during the period of a rental licence granted in respect of that rental mooring, the cost of repair or replacement is a debt due to the Authority by the licensee and is recoverable in a court of competent jurisdiction unless the licensee can show that _____~~

- ~~_____ (a) the loss was caused by the act or omission of some other person; and~~

- ~~———— (b) the licensee could not have prevented the loss by the exercise of reasonable care.~~
- ~~———— (2) For the purposes of subregulation (1), the loss is taken to have occurred during the period of the licence if —~~
 - ~~———— (a) the mooring is found to be damaged or destroyed at the end of the rental period specified in the licence; and~~
 - ~~———— (b) the licensee did not report the loss to the Authority at the commencement of the rental period.~~
- ~~———— [Regulation 18 inserted in Gazette 4 Jul 1997 p. 3514-15.]~~

Division 3 — Mooring site licences

~~———— [Heading inserted in Gazette 4 Jul 1997 p. 3515.]~~

19. Terms used

- ~~———— In this Division, unless the contrary intention appears —~~
- ~~———— **additional vessel** means a vessel authorised to be secured to a mooring under regulation 27;~~
- ~~———— **authorised user**, in relation to a mooring site, means a person who is recorded in the register under regulation 31B(5) or 31C(4) as an authorised user of the mooring site;~~
- ~~———— **authorised vessel**, in relation to a mooring site, means a vessel recorded in the register under regulation 31B(5) or 31C(4) as the authorised vessel for an authorised user of the mooring site;~~
- ~~———— **licensed vessel** means a vessel authorised to be secured to a mooring under regulation 26;~~
- ~~———— **mooring inspection report** means a report by a mooring contractor that —~~
 - ~~———— (a) is in an approved form; and~~
 - ~~———— (b) certifies that a mooring on a mooring site inspected —~~
 - ~~———— (i) complies with the approved mooring specifications; and~~

~~r.1~~

~~————— (ii) is suitable for the use of a vessel with specifications up to and including the specifications of the longest vessel registered, or proposed to be registered, in respect of that mooring site as a licensed vessel, additional vessel or authorised vessel, at the date of the mooring inspection report;~~

~~————— and~~

~~————— (e) is less than 12 months old;~~

~~————— **suitable vessel** means a vessel which —~~

~~————— (a) has a length of at least 6.4 m; and~~

~~————— (b) is a sailing vessel or has its own form of self propulsion capable of achieving a speed of 5 knots; and~~

~~————— (c) has adequate insurance cover;~~

~~————— **waiting list** means the waiting list referred to in regulation 21(1)(a).~~

~~————— [Regulation 19 inserted in Gazette 4 Jul 1997 p. 3515; amended in Gazette 7 Dec 2001 p. 6188; 4 Dec 2009 p. 4921 and 4924.]~~

~~20. Application for and grant of licences~~

~~————— (1) Subject to section 13(3) of the Act and regulation 22, the Authority may, on application under subregulation (3), grant to the applicant a licence to occupy a specified mooring site.~~

~~————— (2) A mooring site licence may be granted on such conditions as the Authority thinks fit.~~

~~————— (3) An application shall —~~

~~————— (a) be in an approved form that is duly completed; and~~

~~————— (b) be made by a person —~~

~~————— (i) whose principal place of residence is in the State; and~~

~~————— (ii) whose name appears on an electoral roll as an elector under the *Electoral Act 1907*; and~~

- ~~————— (iii) — who is named on the certificate of registration of the vessel nominated under paragraph (d) as the owner of that vessel, or who produces evidence of ownership satisfactory to the Authority; and~~
- ~~————— (iv) — who is the owner of at least 25% of the net worth of the vessel nominated under paragraph (d); and~~
- ~~————— (v) — who does not already have an application recorded on the waiting list; and~~
- ~~————— (vi) — who does not hold another mooring site licence;~~
- ~~————— and~~
- ~~————— (c) — be accompanied by the application fee set out in Schedule 7; and~~
- ~~————— (d) — nominate a suitable vessel which has not been nominated under any other application recorded on a waiting list and is not a licensed vessel or an additional vessel for any other mooring site; and~~
- ~~————— (e) — nominate a mooring area.~~
- ~~————— (4) — The applicant shall supply such further information as the Authority may require.~~
- ~~————— (5) — An applicant may by written notice to the Authority amend any part of the application other than ———~~
 - ~~————— (a) — the date of the application; and~~
 - ~~————— (b) — the name of the applicant; and~~
 - ~~————— (c) — the nominated mooring area.~~
- ~~————— (6) — If an application is withdrawn or amended, or the applicant's name is removed from the waiting list under subregulation (9) or (10), the Authority is not required to refund the application fee or any part of it.~~
- ~~————— (7) — The applicant shall give written notice to the Authority of any alteration to the particulars provided by the applicant in the application as soon as it is practicable to do so.~~

~~r.1~~

~~Penalty: \$300.~~

~~(8) If the applicant's interest in a vessel nominated in the application is sold or disposed of, the applicant~~

~~(a) shall give written notice to the Authority of the sale or disposal, and the date of the sale or disposal, as soon as is practicable after that date; and~~

~~(b) may, by written notice given to the Authority, nominate another suitable vessel for the purposes of subregulation (3)(d)~~

~~(i) in respect of which the applicant is named on the certificate of registration as the owner or in respect of which the applicant produces evidence of ownership satisfactory to the Authority; and~~

~~(ii) of which the applicant is the owner of at least 25% of the net worth.~~

~~Penalty applicable to paragraph (a): \$300.~~

~~(9) If an applicant who has given notice of the date of a sale or disposal under subregulation (8) does not nominate a vessel under subregulation (8)(b) within 6 months of that date, the Authority may remove the applicant's name from the waiting list without further notice.~~

~~(10) The Authority may~~

~~(a) at any time by written notice require an applicant to confirm or update the particulars provided by the applicant in an application or to provide further particulars; and~~

~~(b) if an applicant fails to respond to a notice given to the applicant under paragraph (a) within the time specified in the notice, remove the applicant's name from the waiting list without further notice; and~~

~~(c) if the Authority is satisfied that an applicant listed on a waiting list, or a vessel nominated by that applicant, no longer meets the requirements of subregulation (3)(b)~~

or (d), give notice to that effect to the applicant and remove the applicant's name from the waiting list.

~~—(11) To the extent permitted by law, Part VII of the *Property Law Act 1969* does not apply to a mooring site licence.~~

~~— [Regulation 20 inserted in Gazette 4 Jul 1997 p. 3515-17; amended in Gazette 19 Jun 1998 p. 3302.]~~

~~21. Waiting lists of applicants~~

~~—(1) The Authority shall —~~

~~— (a) maintain a waiting list specifying the particulars of applicants for mooring site licences in each mooring area; and~~

~~— (b) on receipt of an application for a mooring site licence in a mooring area, place the applicant at the end of the waiting list for that mooring area.~~

~~—(2) A copy of —~~

~~— (a) each waiting list; and~~

~~— (b) a list setting out the name of every applicant for a mooring site licence and the date of the application;~~

~~— shall be kept at the office of the Authority.~~

~~—(3) The Authority shall, on written request by an applicant, provide that applicant with a copy of his or her application particulars as set out in a waiting list.~~

~~—(4) The list referred to in subregulation (2)(b) shall be available for inspection by the public during office hours free of charge.~~

~~— [Regulation 21 inserted in Gazette 4 Jul 1997 p. 3517.]~~

~~r.1~~

~~22. Offer and acceptance of licences~~

- ~~(1) If the Authority is satisfied that a mooring site is available for allocation in a mooring area the Authority shall, by written notice —~~
- ~~(a) offer a mooring site licence in respect of the mooring site to the first applicant recorded at the time on the waiting list for that mooring area as having made an application that, having regard to the specifications of the vessel in the application, is appropriate for that mooring site; and~~
- ~~(b) give the applicant contact details of the previous licensee of the mooring site to allow the applicant, if he or she so wishes, to negotiate with that licensee for the purchase of the mooring on the mooring site to which the licence relates.~~
- ~~(2) The Authority shall send the notice to the address specified in the application.~~
- ~~(3) When accepting an offer, the applicant shall —~~
- ~~(a) give the Authority written notice as to whether the applicant has, or has not, reached an agreement with the previous licensee to acquire the mooring; and~~
- ~~(b) pay to the Authority —~~
- ~~(i) the annual mooring site licence fee set out in Schedule 7; and~~
- ~~(ii) the annual admission payment in respect of the vessel to be licensed.~~
- ~~(4) When —~~
- ~~(a) the Authority is notified of acceptance of an offer; and~~
- ~~(b) the prescribed payments are made under subregulation (3); and~~
- ~~(c) the Authority has received evidence satisfactory to the Authority that the applicant has acquired the mooring on~~

~~the mooring site or that the applicant does not intend to acquire the mooring; and~~

~~(d) if the applicant has acquired the mooring, the Authority has received a mooring inspection report in respect of the mooring,~~

~~the Authority shall grant the mooring site licence to the applicant.~~

~~(5) If, for any reason~~

~~(a) the applicant does not accept the offer in accordance with its terms within 14 days of receiving notice of the offer, or such further time as the Authority may by written notice allow; or~~

~~(b) the applicant accepts the offer under paragraph (a) but the evidence referred to in subregulation (4)(c) and, if required, the mooring inspection report referred to in subregulation (4)(d) are not provided to the Authority within 28 days of receiving notice of the offer, or such further time as the Authority may by written notice allow,~~

~~then~~

~~(c) the offer lapses; and~~

~~(d) the Authority shall remove the name of the applicant from the waiting list; and~~

~~(e) the Authority may make the offer to another applicant.~~

~~(6) Nothing in subregulation (5) prevents an applicant from making a further application for a mooring site licence.~~

~~*[Regulation 22 inserted in Gazette 4 Jul 1997 p. 3517-18; amended in Gazette 19 Jun 1998 p. 3303; 7 Dec 2001 p. 6188.]*~~

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~~23. Authority not obliged to offer licence~~

~~Nothing in these regulations imposes an obligation on the Authority to offer a mooring site licence in respect of a mooring site, and the Authority may deal with a mooring site in respect of which there is no licence in force as it thinks fit.~~

~~[Regulation 23 inserted in Gazette 4 Jul 1997 p. 3518.]~~

~~24. Licences, issue and content of~~

~~(1) When a mooring site licence is granted, the Authority shall issue a licence to the licensee.~~

~~(2) The licence shall specify~~

~~(a) the licence number of the mooring site; and~~

~~(b) the full name of the licensee; and~~

~~(c) the name and registration number (if any) under the *Navigable Waters Regulations 1958*² of the licensed vessel; and~~

~~(d) such other particulars as the Authority determines.~~

~~[Regulation 24 inserted in Gazette 4 Jul 1997 p. 3519.]~~

~~25. Register of licences~~

~~(1) The Authority shall cause to be kept a register of mooring sites in such manner and form as the Authority determines.~~

~~(2) The register shall specify in respect of each mooring site~~

~~(a) its location and number; and~~

~~(b) the particulars of the mooring site licensee (if any), including the full name, address, contact telephone numbers, date of birth and the particulars of the person nominated by the licensee to be contacted in an emergency; and~~

~~(c) the particulars of the licensed vessel (if any) and any additional vessel, including any name of the vessel, any~~

registration number under the *Navigable Waters Regulations 1958*², the owner or owners of the vessel, the length and overall length of the vessel, the weight in metric tonnes, the draft, the vessel type, the name of the vessel's insurers and the percentage of the licensee's interest in the net worth of the vessel; and

- (d) the date of the last mooring inspection report provided to the Authority for the mooring site; and
 - (e) the particulars of any authorised users and authorised vessels for the site.
- (3) The mooring site licensee must give the Authority written notice of any alteration to the particulars referred to in subregulation (2)(b), (c) and (d) as soon as it is practicable to do so.
- Penalty: \$300.
- (4) The Authority shall, on written request by a mooring site licensee, provide that licensee with a copy of particulars of that mooring site as set out in the register.
- (5) A list setting out the number of every mooring site and the name of the mooring site licensee for that mooring site, shall be —
- (a) kept at the office of the Authority; and
 - (b) available for inspection by the public during office hours free of charge.

— [Regulation 25 inserted in Gazette 4 Jul 1997 p. 3519; amended in Gazette 7 Dec 2001 p. 6188; 4 Dec 2009 p. 4924.]

26. Licensed vessels for mooring site moorings; substituting vessels

- (1) A vessel is authorised to be secured to a mooring on a mooring site if it is recorded in the register, and on the mooring site licence, as the licensed vessel for that mooring site.

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- ~~— (2) Only one vessel shall be recorded as a licensed vessel for any mooring site.~~
- ~~— (3) The Authority shall issue to each mooring site licensee an adhesive sticker designed to identify the licensed vessel for that mooring site.~~
- ~~— (4A) The Authority may issue to a mooring site licensee a replacement adhesive sticker if —~~
 - ~~— (a) the Authority is satisfied that the adhesive sticker issued to a mooring site licensee under subregulation (3) has been lost, damaged or destroyed; and~~
 - ~~— (b) the mooring site licensee has paid the fee for the replacement of a lost mooring sticker set out in Schedule 7 item 7A.~~
- ~~— (4) A mooring site licensee may, by written notice to the Authority, request the Authority to —~~
 - ~~— (a) delete the particulars of the licensed vessel from the register and licence; and~~
 - ~~— (b) substitute as a licensed vessel in the register and on the licence another suitable vessel nominated by the mooring site licensee —~~
 - ~~— (i) which is not a licensed vessel, an additional vessel for any other mooring site or a vessel nominated under any application recorded on a waiting list; and~~
 - ~~— (ii) in respect of which the licensee is named on the certificate of registration as the owner, or in respect of which the licensee has produced evidence of ownership satisfactory to the Authority; and~~
 - ~~— (iii) of which the licensee is the owner of at least 25% of the net worth.~~
- ~~— (5) A notice referred to in subregulation (4) shall be accompanied by —~~

- ~~———— (a) — the mooring site licence; and~~
- ~~———— (b) — the sticker issued in respect of the licensed vessel; and~~
- ~~———— (c) — full particulars of the nominated vessel; and~~
- ~~———— (d) — certificates of insurance showing that the nominated vessel has adequate insurance cover; and~~
- ~~———— (e) — if the nominated vessel has a length that is more than that of the longest vessel specified in the last mooring inspection report for the mooring, a fresh mooring inspection report certifying that the mooring is suitable for the use of a vessel up to and including the specifications of the nominated vessel.~~
- ~~—— (6) — A mooring site licensee who sells or otherwise disposes of his or her interest in a licensed vessel —~~
 - ~~———— (a) — shall give written notice of the sale or disposal, and the date of the sale or disposal, to the Authority as soon as is practicable after the sale or disposal; and~~
 - ~~———— (b) — may, within 6 months of the date of the sale or disposal, by written notice request the Authority to substitute as a licensed vessel in the register and on the licence another suitable vessel nominated by the licensee —~~
 - ~~———— (i) — in respect of which the licensee is named on the certificate of registration as the owner, or in respect of which the owner has produced evidence of ownership satisfactory to the Authority; and~~
 - ~~———— (ii) — of which the licensee is the owner of at least 25% of the net worth.~~
- ~~———— Penalty applicable to paragraph (a): \$300.~~
- ~~—— (7) — A notice referred to in subregulation (6)(a) shall be accompanied by —~~
 - ~~———— (a) — the mooring site licence; and~~

~~4.1~~

- ~~———— (b) — the sticker issued in respect of the licensed vessel.~~
- ~~———— (8) — A request referred to in subregulation (6)(b) shall be accompanied by ————~~
 - ~~———— (a) — full particulars of the nominated vessel; and~~
 - ~~———— (b) — certificates of insurance showing that the nominated vessel has adequate insurance cover; and~~
 - ~~———— (c) — if the nominated vessel has a length that is more than that of the longest vessel specified in the last mooring inspection report for the mooring, a fresh mooring inspection report certifying that the mooring is suitable for the use of a vessel up to and including the specifications of the nominated vessel.~~
- ~~———— (9) — If a notice is given in accordance with subregulations (4) and (5), or subregulations (6)(b) and (8), the Authority shall amend the licence and register as requested.~~
- ~~———— (10) — A mooring site licensee shall maintain any mooring on the mooring site, irrespective of whether or not there is a licensed vessel recorded on the register for that mooring site.~~
- ~~———— [Regulation 26 inserted in Gazette 4 Jul 1997 p. 3519-21; amended in Gazette 29 Jul 2011 p. 3145.]~~

~~27. — Additional vessels for mooring site moorings, registration of etc.~~

- ~~———— (1) — A mooring site licensee may, by written notice given to the Authority, nominate vessels other than the licensed vessel to use the mooring site if ————~~
 - ~~———— (a) — the mooring site licensee is named on the certificate of registration of each nominated vessel as the owner of that vessel, or produces evidence of ownership satisfactory to the Authority; and~~
 - ~~———— (b) — each nominated vessel has adequate insurance cover.~~

- ~~— (2) A vessel is authorised to be secured to a mooring on a mooring site if it is recorded in the register as being an additional vessel in respect of that mooring site.~~
- ~~— (3) A notice under subregulation (1) shall be accompanied by —~~
 - ~~— (a) the annual admission payment in respect of the nominated vessel; and~~
 - ~~— (b) a copy of the nominated vessel's certificate of registration or, if the vessel does not have a certificate of registration, evidence of ownership of the vessel; and~~
 - ~~— (c) a copy of insurance certificates showing that the nominated vessel has adequate insurance cover; and~~
 - ~~— (d) if the nominated vessel has a length that is more than that of the longest vessel specified in the last mooring inspection report for the mooring, a fresh mooring inspection report certifying that the mooring is suitable for the use of a vessel up to and including the specifications of the nominated vessel.~~
- ~~— (4) If a notice is given in accordance with subregulations (1) and (3), the Authority shall —~~
 - ~~— (a) enter the details of the nominated vessel in the register; and~~
 - ~~— (b) issue to the mooring site licensee an adhesive sticker designed to identify the additional vessel as being so registered.~~
- ~~— (5) A mooring site licensee may, by written notice to the Authority accompanied by the relevant adhesive sticker, request the Authority to delete the particulars of an additional vessel from the register.~~
- ~~— (6) If particulars of an additional vessel are removed from the register pursuant to a request under subregulation (5), the~~

~~4.1~~

~~Authority is not required to refund the annual admission payment or any portion of it.~~

- ~~— (7) A mooring site licensee may have more than one additional vessel registered in respect of a mooring site at any time.~~

~~— [Regulation 27 inserted in Gazette 4 Jul 1997 p. 3521-2.]~~

~~28. Mooring specifications, compliance requirements as to~~

- ~~— (1) A mooring site licensee shall ensure that any mooring on the mooring site of the licensee complies at all times with the approved mooring specifications.~~

~~— Penalty: a fine of \$750.~~

- ~~— (2) A mooring site licensee is responsible for any cost incurred by the mooring site licensee in ensuring that the mooring complies with the mooring specifications.~~

- ~~— (3) A mooring site licensee shall at all times have a mooring inspection report in respect of a mooring on the mooring site of the licensee.~~

~~— Penalty: a fine of \$750.~~

- ~~— (4) A mooring site licensee shall give to the Authority a copy of any mooring site inspection report made for the licensee within 7 days of receiving the report.~~

~~— Penalty: a fine of \$750.~~

- ~~— (5) A mooring site licensee shall not use a mooring on the mooring site of the licensee, or cause or permit the mooring to be used, unless a mooring inspection report in respect of the mooring has been provided to the Authority.~~

~~— Penalty: a fine of \$750.~~

~~— [Regulation 28 inserted in Gazette 4 Jul 1997 p. 3522; amended in Gazette 8 Dec 2009 p. 5003; 17 Dec 2010 p. 6360.]~~

~~28A. Authority may reject mooring inspection report~~

- ~~— (1) The Authority may reject a mooring inspection report provided to the Authority by any person under these regulations, and require that person to provide another mooring inspection report.~~
- ~~— (2) A mooring inspection report that is rejected by the Authority is to be taken not to have been provided to the Authority for the purposes of these regulations.~~
- ~~— [Regulation 28A inserted in Gazette 7 Dec 2001 p. 6189.]~~

~~29. Unattended vessels on mooring site mooring~~

- ~~— (1) A person shall not, without permission, cause or permit an unattended vessel to remain secured to a mooring on a mooring site for a period of longer than 24 hours.~~
- ~~— (2) The Authority may, if it is satisfied that a person has contravened subregulation (1), by written notice served on the mooring site licensee or, if the vessel is an authorised vessel, the authorised user, direct that the vessel be removed from the mooring within the period specified in the notice.~~
- ~~— (3) A person on whom a notice is served under subregulation (2) shall comply with the notice.~~
- ~~— Penalty: a fine of \$750.~~
- ~~— (4) If a notice served under subregulation (3) is not complied with, the Authority may take possession of the vessel and deal with it as if it were abandoned, and for that purpose the notice given under subregulation (3) is taken to be a notice given under regulation 74(2)(b).~~
- ~~— [Regulation 29 inserted in Gazette 4 Jul 1997 p. 3522; amended in Gazette 4 Dec 2009 p. 4924; 8 Dec 2009 p. 5003.]~~

~~**4.1**~~

~~**30. Licences, nature of, duties of holder on cessation of; exchange of sites**~~

- ~~— (1) A mooring site licence is a licence to occupy the mooring site specified in the licence and does not apply in respect of the mooring on that mooring site.~~
- ~~— (2) Rights conferred on a mooring site licensee under these regulations are not assignable and shall not pass by will or on intestacy or vest by operation of law in any person.~~
- ~~— (3) Nothing in subregulation (2) prohibits the sale or disposal, in accordance with these regulations, of a mooring.~~
- ~~— (4) Subject to subregulation (8), if a mooring site licence ceases to have effect, the person who was the mooring site licensee immediately before the licence ceased to have effect (or, if that person has died, his or her personal representative) (the *previous licensee*) shall —~~
 - ~~— (a) remove the mooring; or~~
 - ~~— (b) dispose of the mooring to the person to whom the Authority has offered the mooring site licence.~~
- ~~— Penalty: a fine of \$750.~~
- ~~— (5) The Authority may, by written notice given to the previous licensee, direct the previous licensee to comply with subregulation (4) within a time specified in the notice.~~
- ~~— (6) If a previous licensee does not comply with a direction given under subregulation (5), the Authority may take possession of the mooring and deal with it as if it were abandoned.~~
- ~~— (7) If the Authority determines on reasonable grounds that removing a mooring on a mooring site, or any part of the mooring, will have an adverse effect on the environment, the Authority may, by written notice given to the owner of the mooring and, if that person is not the owner, the mooring site licensee —~~

- ~~————— (a) — notify those persons that the mooring, or any part of the mooring, may not be removed; and~~
- ~~————— (b) — take possession of the mooring.~~
- ~~————— (8) — A mooring site licensee or owner of a mooring shall not remove, or cause to be removed, a mooring, or a part of a mooring, in respect of which a notice has been issued under subregulation (7).~~
- ~~————— Penalty: a fine of \$750.~~
- ~~————— (9) — No compensation is payable in respect of a mooring that is the subject of a notice under subregulation (7).~~
- ~~————— (10) — The Authority may, by written notice given to both mooring site licensees, approve the exchange of mooring sites between mooring site licensees if —~~
 - ~~————— (a) — the mooring sites are within the same mooring area; and~~
 - ~~————— (ba) — both mooring site licensees have paid the mooring exchange fee set out in Schedule 7 item 7B; and~~
 - ~~————— (b) — both mooring site licensees have complied with the directions of the Authority in respect of the exchange.~~
- ~~————— (11) — If the Authority approves the exchange of mooring sites under subregulation (10), it shall cause the register to be amended accordingly.~~
- ~~————— [Regulation 30 inserted in Gazette 4 Jul 1997 p. 3522-3; amended in Gazette 8 Dec 2009 p. 5003; 29 Jul 2011 p. 3145.]~~

~~31A. — Authorised user may use mooring site with licensee's consent~~

- ~~————— (1) — A person other than a mooring site licensee may occupy a mooring site at a particular time if the person —~~
 - ~~————— (a) — is an authorised user of that mooring site; and~~

~~**4.1**~~

~~————— (b) — has obtained the consent of the mooring site licensee to occupy the site at that time.~~

~~————— (2) — A vessel is authorised to be secured to a mooring on a mooring site if it is an authorised vessel for that mooring site.~~

~~————— [Regulation 31A inserted in Gazette 4 Dec 2009 p. 4921.]~~

~~**31B. — How licensee authorises person to be authorised user of mooring site**~~

~~————— (1) — A mooring site licensee may, in the approved form, authorise a person to be an authorised user of the licensee's mooring site.~~

~~————— (2) — The authorisation must specify a vessel that is to be the authorised user's authorised vessel for the mooring site (the **nominated vessel**), which vessel must comply with subregulation (4).~~

~~————— (3) — The authorised person must give the completed authorisation form, signed by the licensee and authorised user, to the Authority together with —~~

~~————— (a) — payment of —~~

~~————— (i) — the annual admission payment; and~~

~~————— (ii) — the annual authorised user payment set out in Schedule 7,~~

~~————— in respect of the nominated vessel for the year in which the authorisation is to take effect; and~~

~~————— (b) — if the nominated vessel has a length that is more than that of the longest vessel specified in the last mooring inspection report for the mooring — a mooring inspection report certifying that the mooring is suitable for the use of a vessel up to and including the specifications of the nominated vessel.~~

~~————— (4) — A vessel complies with this subregulation if —~~

~~————— (a) — the authorised person —~~

- ~~_____ (i) is named on the certificate of registration of the vessel as the owner of that vessel; or~~
- ~~_____ (ii) produces other evidence of ownership of the vessel satisfactory to the Authority;~~
- ~~_____ and~~
- ~~_____ (b) the vessel has adequate insurance cover.~~
- ~~— (5) On receipt of an authorisation form from a person in accordance with this regulation the Authority may record in the register —~~
 - ~~_____ (a) the person as an authorised user of the mooring site; and~~
 - ~~_____ (b) the nominated vessel as the person's authorised vessel for the mooring site;~~
- ~~_____ and if it does so must issue to the person an adhesive sticker identifying the vessel as the person's authorised vessel for that site.~~
- ~~_____ [Regulation 31B inserted in Gazette 4 Dec 2009 p. 4921 2.]~~

31C. ~~How Authority authorises person to be authorised user of mooring site~~

- ~~— (1) The Authority may, by written notice, authorise a person to be an authorised user of a mooring site.~~
- ~~— (2) The Authority must give a copy of the notice to the mooring site licensee.~~
- ~~— (3) The Authority must not authorise a person under subregulation (1) unless the person —~~
 - ~~_____ (a) has nominated a vessel that is to be the person's authorised vessel for the mooring site (the **nominated vessel**), which vessel must comply with regulation 31B(4); and~~
 - ~~_____ (b) has given to the Authority the payments and any documents required by regulation 31B(3) to be given with an authorisation form under that regulation.~~

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- ~~(4) When it authorises a person under subregulation (1) the Authority must—~~
- ~~(a) record in the register—~~
- ~~(i) the person as an authorised user of the mooring site; and~~
- ~~(ii) the nominated vessel as the person's authorised vessel for the mooring site;~~
- ~~and~~
- ~~(b) issue to the person an adhesive sticker identifying the vessel as the person's authorised vessel for that site.~~
- ~~[Regulation 31C inserted in Gazette 4 Dec 2009 p. 4922-3.]~~

31D. Changing authorised user's authorised vessel

- ~~(1) The Authority may, at the request of an authorised user of a mooring site, amend the register to change the person's authorised vessel for that site to another vessel that complies with regulation 31B(4).~~
- ~~(2) The Authority must issue to the person an adhesive sticker identifying the replacement vessel as the person's authorised vessel for that site.~~
- ~~[Regulation 31D inserted in Gazette 4 Dec 2009 p. 4923.]~~

31E. Annual payments by authorised users

- ~~(1) An authorised user must pay to the Authority in respect of the person's authorised vessel—~~
- ~~(a) the annual admission payment; and~~
- ~~(b) the annual authorised user payment set out in Schedule 7.~~
- ~~(2) The fees payable under subregulation (1)—~~
- ~~(a) are payable for each year commencing on 1 September; and~~

~~————— (b) — must be paid before the commencement of that year.~~

~~————— [Regulation 31E inserted in Gazette 4 Dec 2009 p. 4923.]~~

~~31F. — Revoking etc. authorisation given under r. 31B or 31C~~

~~————— (1) — An authorisation given by a mooring site licensee under regulation 31B —~~

~~————— (a) — may be revoked by the licensee by written notice given to the Authority;~~

~~————— (b) — may be cancelled by the Authority if —~~

~~————— (i) — the authorised user fails to make a payment required by regulation 31E; or~~

~~————— (ii) — the authorised user fails to comply with a direction under regulation 34(4); or~~

~~————— (iii) — the Authority is satisfied that the authorised user has committed an offence under the Act or these regulations;~~

~~————— (c) — expires if the mooring site licence for the site ceases to have effect.~~

~~————— (2) — An authorisation given by the Authority under regulation 31C —~~

~~————— (a) — may be revoked by the Authority by written notice to the authorised user;~~

~~————— (b) — expires if the licensee's mooring site licence ceases to have effect.~~

~~————— (3) — If an authorised user's authorisation is revoked, cancelled or expires the Authority —~~

~~————— (a) — must give written notice of that fact to the authorised user and mooring site licensee; and~~

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- ~~————— (b) — delete the authorised user from the register.~~
- ~~————— (4) — If an authorised person is deleted from the register, the Authority is not required to refund any annual admission payment or authorised user payment made by the person.~~
- ~~————— [Regulation 31F inserted in Gazette 4 Dec 2009 p. 4923-4; amended in Gazette 24 Jan 2014 p. 113-14.]~~

~~[31. — Deleted in Gazette 4 Dec 2009 p. 4921.]~~

~~32. — Term of licences; cancelling licences~~

- ~~————— (1) — Subject to these regulations, a mooring site licence has effect for a period expiring on 31 August next following the grant of the licence.~~
- ~~————— (2) — A mooring site licence ceases to have effect —~~
 - ~~————— (a) — on the death of the mooring site licensee; and~~
 - ~~————— (b) — upon receipt by the Authority of a written request from the mooring site licensee that the licence be cancelled; and~~
 - ~~————— (c) — upon cancellation of the licence by the Authority under subregulation (3); and~~
 - ~~————— (d) — subject to regulation 33, upon the expiration of the licence.~~
- ~~————— (3) — The Authority may, by written notice served on a mooring site licensee, cancel or refuse to renew the mooring site licence of the licensee if —~~
 - ~~————— (a) — the Authority is satisfied that —~~
 - ~~————— (i) — the mooring site licence was obtained by deception or fraud; or~~
 - ~~————— (ii) — the mooring site licensee has committed an offence under the Act or these regulations, or caused or permitted another person to do so; or~~

- ~~—— (iii) the mooring site licensee has failed to comply with a condition of the mooring site licence or caused or permitted another person to do so;~~
- ~~—— or~~
- ~~—— (b) the mooring site licensee has given notice under regulation 26(6) of the date of the sale or disposal of a licensed vessel and has not nominated a substitute vessel within 6 months of that date; or~~
- ~~—— (c) the mooring site licensee has failed to comply with a notice under regulation 34; or~~
- ~~—— (d) the mooring site licensee ——~~
 - ~~—— (i) does not have a mooring inspection report in respect of the mooring on the mooring site; or~~
 - ~~—— (ii) has failed to provide the mooring inspection report to the Authority under regulation 28;~~
- ~~—— or~~
- ~~—— (e) the Authority considers that it is in the public interest or in the best interests of good management of the waters of the Island to do so.~~
- ~~—— (4) If the Authority cancels or refuses to renew a mooring site licence under subregulation (3)(e), the Authority may, despite regulation 22(1)(a), offer under that regulation to the mooring site licensee another mooring site that is available for allocation.~~
- ~~—— [Regulation 32 inserted in Gazette 4 Jul 1997 p. 3524 5.]~~

~~33. Renewing licences~~

- ~~—— (1) The Authority may, on application by the licensee for renewal and subject to regulation 32(3), renew a mooring site licence from time to time for a period of 12 months.~~
- ~~—— (2) A renewal of a licence takes effect from the day next succeeding the day of its expiry.~~

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- ~~— (3) An application for renewal shall be —~~
- ~~— (a) made by the mooring site licensee in the approved form within one month before, or within one month after, the expiry of the licence; and~~
- ~~— (b) accompanied by —~~
- ~~— (i) the annual mooring site licence fee set out in Schedule 7; and~~
- ~~— (ii) the annual admission fee in respect of the licensed vessel and each additional vessel of the licensee.~~

~~— [Regulation 33 inserted in Gazette 4 Jul 1997 p. 3525-6.]~~

~~34. Directions to licensees by Authority~~

- ~~— (1) The Authority may, if it satisfied that a mooring does not comply with the approved mooring specifications, by written notice served on the relevant mooring site licensee, direct that licensee to obtain a fresh mooring inspection report in respect of the mooring within the period specified in the notice and at the licensee's expense.~~
- ~~— (2) The Authority may give a direction under subregulation (1) notwithstanding that the mooring site licensee already has a mooring inspection report in respect of the mooring.~~
- ~~— (3) The Authority may, by written notice served on a mooring site licensee, direct the licensee to provide to the Authority, within the period specified in the notice, evidence satisfactory to the Authority that —~~
- ~~— (a) the licensee meets all or any of the requirements of an applicant under regulation 20(3)(b); or~~
- ~~— (b) a licensed vessel of the licensee is a suitable vessel; or~~
- ~~— (c) the licensee meets the ownership requirements of these regulations in respect of a licensed or additional vessel of the licensee.~~

- ~~— (4) The Authority may, by written notice served on an authorised user direct the authorised user to provide to the Authority, within the period specified in the notice, evidence satisfactory to the Authority that the person's authorised vessel complies with regulation 31B(4).~~

~~— [Regulation 34 inserted in Gazette 4 Jul 1997 p. 3526; amended in Gazette 4 Dec 2009 p. 4924.]~~

~~35. Rebates of fees etc. in some cases~~

- ~~— The Authority may, on granting a mooring site licence, or on registering an authorised user, allow a rebate (to be calculated on a pro rata basis) of any fee, annual admission payment or annual authorised user payment where the mooring site licence, annual admission payment or annual authorised user payment will be of effect for a period of less than 6 months.~~

~~— [Regulation 35 inserted in Gazette 4 Jul 1997 p. 3526; amended in Gazette 27 Jun 2003 p. 2407; 4 Dec 2009 p. 4924.]~~

~~35A. Net worth of vessel, disputes as to~~

- ~~— If there is a dispute as to the net worth of a vessel between the Authority and a person claiming to be the owner of at least 25% of the net worth of the vessel, the Authority shall accept an independent valuation by a valuer nominated by the President of the Institute of Valuers.~~

~~— [Regulation 35A inserted in Gazette 4 Jul 1997 p. 3526.]~~

~~35B. Notices may be affixed to vessel etc.~~

- ~~— Without limiting sections 75 and 76 of the Interpretation Act 1984, a notice or direction may be given by the Authority under these regulations —~~

- ~~— (a) to a mooring site licensee by affixing it to the licensee's licensed or additional vessel; and~~

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~~———— (b) — to an authorised user by affixing it to the person's authorised vessel.~~

~~———— [Regulation 35B inserted in Gazette 4 Jul 1997 p. 3526; amended in Gazette 4 Dec 2009 p. 4924-5.]~~

~~[Division 4 (r. 35C-35G) deleted in Gazette 25 Oct 2011 p. 4513.]~~

Part 5 — General management

Division 1 — Control and regulation of access

36. — Restricted areas, protected areas and closed tracks etc.

~~———— (1) — A person shall not, without permission —~~

~~———— (a) — be in an area of the Island specified in Schedule 2 (in this regulation called a *restricted area*); or~~

~~———— (b) — be in a protected area for the time being set aside under subregulation (3); or~~

~~———— (c) — use a track or path that is for the time being closed under subregulation (4).~~

~~———— Penalty: a fine of \$750.~~

~~———— (2) — The powers in subregulations (3) and (4) may only be exercised for the purpose of protecting the safety of persons within the limits of the Island or protecting or repairing the natural environment, fauna or flora or man-made resources of the Island.~~

~~———— (3) — The Authority may by the erection or establishment of signs and fencing set aside an area as a protected area for the purposes of this regulation.~~

~~———— (4) — The Authority may by the erection or establishment of signs close a track or path to pedestrians or vehicles or to both.~~

~~———— (5) — Sufficient signs shall be erected and maintained by the Authority in or in the vicinity of a restricted area, a protected area or a track or path that is closed under this regulation~~

~~indicating that entry to that area or use of that track or path, as the case may be, is prohibited without permission.~~

- ~~— (6) The inscription on a sign erected under this regulation operates according to its tenor.~~
- ~~— (7) It is a defence to a charge of an offence under subregulation (1) for a person to show that entry to a restricted area or a protected area or use of a track or path without permission was necessary to prevent or mitigate injury to a person or damage to property.~~
- ~~— [Regulation 36 amended in Gazette 9 Nov 1990 p. 5590; 8 Dec 2009 p. 5003; 17 Dec 2010 p. 6361.]~~

Division 1A — Vessels

~~— [Heading inserted in Gazette 4 Jul 1997 p. 3529.]~~

36A. — Mooring vessels to land; beach anchors

- ~~— A person shall not —~~
- ~~— (a) secure a vessel to a fence or other land-based structure that is not designed principally for the purpose of securing vessels; or~~
- ~~— (b) use any apparatus as a beach anchor unless that apparatus is designed principally for use as a beach anchor.~~
- ~~— Penalty: a fine of \$750.~~
- ~~— [Regulation 36A inserted in Gazette 4 Jul 1997 p. 3529; amended in Gazette 8 Dec 2009 p. 5003.]~~

37. — Beaching vessels in some circumstances

- ~~— (1) A person shall not, without permission —~~
- ~~— (a) beach a vessel; or~~
- ~~— (b) anchor a vessel by placing the anchor on a beach,~~

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~~in Thomson Bay, Longreach Bay or Geordie Bay, during any period when there is a permitted area in that Bay, except in such a permitted area.~~

~~Penalty: a fine of \$750.~~

~~(2) In subregulation (1) —~~

~~(a) in paragraph (b) **beach** includes any part of the foreshore that is above the low water mark whether it is covered by water or not; and~~

~~(b) **permitted area** means an area that is between 2 signs for the time being, erected or established by the Authority and inscribed with words indicating that the beaching or beach anchoring of vessels is permitted and each having an arrow pointing generally towards the other sign.~~

~~(3) The Authority may, if it is satisfied that a vessel is beached or anchored in contravention of subregulation (1), direct the owner or person in charge, or apparently in charge, or a user of the vessel to remove immediately the vessel from the place where it is beached or anchored.~~

~~(4) A person given a direction under subregulation (3) shall comply with the direction.~~

~~Penalty: a fine of \$750.~~

~~(5) If —~~

~~(a) a person to whom a direction is given under subregulation (3) fails to comply with the direction; or~~

~~(b) a vessel beached or anchored in contravention of subregulation (1) is unattended;~~

~~the Authority may —~~

~~(c) cause the vessel to be removed to a place where the beaching or beach anchoring of vessels is permitted; or~~

~~(d) take possession of the vessel and deal with it as if the vessel were abandoned and, for that purpose, if the~~

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~~direction under subregulation (3) is given in writing, that
direction shall be taken to be a notice given under
regulation 74(2)(b).~~

~~[Regulation 37 amended in Gazette 4 Jul 1997 p. 3529-30;
8 Dec 2009 p. 5004.]~~

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~~38. Boats on lakes~~

~~— A person shall not, without permission, have or use a boat on any lake on the Island.~~

~~— Penalty: \$300.~~

~~38A. Speed restrictions for vessels~~

~~— (1) The Authority may, by notice published in the *Gazette*, limit the speed of any specified class or classes of vessel in any area of the waters of the Island defined in the notice.~~

~~— (2) The Authority may vary or cancel a notice under this regulation.~~

~~— (3) A person shall not drive a vessel in an area defined in a notice under subregulation (1) at a speed exceeding the limit specified for a vessel of that class in the notice.~~

~~— Penalty: \$1 000.~~

~~— [Regulation 38A inserted in *Gazette* 4 Jul 1997 p. 3530.]~~

~~38BA. Restricting use of certain vessels to specified areas~~

~~— (1) The Authority may, by notice published in the *Gazette*, define and set aside any area of the waters of the Island as an area in which vessels of a specified class may be used.~~

~~— (2) The Authority may, in the notice, impose conditions on the use of vessels of that class in that area.~~

~~— (3) If a notice has been made under this regulation in respect of a class of vessels, a person must not use a vessel of that class in the waters of the Island unless the person does so —~~

~~— (a) in the area set aside by the notice; and~~

~~— (b) in accordance with any conditions specified in the notice.~~

~~— Penalty: \$1 000.~~

~~— [Regulation 38BA inserted in *Gazette* 4 Dec 2009 p. 4925.]~~

~~38B. Areas may be set aside for specified vessels~~

- ~~— (1) The Authority may, by notice published in the *Gazette*, define and set aside any area of the waters of the Island as an area in which vessels other than those of a specified class cannot be used.~~
- ~~— (2) The Authority may, in the notice, impose conditions on the use of vessels of the specified class in that area.~~
- ~~— (3) If a notice has been made under this regulation in respect of an area, a person must not use a vessel in that area unless —~~
 - ~~— (a) the vessel is of the class specified in the notice; and~~
 - ~~— (b) the person does so in accordance with any conditions specified in the notice.~~

~~— Penalty: \$1 000.~~

~~— [Regulation 38B inserted in Gazette 4 Dec 2009 p. 4925.]~~

~~38C. Sullage from vessels~~

- ~~— (1) In this regulation —~~
 - ~~— ***liquid waste*** means faecal matter or urine and any waste composed wholly or in part of liquid;~~
 - ~~— ***sullage*** means liquid waste from bathrooms, laundries and galleys including floor waste from those sources.~~
- ~~— (2) A person shall not discharge or deposit within the limits of the Island any sullage from a vessel other than by means of an approved treatment system.~~

~~— Penalty: \$1 000.~~

~~— [Regulation 38C inserted in Gazette 4 Jul 1997 p. 3531.]~~

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Division 2 — Protection of flora, fauna, etc.

39. — Flora etc., protection of

~~— (1) A person shall not without permission or under the authority of a written law injure, destroy or take any flora living or dead within the limits of the Island or remove any stake supporting, or any label on or near, any such flora.~~

~~— Penalty: \$1 000.~~

~~— (2) In subregulation (1) —~~

~~— (a) *flora* means any form of plant life, and any part or seeds or spores of such flora;~~

~~— (b) *take* includes gather, pluck, cut, pull up and dig up.~~

40. — Fauna, protection of

~~— (1) A person shall not without permission or under the authority of a written law —~~

~~— (a) interfere with, take or destroy any fauna within the limits of the Island; or~~

~~— (b) interfere with or destroy any nest, spawning ground or habitat of any such fauna.~~

~~— Penalty: \$1 000.~~

~~— (2) Subregulation (1) does not apply to —~~

~~— (a) the taking of fish in accordance with the *Fisheries Act 1905*³; or~~

~~— (b) the removal or destruction of feral or stray animals or birds.~~

~~— (3) In this regulation —~~

~~— *fauna* means any living thing that is not a human being or a plant and includes the eggs and immature stages of fauna; and~~

~~— *fish* means any marine or fresh water fish or crustacean or any other form of marine animal life.~~

~~41. No animal or bird to be landed on Island~~

- ~~— (1) A person shall not without permission cause or allow any animal or bird to enter within the limits of the Island.~~
- ~~— Penalty: \$1 000~~
- ~~— (2) Nothing in this regulation applies to fauna that is indigenous to the Island, whether seasonally or otherwise.~~
- ~~— (3) A ranger may take and destroy any animal or bird that he believes to be within the limits of the Island as a result of a contravention of this regulation.~~

~~41A. Fauna, feeding of~~

- ~~— (1) The Authority may by resolution determine that the feeding of fauna of a kind specified in the resolution is prohibited within the limits of the Island.~~
- ~~— (2) A person shall not feed fauna in respect of which a resolution has been made under subregulation (1) within the limits of the Island if the Authority has —~~
 - ~~— (a) erected signs on the Island notifying the public that feeding fauna of that kind is prohibited; or~~
 - ~~— (b) otherwise notified that person that the feeding of fauna of that kind is prohibited.~~
- ~~— Penalty: a fine of \$750.~~
- ~~— [Regulation 41A inserted in Gazette 4 Jul 1997 p. 3531; amended in Gazette 8 Dec 2009 p. 5004.]~~

~~41B. No flora to be brought to Island~~

- ~~— (1) In this regulation —~~
- ~~— *flora* means any form of, or any part of, plant life or a fungus, but does not include anything intended for human consumption.~~

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~~(2) A person must not without permission cause or allow any flora to be brought within the limits of the Island.~~

~~Penalty: a fine of \$1 000.~~

~~(3) A ranger may take and destroy any flora that the ranger believes to be within the limits of the Island as a result of a contravention of this regulation.~~

~~[Regulation 41B inserted in Gazette 25 Oct 2011 p. 4513-14.]~~

~~**42. Rocks and soil, protection of**~~

~~(1) A person shall not without permission cause damage to the Island by~~

~~(a) removing, damaging, interfering with, or marking any rock; or~~

~~(b) removing or displacing any soil,~~

~~within the limits of the Island.~~

~~Penalty: a fine of \$750.~~

~~(2) Nothing in subregulation (1) applies to things done in the reasonable use and enjoyment of the Island.~~

~~[Regulation 42 amended in Gazette 8 Dec 2009 p. 5004.]~~

~~**Division 3—Vehicles**~~

~~**43. Application of road laws**~~

~~(1) For the avoidance of doubt it is declared that~~

~~(a) a road on the Island is a road as defined in the *Road Traffic (Administration) Act 2008* section 4; and~~

~~(b) each road law as defined in that section applies on the Island, subject to these regulations and so far as the circumstances will allow, in the same way as it applies in other parts of the State.~~

- ~~— (2) Nothing in this regulation shall have the effect of prohibiting the use on roads on the Island of any wheeled vehicle that is designed to be propelled solely by human power.~~

~~— [Regulation 43 amended in Gazette 8 Jan 2015 p. 150.]~~

~~44. Traffic signs and directions~~

- ~~— (1) The Authority may erect or establish any traffic sign, that is a sign, mark, structure or device for the purpose of prohibiting, regulating or controlling the use, standing or parking of vehicles on the Island.~~

- ~~— (2) The inscription on a traffic sign operates according to its tenor.~~

- ~~— (3) A person shall comply with —~~

~~— (a) the inscription on a traffic sign erected or established under subregulation (1); or~~

~~— (b) a signal or direction by a ranger as to the use, parking or movement of a vehicle that is addressed to him and that is reasonably required for the regulation of traffic.~~

~~— Penalty: a fine of \$750.~~

~~— [Regulation 44 amended in Gazette 8 Dec 2009 p. 5004.]~~

~~45. Restriction on bringing vehicles to Island~~

- ~~— (1) A person shall not, without permission, bring on to the Island any vehicle other than —~~

~~— (a) a bicycle; or~~

~~— (b) a wheelchair designed to be propelled solely by human power, or a motorised wheelchair that is designed so as to be not capable of a speed exceeding 10 km/h, for the exclusive use of a person whose physical condition requires the use of a wheelchair.~~

~~— Penalty: \$1 000.~~

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- ~~— (2) A ranger may —~~
- ~~— (a) require a person to remove from the Island within a specified time any vehicle brought on to the Island in contravention of subregulation (1); and~~
- ~~— (b) if such a requirement is not complied with, remove the vehicle from the Island.~~
- ~~— (3) A person shall comply with a requirement made of him under subregulation (2)(a).~~
- ~~— Penalty: \$1 000.~~
- ~~— (4) A ranger may do all such things as may be reasonably necessary to remove a vehicle under subregulation (2)(b) including breaking into, driving, or towing it, and neither he, nor the Authority, shall be liable for any loss of or damage to the vehicle which occurs without negligence or wilful misconduct on his part.~~
- ~~— (5) The Authority may, in a court of competent jurisdiction, recover from the owner of a vehicle all costs and expenses reasonably incurred in removing a vehicle under this regulation and any person may, on the instructions of a ranger, refuse to deliver possession of the vehicle to the owner until such costs and expenses are paid.~~
- ~~— [Regulation 45 amended in Gazette 19 Jun 1998 p. 3303; 25 Oct 2011 p. 4514; 24 Jan 2014 p. 114.]~~

~~46. Use of vehicles~~

- ~~— (1) A person shall not, without permission, use a vehicle on the Island.~~
- ~~— Penalty: \$1 000.~~
- ~~— (2) In subregulation (1) **vehicle** does not include a wheelchair as referred to in regulation 45(1)(b) or a bicycle.~~
- ~~— [Regulation 46 amended in Gazette 25 Oct 2011 p. 4514; 24 Jan 2014 p. 114.]~~

~~47. — Speed restrictions for vehicles~~

- ~~(1) — A person shall not drive or ride a vehicle at a speed exceeding —~~
- ~~— (a) — 20 km per hour, within the settlement; or~~
- ~~— (b) — 40 km per hour outside the settlement;~~
- ~~— and the Authority has no power under regulation 44 to authorise any higher speed limit.~~
- ~~— Penalty: \$1 000.~~
- ~~(2) — Subregulation (1) does not justify the driver of a vehicle driving at a speed that may constitute driving carelessly, recklessly or at a speed, or in a manner, that is dangerous to the public, having regard to all the circumstances.~~
- ~~(3) — In subregulation (1) **settlement** has the meaning assigned to it by section 14(3) of the Act.~~

~~48. — Motor vehicles to give way~~

- ~~(1) — The driver of a motor vehicle on a road on the Island shall give way to other road users.~~
- ~~— Penalty: \$1 000.~~
- ~~(2) — In subregulation (1) —~~
- ~~— **other road users** means pedestrians and any person riding or using a bicycle.~~
- ~~(3) — The requirement to give way takes effect in the circumstances described in regulation 7 of the *Road Traffic Code 2000* and is to be complied with as described in that regulation.~~
- ~~— [Regulation 48 amended in Gazette 7 Dec 2001 p. 6189; 24 Jan 2014 p. 114.]~~

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~~49. Vehicles on beaches~~

~~— A person shall not, without permission, drive a motor vehicle on any beach of the Island.~~

~~— Penalty: \$1 000.~~

~~50. Emergency vehicles~~

~~— (1) Notwithstanding anything in these regulations the driver of an emergency vehicle may, in the course of his duties and when it is expedient and safe to do so —~~

~~— (a) stop, stand or park the vehicle at any place and at any time; or~~

~~— (b) exceed the speeds prescribed by regulation 47.~~

~~— (2) In subregulation (1) *emergency vehicle* means a motor vehicle being used in connection with —~~

~~— (a) urgent police duties;~~

~~— (b) the fighting of fire or the answering of a fire call;~~

~~— (c) assistance to a sick or injured person;~~

~~— (d) any other emergency in which human life is reasonably believed by the driver of the vehicle to be in danger.~~

~~51. Possession of hired bicycles~~

~~— (1) A person shall not be in possession of —~~

~~— (a) a hired bicycle without the consent of the hirer; or~~

~~— (b) any other bicycle without the consent of the owner or person lawfully in charge of the same.~~

~~— Penalty: a fine of \$750.~~

~~— (2) In subregulation (1) *hired bicycle* means a bicycle for the time being let out on hire —~~

~~— (a) by the Authority in the course of operating a business of hiring bicycles; or~~

- ~~— (b) by any person in the course of operating such a business under an arrangement made with the Authority.~~
- ~~— (3) Subregulation (1) does not apply to a ranger acting in the course of duty.~~
- ~~— [Regulation 51 amended in Gazette 4 Jan 2013 p. 23;
24 Jan 2014 p. 114.]~~

Division 4 — Control of certain activities

52. — Erection of structures and tents

- ~~— (1) A person shall not without permission erect any structure within the limits of the Island.~~
- ~~— Penalty: \$1 000.~~
- ~~— (2) A person shall not without permission erect a tent within the limits of the Island except on a site in the camping ground and in accordance with a licence granted under regulation 8.~~
- ~~— Penalty: a fine of \$750.~~
- ~~— (3) The Authority may remove and dispose of any structure or tent that has been erected in contravention of subregulation (1) or (2).~~
- ~~— (4) The cost incurred by the Authority under subregulation (3) is a debt due to the Authority by a person who is shown to have erected the structure or tent and is recoverable in a court of competent jurisdiction.~~
- ~~— (5) In this regulation **structure** means a building and any other thing that is fixed to land or to anything that is fixed to land.~~
- ~~— [Regulation 52 amended in Gazette 8 Dec 2009 p. 5004.]~~

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~~**53. Organized events and meetings**~~

- ~~(1) A person shall not without permission organize, advertise or participate in —~~
- ~~(a) any fete, concert, picnic or spectator event within the limits of the Island; or~~
- ~~(b) any race, game or sporting event that is of a dangerous nature, is likely to constitute an inconvenience or annoyance to persons, or affect the natural surface of the Island; or~~
- ~~(c) any public meeting or public speaking within the limits of the Island.~~
- ~~Penalty: \$1 000.~~
- ~~(2) Nothing in subregulation (1)(a) applies to persons recreating as a family or group of families.~~

~~**54. Photography for commercial purposes**~~

- ~~A person shall not, without permission take still or motion pictures within the limits of the Island by photographic or electronic means if the pictures are to be used for advertising or promotional purposes.~~
- ~~Penalty: a fine of \$750.~~
- ~~[Regulation 54 amended in Gazette 9 Nov 1990 p. 5590; 8 Dec 2009 p. 5004.]~~

~~**55. Bill sticking, advertising etc.**~~

- ~~(1) A person shall not without permission —~~
- ~~(a) post, stick, stamp, stencil or otherwise affix any notice, handbill, placard, advertisement, paper or other document on or to any rock, tree, fence, post, gate, wall, pavement, road, footway, or building or other structure within the limits of the Island; or~~

- ~~— (b) write, draw or paint on or deface any rock, tree, fence, post, gate, wall, pavement, road, footway, or building or other structure within the limits of the Island; or~~
- ~~— (c) cause any of the acts prohibited by paragraph (a) or (b) to be done by any person.~~

~~— Penalty: a fine of \$750.~~

- ~~— (2) Nothing in subregulation (1)(a) applies to the use of a notice board set up by the Authority for public use.~~

~~— [Regulation 55 amended in Gazette 8 Dec 2009 p. 5004.]~~

~~56. Distribution of printed matter~~

- ~~— (1) A person shall not without permission sell or distribute or carry or expose for sale or distribution within the limits of the Island any printed or written matter.~~

~~— Penalty: a fine of \$750.~~

- ~~— (2) It is immaterial for the purposes of subregulation (1) that any matter is distributed or carried or exposed for distribution free of charge.~~

~~— [Regulation 56 amended in Gazette 8 Dec 2009 p. 5005.]~~

~~57. Unauthorised sale etc. of goods or services~~

~~— A person shall not within the limits of the Island, without permission, sell, offer or expose for sale, or provide by way of sale, any goods or services.~~

~~— Penalty: a fine of \$750.~~

~~— [Regulation 57 inserted in Gazette 9 Nov 1990 p. 5590; amended in Gazette 8 Dec 2009 p. 5005.]~~

~~58. Exception to r. 55 and 56~~

~~— Regulations 55 and 56 do not apply to any person, or the agent or employee of any person with whom the Authority has made~~

~~**4.1**~~

~~an arrangement under section 13(d) of the Act so far as he, or his agent or employee, is acting in accordance with that arrangement.~~

~~**59. Weapons etc.**~~

~~(1) A person shall not without permission —~~

~~(a) carry or discharge any firearm, speargun, gidgie or any other offensive weapon, device or means for the taking of fauna;~~

~~(b) throw or release any missile or dangerous object or material of any kind;~~

~~(c) carry, make or set any trap or snare for any fauna,~~

~~within the limits of the Island.~~

~~Penalty: \$1 000.~~

~~(2) A person shall not without permission have any explosive device in his possession, or discharge an explosive device, within the limits of the Island.~~

~~Penalty: \$1 000.~~

~~(3) In subregulation (1) **fauna** has the meaning assigned to it by regulation 40(3).~~

~~(3a) In subregulation (2) —~~

~~**explosive device** includes a marine flare.~~

~~(4) Nothing in this regulation applies to —~~

~~(a) a speargun or gidgie that is carried in waters of the Island in which the speargun or gidgie may be used under the *Fisheries Act 1905*³; or~~

~~(b) the carrying or use of a firearm by a police officer in the course of duty; or~~

~~(c) the carrying of a marine flare in the waters of the Island; or~~

~~— (d) the discharge of a marine flare in the waters of the Island in the case of an emergency, or where a vessel is in distress and requires assistance.~~

~~— [Regulation 59 amended in Gazette 4 Jul 1997 p. 3531;
7 Dec 2001 p. 6189.]~~

~~60. Fires~~

~~— (1) A person shall not without permission light make or use a fire on the Island other than in —~~

~~— (a) a gas cooking stove; or~~

~~— (b) an indoor fireplace provided by the Authority.~~

~~— Penalty: \$1 000.~~

~~— (2) Nothing in subregulation (1) shall be read as authorising a person to light a fire in an open fireplace in contravention of the *Bush Fires Act 1954*.~~

~~— [Regulation 60 amended in Gazette 4 Jul 1997 p. 3532.]~~

~~60A. Sandboarding~~

~~— (1) A person shall not use a board or other object to slide down sandhills on the Island.~~

~~— Penalty: \$1 000.~~

~~— (2) A person shall not possess a sandboard on the Island.~~

~~— Penalty: a fine of \$750.~~

~~— (3) In this regulation —~~

~~— **sandboard** means a board designed to be used for sliding down a slope of land.~~

~~— [Regulation 60A inserted in Gazette 4 Jul 1997 p. 3532;
amended in Gazette 8 Dec 2009 p. 5005.]~~

~~4.1~~

~~60B. — Litter~~

~~(1) A person shall not deposit litter, or cause litter to be deposited, within the limits of the Island unless the litter is deposited in a place or receptacle set aside or provided for that purpose.~~

~~Penalty: \$1 000.~~

~~(2) In this regulation —~~

~~*litter* has the same meaning as in the *Litter Act 1979*.~~

~~[Regulation 60B inserted in Gazette 4 Jul 1997 p. 3532.]~~

~~Division 5 — Protection of certain undertakings~~

~~61. — Water supply facilities, protection of~~

~~(1) A person shall not throw, deposit or leave any refuse or any noxious or polluting substance or thing —~~

~~(a) in any —~~

~~(i) reservoir or tank that holds or is intended to hold water for human consumption or use on the Island; or~~

~~(ii) pipe, conduit or fitting through which such water is passed or intended to be passed; or~~

~~(iii) pit, manhole or other structure containing valves, meters, fittings or connections for the distribution of such water;~~

~~or~~

~~(b) on any water catchment area on the Island.~~

~~Penalty: \$1 000.~~

~~(2) A person shall not swim, bathe or wash in any reservoir or tank containing water stored for human consumption or use on the Island.~~

~~Penalty: \$1 000.~~

- ~~— (3) — In subregulation (1) ***water catchment area*** means any area within which surface water is collected into a storage reservoir or tank for human consumption or use and —~~
- ~~— (a) — which is by order of the Authority published in the *Gazette* declared to be a water catchment area for the purposes of that subregulation; and~~
- ~~— (b) — in or in the vicinity of which there are sufficient signs indicating to the public that the area is a water catchment area.~~

~~62. — Electricity and gas supply facilities, protection of~~

- ~~— A person shall not, without permission —~~
- ~~— (a) — draw electricity or gas from the Authority's supply; or~~
- ~~— (b) — remove, or interfere with, any component of, or appliance or fitting attached to, the Authority's system for gas or electricity supply, street lighting, or sewerage disposal; or~~
- ~~— (c) — put gas or electricity, or any appliance or fitting attached to the Authority's system for the supply of gas or electricity, to any use other than that for which it was provided or installed; or~~
- ~~— (d) — attempt to replace or repair any appliance or fitting installed by the Authority that has become unserviceable or ineffectual.~~
- ~~— Penalty: \$1 000.~~

Part 6 — Rottnest aerodrome

~~63. — Terms used~~

- ~~— In this Part, unless the contrary intention appears —~~
- ~~— ***aerodrome*** means that part of the Island described in Schedule 3;~~

~~4.1~~

~~— **aircraft** means any machine or craft that can derive support in the atmosphere from reaction with the air.~~

~~64. Use and closure of aerodrome~~

~~— (1) Subject to this regulation, the aerodrome may be used for the landing, servicing and departure of aircraft, the embarkation and disembarkation of passengers and the transport of freight.~~

~~— (2) The Authority may close the aerodrome to aircraft movements if it considers the surface of the aerodrome to be unsafe.~~

~~— (3) A person in control of an aircraft shall not land at or depart from the aerodrome while it is closed under subregulation (2).~~

~~— Penalty: \$1 000.~~

~~65. Access to aerodrome~~

~~— (1) A person shall not without permission be within the limits of the aerodrome, except within the terminal building, unless he is authorised by subregulation (2).~~

~~— Penalty: \$1 000.~~

~~— (2) A person is authorised for the purposes of subregulation (1) if he —~~

~~— (a) is required to be within the aerodrome in the course of his employment, trade or business; or~~

~~— (b) is a passenger on, an intending passenger embarking on, or a person who has disembarked from, an aircraft lawfully using the aerodrome.~~

~~66. Aircraft landings etc. restricted to aerodrome~~

~~— (1) Except in an emergency, a person in control of an aircraft shall not without permission —~~

~~— (a) land or touch down the aircraft within the limits of the Island except on the aerodrome; or~~

~~— (b) take off or ascend from any part of the Island except the aerodrome.~~

~~Penalty: \$1 000.~~

~~(2) In subregulation (1) **aircraft** includes a hang-glider and a balloon.~~

67. Parking of aircraft

~~(1) The Authority may erect or establish any sign, mark, structure or device for the purpose of prohibiting, regulating or controlling the standing or parking of aircraft within the aerodrome, and the inscription on any such sign operates according to its tenor.~~

~~(2) A person shall comply with the inscription on a sign erected or established under subregulation (1).~~

~~Penalty: \$1 000.~~

68. Removing certain persons from aerodrome

~~(1) An authorised person may remove from the aerodrome and may refuse admission to, any person, whether or not a passenger or intending passenger, whom he considers to be under the influence of liquor, drugs or other substance so as to make his presence within the aerodrome dangerous to himself or others or offensive to others or otherwise undesirable.~~

~~(2) In subregulation (1) **authorised person** means a ranger or person employed by the Authority to manage or assist in the operation of the aerodrome.~~

~~[Regulation 68 amended in Gazette 15 Oct 2010 p. 5176.]~~

Part 7 — Offensive behaviour

69. Damage to property

~~A person shall not without authority destroy or damage any building or other structure within the limits of the Island or any property owned by or under the control and management of the~~

~~4.1~~

~~Authority, a public utility, or any person carrying on business on the Island.~~

~~Penalty: \$1 000.~~

~~[Regulation 69 amended in Gazette 4 Jul 1997 p. 3532.]~~

~~70. Assaults, indecent language, offensive behaviour etc.~~

~~(1) A person shall not within the limits of the Island —~~

~~(a) unlawfully assault any person; or~~

~~(b) use indecent, obscene, threatening, abusive or insulting language; or~~

~~(c) do or engage in any offensive, indecent or improper act, conduct or behaviour; or~~

~~(d) act in such a way as to cause a nuisance or annoyance to persons within the limits of the Island.~~

~~Penalty: \$1 000.~~

~~(2) In subregulation (1)(a) **assault** and **unlawfully** have the respective meanings assigned to them by sections 222 and 223 of *The Criminal Code*.~~

~~(3) A person shall not write, draw, print, publish, record, broadcast, distribute, or otherwise disseminate within the limits of the Island any indecent or obscene matter of any kind.~~

~~Penalty: \$1 000.~~

~~[Regulation 70 amended in Gazette 4 Jul 1997 p. 3532-3.]~~

~~71. Unreasonable noise~~

~~A person shall not without permission, by the use of any electronic, mechanical or other instrument or machine or by natural means within the limits of the Island cause or produce a noise that unreasonably interferes with the convenience, comfort or amenity of any person.~~

~~Penalty: \$1 000.~~

~~[Regulation 71 amended in Gazette 4 Jul 1997 p. 3533.]~~

72. ~~Liquor not to be consumed at Kingstown Barracks~~

~~(1) In this regulation —~~

~~**Kingstown Barracks Restricted Alcohol Consumption Area**
means the area bounded by —~~

~~(a) a line between coordinates 115°33'14.658"E
32°0'14.009"S and 115°33'16.745"E 32°0'16.137"S; and~~

~~(b) a line between coordinates 115°33'16.745"E
32°0'16.137"S and 115°33'11.719"E 32°0'19.547"S; and~~

~~(c) a line between coordinates 115°33'11.719"E
32°0'19.547"S and 115°33'9.742"E 32°0'17.035"S; and~~

~~(d) a line between coordinates 115°33'9.742"E
32°0'17.035"S and 115°33'14.658"E 32°0'14.009"S; and~~

~~which area is represented in the plan in Schedule 4A.~~

~~(2) A person must not, without permission, consume liquor at
Kingstown Barracks Restricted Alcohol Consumption Area.~~

~~Penalty: a fine of \$1 000.~~

~~[Regulation 72 inserted in Gazette 25 Oct 2011 p. 4514-15.]~~

72AA. ~~Ranger may direct person to stop activity~~

~~(1) A ranger may direct a person within the limits of the Island to
cease any behaviour that is —~~

~~(a) causing a disturbance or annoyance to other persons or,
in the opinion of the ranger, disorderly or offensive; or~~

~~(b) in the opinion of the ranger, dangerous.~~

~~(2) A person must comply with a direction of a ranger under this
regulation.~~

~~Penalty: a fine of \$1 000.~~

~~[Regulation 72AA inserted in Gazette 17 Dec 2010 p. 6361.]~~

~~r.1~~

Part 8—Miscellaneous

72A. Adequate insurance cover, specification of

- ~~— (1) The Authority may, by notice published in the *Gazette* —~~
 - ~~— (a) specify, in relation to any class or classes of vessel —~~
 - ~~— (i) the type of insurance; and~~
 - ~~— (ii) the amount of indemnity provided by that insurance,~~
 - ~~— that is adequate insurance cover for the purposes of these regulations; and~~
 - ~~— (b) exempt any vessel, class or classes of vessel from the operation of any of these regulations to the extent that the regulation requires the vessel to have adequate insurance cover.~~
- ~~— (2) An exemption under subregulation (1)(b) —~~
 - ~~— (a) is subject to such conditions and restrictions as the Authority may specify in the notice of exemption; and~~
 - ~~— (b) has effect according to its tenor.~~
- ~~— (3) If the conditions or restrictions to which an exemption is subject are breached, the exemption ceases to have effect.~~
- ~~— (4) The Authority may vary or revoke a notice under subregulation (1).~~
- ~~— (5) A person shall not bring a vessel within the limits of the Island, or allow a vessel to remain within the limits of the Island, unless the vessel has adequate insurance cover.~~
 - ~~— Penalty: a fine of \$750.~~
- ~~— (6) For the purposes of subregulation (5), any person on a vessel (other than a vessel on which persons are usually carried for reward) is taken to allow the vessel to remain within the limits~~

~~of the Island unless the person shows to the satisfaction of the Authority that—~~

~~(a) the person does not have responsibility for the vessel;
and~~

~~(b) another person is properly responsible for the vessel.~~

~~[Regulation 72A inserted in Gazette 4 Jul 1997 p. 3533-4;
amended in Gazette 19 Jun 1998 p. 3303; 8 Dec 2009 p. 5005.]~~

~~73. Infringement notices~~

~~(1) The offences created by a provision of these regulations specified in column 2 of table set out in Schedule 4 are the offences to which a modified penalty under section 42 of the Act applies.~~

~~(2) Forms 2 and 3 in Schedule 1 are prescribed for the purposes of subsections (1) and (6) respectively of section 42 of the Act.~~

~~74. Abandoned or dangerous property, removal of~~

~~(1) Subject to this regulation, the Authority may take possession of any property within the limits of the Island if—~~

~~(a) the Authority has reasonable grounds to believe that it has been abandoned, is derelict or constitutes a danger to persons or property or an environmental risk; or~~

~~(b) a notice under subregulation (2)(b) relating to that property has not been complied with.~~

~~(2) Before exercising the power in subregulation (1)(a) in respect of property that is abandoned or derelict the Authority shall—~~

~~(a) make reasonable inquiry as to the identity and whereabouts of the person who is or has been the owner or part owner of the property or has or last had possession of the property; and~~

~~r.1~~

~~———— (b) — if the identity and whereabouts of that person become known to the Authority, give written notice to the person requiring the person to remove the property within the time specified in the notice.~~

~~———— (3) — A person to whom a notice is given under subregulation (2)(b) shall comply with the notice.~~

~~———— Penalty: \$1 000.~~

~~———— (4) — Any cost incurred by or on behalf of the Authority under this regulation is a debt due to the Authority by a person who is shown to have been the owner or a part owner, or in the case of abandoned property, the former owner or a former part owner, at the time of removal and is recoverable in a court of competent jurisdiction.~~

~~{(5) (7) deleted}~~

~~———— (8) — The Authority shall give possession of the property to any person who proves that he or she is entitled to the property and who pays to the Authority all costs incurred by it under this regulation.~~

~~———— (9) — If property is owned by more than one person each person shall be jointly and severally liable for any debt due to the Authority under this regulation.~~

~~———— [Regulation 74 inserted in Gazette 4 Jul 1997 p. 3534; amended in Gazette 25 Oct 2011 p. 4515.]~~

~~74A. — False information~~

~~———— A person shall not provide to the Authority information, or authorise or permit the provision to the Authority of information, that the person knows —~~

~~———— (a) — to be false or misleading in a material particular; or~~

~~———— (b) — has omitted from it a matter or thing the omission of which renders the information misleading in a material respect.~~

~~Penalty: a fine of \$750.~~

~~[Regulation 74A inserted in Gazette 4 Jul 1997 p. 3535;
amended in Gazette 8 Dec 2009 p. 5005.]~~

**~~74B. Offences relating to stickers and documents issued by
Authority~~**

~~(1) A person must not alter any information on —~~

~~(a) a sticker issued by the Authority under
regulation 7(1)(b) or 7A(1)(b); or~~

~~(b) a sticker or document issued by the Authority for a
licence or authorisation under Part 3 or 4.~~

~~Penalty: a fine of \$1 000.~~

~~(2) The owner of a vessel, and any person who is in charge of the
vessel, must ensure that a sticker issued by Authority under
regulation 7(1)(b) or 7A(1)(b) or Part 4 Division 3 is not
exhibited on the vessel unless —~~

~~(a) the sticker was issued in relation to that vessel; and~~

~~(b) the information on the sticker has not been altered.~~

~~Penalty: a fine of \$1 000.~~

~~[Regulation 74B inserted in Gazette 17 Dec 2010 p. 6361.]~~

**~~74C. Offences relating to documents issued by mooring site
licensee~~**

~~A person must not alter any information on an authorisation
document issued by a mooring site licensee.~~

~~Penalty: a fine of \$1 000.~~

~~[Regulation 74C inserted in Gazette 17 Dec 2010 p. 6362.]~~

~~75. Repeal and transitional provisions~~

~~(1) The *Rottnest Island By-laws* are repealed.~~

~~r.1~~

- ~~— (2) An authority or consent given by the Board under the repealed by-laws that is in force immediately before the commencement is deemed to be a permission granted under these regulations.~~
- ~~— (3) A licence under by-law 13 that is in force immediately before the commencement is deemed to be a licence under regulation 5.~~
- ~~— (4) The powers in regulation 41(3) may be exercised in respect of a contravention of by-law 11.~~
- ~~— (5) The powers in regulation 45(2) may be exercised in respect of a contravention of by-law 18.~~
- ~~— (6) A person who immediately before the commencement is liable to pay or remit any admission fee under by-law 23 or 24 but has not done so is deemed to be liable to pay or remit the fee under regulation 5 or 6, as the case may be.~~
- ~~— (7) An amount that is paid under by-law 23A in respect of the financial year that is current at the commencement is deemed to be paid for the purposes of regulation 7.~~
- ~~— (8) Nothing in this regulation shall be construed to limit the operation of the *Interpretation Act 1984*.~~
- ~~— (9) In this regulation —~~
 - ~~— **Board** means the Rottnest Island Board dissolved by clause 2 of Schedule 2 of the Act;~~
 - ~~— **by-law** means a by-law of the repealed by-laws;~~
 - ~~— **commencement** means the commencement of these regulations;~~
 - ~~— **repealed by-laws** means the by-laws repealed by subregulation (1).~~
 - ~~— *[Regulation 75 amended in Gazette 19 Jun 1998 p. 3303.]*~~

Schedule 1 — Forms

~~[r. 14 and 73(2)]~~

~~———— [Heading inserted in Gazette 25 Oct 2011 p. 4515.]~~

~~[Form 1 deleted in Gazette 4 Jul 1997 p. 3535.]~~

Form 2

Rottnest Island Authority Act 1987

INFRINGEMENT NOTICE

Serial No.

Date/...../.....

To: ⁽¹⁾

of: ⁽²⁾

It is alleged that on/...../..... at ⁽³⁾

at ⁽⁴⁾

you committed the offence indicated below by a cross (X).

If you do not wish to have a complaint of the alleged offence heard and determined by a court, the amount of the modified penalty as shown may be paid to the Rottnest Island Authority, 1st floor, E Shed, Victoria Quay, or PO Box 693, Fremantle, 6959 within a period of 21 days after the giving of this notice.

If this modified penalty is not paid within 21 days of the date of this notice, court proceedings may be taken against you.

.....
Ranger

(1) ——— Name of alleged offender

(2) ——— Address of alleged offender

(3) ——— Time at which offence allegedly committed

(4) ——— Place at which offence allegedly committed

Schedule 1 Forms

74

page 74 Version 05-d0-01 As at 27 Apr 2015

Extract from www.slp.wa.gov.au, see that website for further information

Mean Scores and Measures

CNMI Mean Scores and Standard Deviations

The measure used to collect information on participants' adherence to societal norms of masculinity was the Conformity to Masculine Norms Inventory-46 (CMNI), developed by Mahalik and colleagues (2003) and updated by Parent and Moradi (2009). This measure asked participants to rate their agreement with 46 statements from 0 (strongly disagree) to 3 (strongly agree). Mahalik et al. (2003) explains the parameters measured by the CMNI as being reflective of a North American male living in the United States and the degree to which their "actions, thoughts and feelings" confirm to what might be considered traditional societal norms. Furthermore, information gained from this scale may be interpreted as follows according to the test developers:

This 4-pointscaling was adopted to be consistent with the structure of the continuum of conformity that ranged across the four statuses (i.e., extreme conformity, moderate conformity, moderate nonconformity, and extreme nonconformity). For example, sample items reflecting the four statuses for the Winning scale included:

Form 2

“In general, I will do anything to win” as an extreme conformity item; “It is important for me to win” as a moderate conformity item; “Winning is not my first priority” as a moderate nonconformity item; and “I do not spend any energy trying to beat other people” as an extreme nonconformity item. (Mahalik et al., 2003, p. 7)

The sums of scores are then used to calculate nine normative indicators of masculinity. CMNI mean scores were calculated, as presented in Table 2. In this sample, the highest mean score was for Heterosexual Self-presentations (HSP) (being uncomfortable if someone thinks that you are a homosexual) followed by the Violence (V) factor. The lowest mean scores were in the Playboy (P) (having many sexual partners) and Power over Women (POW) (the belief that men serve a dominant role over women) factors.

[Form 2 inserted in Gazette 7 Dec 2001 p. 6189-90; amended in Gazette 8 Dec 2009 p. 5005-6; 25 Oct 2011 p. 4515.]

Form 3

Form 3

Rottnest Island Authority Act 1987

WITHDRAWAL OF INFRINGEMENT NOTICE

No.

Date.....

To ⁽¹⁾

Infringement Notice No. dated

for the alleged offence of ⁽²⁾

.....

.....

..... (Modified penalty \$ ⁽³⁾) is hereby
withdrawn.

No further action will be taken. ⁽⁴⁾

OR

It is proposed to institute court proceedings for the alleged offence. ⁽⁴⁾

.....

Chief Executive Officer,
Rottnest Island Authority.

⁽¹⁾ Insert name and address of alleged offender.

⁽²⁾ Insert short particulars of offence alleged.

⁽³⁾ Insert amount of penalty prescribed.

⁽⁴⁾ Delete whichever does not apply.

Schedule 2

~~[reg. 36(1)]~~

~~Note: Maps showing the approximate boundaries of the areas described in this Schedule are available for inspection at the office of the Authority on the Island.~~

Part A — Water catchment area

~~All that part of the Island containing approximately 16 hectares that is bounded generally to the west and south by the road from Geordie Bay to Bovell Highway, to the north by the cycle track from Longreach settlement to the Basin, and to the east by the golf course, and that is enclosed by a wire netting fence 1 800 mm in height and topped with barbed wire.~~

Part B — Waste-water treatment facility

~~All that part of the Island containing approximately one hectare that is situated to the south of the Point between Pinky Beach and the Basin and to the north of the road between Thomson Bay settlement and the Basin and that is enclosed by a chain mesh fence 1 800 mm in height.~~

Schedule 3

[reg. 63]

Rottnest aerodrome

All that part of the Island containing approximately 21 ha that is situated to the south of Government House Lake and bounded by a line commencing where a fence adjoins the west side of the terminal building and following the line of that fence to the edge of Government House Lake and following the edge of that lake for approximately 80 m to a point where it merges with a line of white conical markers and following that line westwards, then southwards, then eastwards, then northwards and then westwards to the edge of the sealed taxi way and following the edge of that taxi way northwards for approximately 15 m and then westwards for approximately 200 m to the point where it intersects a line drawn through 2 blue conical markers on the east side of the helicopter parking area and following that line for approximately 60 m to the point where it intersects a fence line and following that fence line eastwards, then northwards, then westwards, then southwards and then westwards to the terminal building, and including the terminal building.

A map showing the approximate boundaries of the aerodrome is available for inspection at the office of the Authority on the Island.

Rottnest Island Regulations 1988

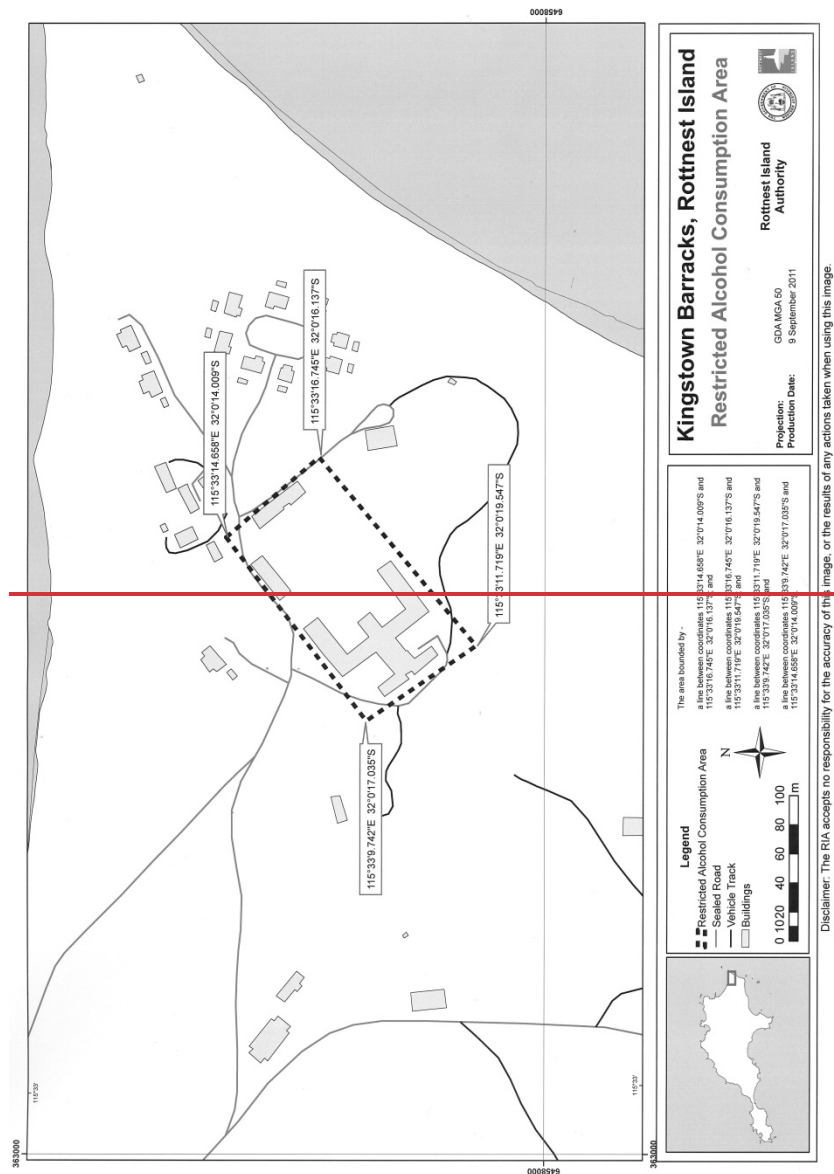
Schedule 4A Kingstown Barracks Restricted Alcohol Consumption
Area

**~~Schedule 4A — Kingstown Barracks Restricted Alcohol
Consumption Area~~**

[r. 72]

~~———— [Heading inserted in Gazette 25 Oct 2011 p. 4516.]~~

Rottnest Island Regulations 1988
Kingstown Barracks Restricted Alcohol Consumption Schedule 4A
Area



[Schedule 4A inserted in Gazette 25 Oct 2011 p. 4516.]

Schedule 4 — Offences to which modified penalties apply

[r. 73]

[Heading inserted in Gazette 8 Dec 2009 p. 5007.]

Table 2

CNMI Mean Scores and Standard Deviations

Regulation

CNMI Factor

Mean Score (SD)

Winning1-

5.4 (2.0)

Emotional Control2AA-

6.9 (2.7)

2A. 7(2) Failing to ensure annual payment sticker is exhibited on non-commercial vessels or aircraft 150

2B. 7A(4) Failing to ensure annual payment sticker is exhibited on fishing or diving charter vessels 150

2C. 7E(2) Failing to pay Main Jetty berthing fee 200

2. **Violence** | **8.3 (3.1)-**

Playboy4-

Self-Reliance5-

6. 11(3)(a) Securing vessel to mooring where vessel already secured 150

7. 11(3)(b) Securing vessel to vessel secured to mooring 150

8.	12(1)	Anchoring vessel closer than 50 m to mooring or so that it obstructs mooring	150	
9A.		13A(1)		Pr an
9B.	13(1)	Anchoring or securing vessel without competent operator	150	
<u>Heterosexual Self- Presentation</u> 9.		<u>9.4 28(3.3)</u>		Li re
10A.	28(4)	Licensee failing to provide copy of any mooring site inspection report within 7 days	150	
10.	28(5)	Licensee using mooring in respect of which Authority does not have mooring inspection report	150	
11.	29(3)	Failing to comply with notice to move unattended vessel	150	
12.	30(8)	Removing mooring that is subject to notice prohibiting removal	150	
13.	36(1)(a)	Being in a restricted area without permission	150	
14.	36(1)(b)	Being in a protected area without permission	150	
15.	36(1)(e)	Using a closed track or path without permission	150	
16.	36A(a)	Securing vessel to structure not designed for that use	150	
17.	36A(b)	Using apparatus other than beach anchor as a beach anchor	150	
18.	37(1)(a)	Beaching vessel in Thomson, Longreach or Geordie Bay without permission and not in permitted area	150	
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Extract from www.slp.wa.gov.au, see that website for further information				

Rottnest Island Regulations 1988**Schedule 4** Offences to which modified penalties apply

19.	37(1)(b)	Beach anchoring a vessel in Thomson, Longreach or Geordie Bay without permission and not in permitted area	150
20.	38A(3)	Exceeding speed limit set for vessel in defined area	100
21.	38B(3)	Using vessel contrary to notice setting aside area and imposing conditions for use of that vessel	200
22.	38C(2)	Discharging or depositing sullage from vessel other than by approved system	200
23.	39(1)	Injuring etc. flora or removing stake or label relating to flora	200
24.	40(1)	Interfering etc. with fauna or habitat etc. of fauna	200
25.	41(1)	Without permission causing or allowing animal or bird to enter Island	200
26.	41A(2)	Feeding fauna contrary to sign or notice	150
27A.	41B(2)	Without permission causing or allowing flora to be brought to Island	200
27.	42(1)	Causing damage to any rock or soil without permission	150
28.	44(3)	Failing to comply with traffic sign or with ranger's signal or direction relating to vehicle	150
29AA.	45(1)	Bringing vehicle on to Island without permission	200
29A.	46(1)	Using vehicle without permission	200
29.	47(1)	Exceeding speed limit	100
30A.	51(1)(a)	Possessing hired bicycle without consent	150

30B.	51(1)(b)	Possessing bicycle without consent	150
30C.	52(2)	Erecting tent without permission	150
30.	53	Without permission organising, advertising or participating in any event or meeting	200
31.	55(1)	Without permission affixing notice etc., defacing rock, tree, pavement, structure etc. or causing any such act to be done	150
32.	56(1)	Without permission selling, distributing etc. printed or written matter	150
33.	59(1)(a)	Without permission carrying or discharging firearm, speargun, gidgie etc.	200
34.	59(2)	Without permission having, or discharging, explosive device within limits of Island	200
35.	60(1)	Without permission lighting, making or using fire other than in gas stove or indoor fireplace	200
36.	60A(1)	Sandboarding	200
37.	60A(2)	Possessing sandboard	150
38.	60B(1)	Littering	200
39.	65(1)	Being within aerodrome limits without permission or authority	200
40.	69	Without authority destroying or damaging building or structure	200
41.	70(1)(a)	Unlawfully assaulting a person	200
42.	70(1)(b)	Using indecent, obscene, threatening, abusive or insulting language	200

Rottnest Island Regulations 1988

Schedule 4 Offences to which modified penalties apply

43.	70(1)(e)	Doing or engaging in any offensive, indecent or improper act, conduct or behaviour	200
44.	70(1)(d)	Acting in such a way as to cause a nuisance or annoyance to persons	200
45.	70(3)	Writing etc. or distributing or otherwise disseminating indecent or obscene matter	200
46.	71	Causing or producing noise that unreasonably interferes with convenience, comfort or amenity of any person	200
47.	72(2)	Consuming liquor in Kingstown Barracks Restricted Alcohol Consumption Area	200
48.	72AA(2)	Failure to comply with direction of ranger	200
49.	74B(1)	Altering information on sticker or document issued by the Authority	200
50.	74B(2)	Wrongly displaying a sticker on a vessel	200
51.	74C	Altering information on authorisation issued by mooring site licensee	200

NIRO Mean Scores and Standard Deviation

Intrinsic Orientation shows how important one's faith is to one-self.

Quest orientation looks into how much one's faith is a journey, to grow,

change, and ask hard questions of ones-self. When considering Religious

Orientation, the Intrinsic factor was highest. The next highest was

External, then Quest Orientation. Using paired sample t-tests, Quest

Orientation was significantly lower ($p < .001$) than either External or Internal Orientation.

NIRO mean scores and standard deviations were calculated, as seen in Table 3. Francis (2007) explains that “individuals who record high scores on the extrinsic orientation scale see their religion as a means to other personal and social ends rather than as an end in itself” (p. 597).

[Schedule 4 inserted in Gazette 8 Dec 2009 p. 5007-9; amended in Gazette 15 Oct 2010 p. 5177; 17 Dec 2010 p. 6362; 25 Oct 2011 p. 4516-17; 4 Jan 2013 p. 23-4; 24 Jan 2014 p. 114.]

Schedule 5 — Annual payment by charter operator

[r. 7A(1)(a)]

[Heading inserted in Gazette 24 Jul 2007 p. 3666; amended in Gazette 4 Mar 2011 p. 701.]

<u>Table 3</u>		Annual payment
<u>NIRO Mean Scores and Standard Deviation</u>		Declared number of visits by a vessel to the Island in respect of a financial year
<u>NIRO</u>	Less than 15 visits	Mean Score (SD) \$42.00 multiplied by capacity*
<u>Quest Orientation (QO)</u>	15 to 30 visits	6.4 (1.9) \$84.50 multiplied by capacity
<u>Integration</u>	31 to 45 visits	13 (1.8) \$126.00 multiplied by capacity
<u>Public Religion</u>	More than 45 visits	11.3 (2.3) \$169.00 multiplied by capacity
<u>Personal Religion</u>	11.4 (2.5)	
<u>Extrinsic Orientation (EO)</u>	8.2 (1.9)	
<u>Existential</u>	5.8 (2.5)	
<u>Self-Criticism</u>	7.0 (2.4)	
<u>Change</u>	6.3 (2.8)	
<u>Intrinsic Orientation (IO)</u>	11.9 (1.5)	
<u>Compartmentalization</u>	6.5 (2.9)	
<u>Social Support</u>	9.1 (2.5)	
<u>Personal Support</u>	8.9 (2.0)	

Correlational Results

Six significant correlations were found between the NIRO and the CMNI in table 4. The first observation was a strong negative correlation between the masculine norm of Risk Taking and the Extrinsic Orientation factor. Similarly, violence was negatively correlated with Extrinsic Orientation. Hetero self-preservation and emotional control were positively correlated. While these are weak correlations they are significant. Playboy was correlated with Intrinsic Orientation and Quest Orientation was only positively correlated with one factor which was risk-taking.

Pearson r for CMNI Factors and NIRO Indices

– Correlational Results

~~* In this Schedule, **capacity** means the maximum number of passengers the vessel is certificated to carry in the waters of the Island.~~

~~[Schedule 5 inserted in Gazette 14 Dec 1993 p. 6668; amended in Gazette 23 Jun 2000 p. 3211-12; 20 Jun 2003 p. 2252; 29 Jun 2004 p. 2546; 8 Aug 2006 p. 2907; 24 Jul 2007 p. 3666; 24 Jun 2008 p. 2911; 3 Jul 2009 p. 2701; 31 Aug 2010 p. 4190; 29 Jul 2011 p. 3145; 29 Jun 2012 p. 2961; 18 Jun 2013 p. 2307; 20 Jun 2014 p. 2042.]~~

Rottnest Island Regulations 1988
Aerodrome usage fees **Schedule 6**

Schedule 6 — Aerodrome usage fees

[r. 7B and 7C]

[Heading inserted in Gazette 29 Jul 2011 p. 3145.]

Table 41. — Aerodrome usage fee (r. 7B(1))

\$48.00

Pearson Correlation (r)²—

— Aerodrome usage fee for calculating annual payment (r. 7C(1)(b))

\$41.00

<u>NERO</u>	<u>Extrinsic Orientation</u>	<u>Intrinsic Orientation</u>	<u>Quest Orientation</u>
<u>CMNI – W</u>	<u>.134</u>	<u>-.105</u>	<u>.066</u>
<u>CMNI – EC</u>	<u>.420*</u>	<u>.041</u>	<u>.263</u>
<u>CMNI – RT</u>	<u>-.558**</u>	<u>.059</u>	<u>-.581**</u>
<u>CMNI – V</u>	<u>-.401*</u>	<u>-.174</u>	<u>-.266</u>
<u>CMNI – POW</u>	<u>.137</u>	<u>-.277</u>	<u>-.043</u>
<u>CMNI – p</u>	<u>.019</u>	<u>-.412*</u>	<u>-.047</u>
<u>CMNI – SR</u>	<u>.198</u>	<u>-.229</u>	<u>.297</u>
<u>CMNI – PW</u>	<u>.022</u>	<u>-.206</u>	<u>-.137</u>
<u>MNI – HSP</u>	<u>.438*</u>	<u>.019</u>	<u>.189</u>

*Correlations are significant at the .05 level (two-tailed); **Correlation is significant at the .01 level (two-tailed)

ANOVA Results

Using one-way ANOVA calculations, we are able to see any possible associations between self-identified religion, denomination, and religious orientation. One-way ANOVA's were used to compare these variables and the three indices of the NIRO. Table 5 shows these results with associations, only one factor that had a trend, the Intrinsic Orientation and those that self-identified as religious.

[Schedule 6 inserted in Gazette 29 Jul 2011 p. 3145; amended in Gazette 29 Jun 2012 p. 2961; 18 Jun 2013 p. 2307; 20 Jun 2014 p. 2042.]

Schedule 7 — Miscellaneous fees

[Heading inserted in Gazette 3 Jul 2009 p. 2701.]

Part 1 — Admission fees and payments

[Heading inserted in Gazette 3 Jul 2009 p. 2701.]

1.					Table 5
					<i>One - way ANOVA</i> fee to Island for pe
	<u>Index</u>	<u>Mean</u>	<u>Mean Square</u>	<u>F</u>	<u>Sig.</u>
	<u>NIRO EO</u>	Yes – 8.3For child (aged 4 years or over but less than 13 years)	4. \$6.00	1.33	.257
		For adult (aged 13 years or over)		\$17.00	
			No - 7.2For family (2 adults and 2 children)	\$39.50	
	<u>NIRO IO</u>	Yes – 12.2-	19.6Admission fee to Island for person travelling to and from the Island on different days (r. 5(1))	12.08	.001
	<u>NIRO QO</u>	No – 9.8 Yes – 6.4For child (aged 4 years or over but less than 13 years)	.207 \$7.50	.066	.814
		For adult (aged 13 years or over)		\$22.00	
			No – 6.2For family (2 adults and 2 children)	\$49.50	
3.	Annual fee in lieu of admission fee for vessels (r. 7)				
	Length of vessel				

Rottnest Island Regulations 1988

Miscellaneous fees **Schedule 7**

	8 m or less	\$220.00
	More than 8 m but less than 10 m	\$250.00
	10 m or more but less than 15 m	\$300.00
	15 m or more	\$500.00
4.	Annual fee in lieu of admission fee for aircraft (r. 7)	\$220.50

There was a significant difference found in table 6 that self-identified as religious, and those that did not, on Intrinsic Orientation. Those that self-identified as religious scored higher overall. Those that self-identified as Mennonite scored higher on all factors compared to Baptists and Catholics (there was only one Catholic). Although these scores were higher, the only significant difference was with the Intrinsic Orientation factor for the self-exclaimed Baptiste community.

[Part 1 inserted in Gazette 3 Jul 2009 p. 2701-2; amended in Gazette 31 Aug 2010 p. 4190-1; 29 Jul 2011 p. 3146; 29 Jun 2012 p. 2961; 18 Jun 2013 p. 2308; 20 Jun 2014 p. 2042.]

Part 2 — Mooring licences

[Heading inserted in Gazette 3 Jul 2009 p. 2702.]

<u>Table 5</u>				
<u>One-way ANOVA with Factor Self-identified Denomination and NIRO Indices</u>				
<u>Index</u>	<u>Mean</u>	<u>Mean Square</u>	<u>F</u>	<u>Sig.</u>
<u>NIRO EO</u>	<u>No – 7.1</u>	<u>5.2</u>	<u>1.56</u>	<u>.219</u>
6.	Application fee for mooring site licence (r. 20(3)(c))			
	Baptist – 8.3			
	Annual mooring site licence (r. 22(3)(b)(i) and 33(3)(b)(i))			
	Mennonite – 9.0			
	Length of			

		vessel	
<u>NIRO IO</u>		Catholic – 7.010	\$894.50
		m or less	
7A.		No – More than	5.5\$90.00/m of
		10.9-m	length of
7B.			licensed vessel
			or vessel to be
7A.			licensed
		Baptist –	\$21.00
7B.		11.8Fee for	
		replacement of	
7B.		lost mooring	
		sticker (r.	
7B.		26(4A))	
		Mennonite –	\$262.00
7B.		12.9Mooring	
		exchange fee (r.	
7B.		30(10)(ba))	
<u>NIRO QO</u>		Catholic – 12.9	
		No – 5.6	6.0
<u>NIRO QO</u>		Baptist – 6.2	1.78
		Mennonite – 7.3	.172
<u>NIRO QO</u>		Catholic – 9.0	

Extrinsic Orientation when considering risk-taking, emotional control, violence, and heterosexual self-preservation

Extrinsic Orientation, which consisted of statements focused on compartmentalization, social support, and personal support, was negatively correlated with the masculine norm of risk-taking, emotional control, and heteroself-preservation. Although the relationship was weak, it was significant, in that higher scores on one correlated with lower scores on the other. This may suggest that those who use religion “for their own ends...to provide security and solace,” (Francis et al., 2016; p.3) may be less apt to taking risks, as they could possibly favour safer environments; these are social norms not explored in this study. This may also explain the negative correlation between extrinsic orientation and the

masculine norm of violence, as violence is not typically conducive to environments of security, solace, and may not be religiously acceptable in many Christian situations. It is important to note that most all of the participants had children and were married, which could have directly affected the factors for violence and risk-taking, as these are not conducive to a safe family environment.

Extrinsic orientation was also positively correlated with the masculine norms of emotional-control and heterosexual self-presentations. Individuals who identify more closely with this orientation may be using religion as a means to create socially safe environments, these correlations complement that. Once again, the correlations were weak, but they were significant. Most of the participants were older family men, and this may have affected the need for emotional stability and possibly the heterosexual orientation of their lifestyles.

Intrinsic Orientation and Playboy Indices

According to Francis et al. (2016), those with an Intrinsic Orientation for religion regard other needs as less significant as they try to master their faith and connection to the divine. Intrinsic orientation included the above-mentioned integration, but also public religion and personal religion that affect one's personal connection to the divine. Most of the participants self-identified as Christian and that their Christian values affect their life. Those who are extrinsically oriented may be less likely to engage in the masculine norm of playboy since this norm is contrary to Christian religious concepts of fidelity and chastity. Also, a playboy lifestyle can make long term marriage difficult to maintain, and in this sample, the majority of males were married.

Quest Orientation and Risk-Taking Indices

Similar to correlations noted in extrinsic orientation, risk-taking was also negatively correlated with quest orientation. Again, given the operationalization of quest orientation, in which individuals are

comfortable with never knowing all of the answers regarding their religion (Francis et al., 2016), this population may not see existential growth as risk-taking. It is possible that people whom are comfortable with confronting nebulous concepts and existential questions when exploring their faith do not understand their personal growth or changing their worldviews as a risk-taking endeavor. It could also be possible that this population are less concerned with hard and fast, Black and White, rules as part of their personal faith, and possibly see this as counter-productive when trying to grow in their faith. It is possible that people that take risks in their faith are more open to a quest orientation.

Summary

The sample was quite a homogeneous study: older, primarily Christian males of the Baptist or Mennonite denomination. Most were married and all had children. Among this particular sample, higher scores were observed within the CMNI on heterosexual self-presentations and violence, although these means appear to be lower than those reported in the literature that considered both Christian and non-Christian men.

When considering the different forms of religious orientations, this sample scored highest overall on intrinsic orientation, namely the statements that refer to integration of their religion in their life: “My religious beliefs really shape my whole approach to life”, “I try hard to carry my religion over into all my other dealings in life”, and “My religious beliefs really shape the way I treat other people.” The same sample scored lowest in the quest orientation. There were few participants of other denominations, and nothing significant was detected between them.

CHAPTER 5

Summary and Implications of findings

There are few direct implications that can be garnered from such a small and homogenous sample. One of the most important findings is the statistically significant preference for the Intrinsic Orientation. This can mean that people are less concerned about denominations, theological tenants of faith, or other specific difference between denominations. This is a vast change from a time when wars were fought over denominations. This sample was much more concerned with how their faith affects their life, and less about the idea of the Christian church as a body.

The increase in intrinsic orientation could mean a few different possibilities that may be disconcerting. People will be less concerned about the denomination of the church, or even theology of those denominations, as long as they view a church as a place that meets their personal needs. This may lead to a buffet style of religion where people pick and choose what tenants of faith they believe is true and comfortable from different belief systems. This may include popular secular beliefs that may not concur with church teachings. This may also represent a consumer culture thus seeing the church as something for 'me' to take from and are less likely to give to - be it time or money. Without further research, it can be difficult to understand how an intrinsic religious belief system is affecting one's interaction with the church and its teachings.

Having people that are strong in an Intrinsic Orientation can also have advantages too. According to Fowler (1995), someone that has accepted their faith as their own, do not see the ‘rules’ or tenants of their faith as only black and white, and tend to use their faith to guide their daily lives, represent a more mature stage of faith development – possibly a more difficult stage to attain that everyone may not be able to understand. This could be consistent with predominantly older Christians that have been practicing for many years. It can also be perceived as a good thing in that whatever the complete belief system that these men have internalized guides their lives outside of the church. Lastly, it can also mean that their beliefs is something that they feel is important and will less likely be swayed from them. Alternatively, it can be more likely that they will give resources for issues that they feel are important, likely social justice causes, fighting poverty and homelessness, sharing their faith, helping others. People with an Intrinsic Orientation in their faith may live their lives according to their values and may be more likely to bring their beliefs into fruition through different forms of social engagement not directly connected to a church congregation.

There appears to be some connection between Christian men’s faith orientation and what they consider to be masculine. However, with such a small sample size, the correlations were significant, but weak. It appears that masculine factors of violence and playboy are inversely correlated with the Extrinsic Orientation. There were also elevated factors of Hetero-sexual self-preservation that was consistent throughout the research. People that are stronger in the Intrinsic Orientation tend to have elevated scores in factors that suggest that their belief system is both integrated into their life but plays a leading role in how they act daily. Lastly, there was a negative correlation between the Quest Orientation and Risk-Taking factors. Overall, these factors were consistent with previous research,

which may have been due to cultural, age, or religious leanings that the homogenous participants demonstrated.

Discussion of findings

The purpose of this study was to ascertain how Christian men perceived their own sense of religiosity and spirituality and how, in turn, this affects their expression of masculinity. I wanted to understand how men saw themselves within their culture; construction of both masculinity and spirituality can be difficult for young men, and may be a concept that is challenged through their lives. They may have been raised differently, or, with this sample, be raising their children differently than the social norm. Was there more pressure for sexual purity, stability, or parity between the sexes? This appears to be the case for this sample of married and middle-aged men.

The three question I wanted to answer, were:

1. What is the connection between male masculine norms and their level of religiosity?
2. Is there a difference between male masculine norms and religiosity are expressed amongst different congregational settings?
3. Is there a difference between masculine norms and religiosity as per church attendance, marital status, and demographic variables?

When considering masculine norms and religiosity, there were six significant findings. A strong negative correlation between the masculine norm of Risk Taking and the Extrinsic Orientation factor was seen. Extrinsic Orientation is using factors that focuses on the community, how the community aspect of religion can be an end unto itself, and the importance of being part of the community affects the individual. Risk taking focuses on putting yourself ‘out there,’ or making risky personal choices. It

is possible that the connection lies therein, because, with in their community, these men are leaders, help with the church, take surveys, and are active in their communities – an intrinsically safe place for them.

Risk taking and violence can be adverse to extrinsic orientation. Many of these men have seemingly stable lives; marriage, kids, and I presume, jobs seem to be important to this sample. Beyond Christian teachings of passivity (especially Mennonites that preach non-violence in all things) taking risks and being violent is not conducive to a stable community environment. These men may consider this stability as part of their religious life, or even a part of their personal lives. It is difficult to determine which came first, the desire for a stable community so then this religion aids that, or that, they grew up in this faith and see stability as an important part of their faith.

Violence was negatively correlated with Extrinsic Orientation. This may come from two paths. The largely Baptiste and Mennonite sample are traditionally pacifist (Canadian Conference of Mennonite Brethren Churches, 2018), as evidenced by the fact that pacifism is the 23rd tenant of the Mennonite faith. This may mean that the public display of their faith might follow the same trend, one of anti-violence. Secondary, within the Christian faith, it is often not okay to be extrovertly violent – Jesus preached peace in almost all things. This pacifist orientation can be applied to one’s family as well as to attaining one’s social or religious goals. Considering Extrinsic Orientation, it appears that this sample does not support the use of violence within personal relationships.

This sample appears to value being perceived as hetero-sexual and emotionally stable. Hetero self - Preservation and emotional control were positively correlated. These are weak correlations, but significant. This may be because this sample was largely married, and possibly because they were older and comfortable in their life. Simplicity and control may be important to men that are married with kids. There may have been homosexual men in this study, but I had no way to confirm that possibility,

keeping in mind that even though the majority of men were married to women with children, participants' hidden sexual desires or attractions were left untapped. It is possible that this sample believe that it is better for their security and religiosity to at the very least appear heterosexual.

The Playboy factor was correlated with Intrinsic Orientation. It could be that these men have had, or wish they had, more sexual partners before they were married – seeing as how most of the participants were married.

Quest Orientation was only positively correlated with one factor, Risk-Taking. The Quest Orientation looks at how hard one is willing to push their beliefs. It considers questions that looks into how much one challenges doxa, or well established norms. This is a risk for most people. If one is willing to challenge the most basic beliefs of their church, I would assume, that they are risk-takers.

Fowler, J. (2000) suggests that: “Each person or small subculture struggles to form and maintain a shelter of shared values and lifestyles that will provide protection against the quicks and of meaninglessness and the winds and terrors of cosmic aloneness” (p. 39).

This is a small sample in this study, only an of n=35. The two churches have similar theological backgrounds, maybe there is some shared collection of learnings that bind these men together. Perhaps this social culture is the answer to the ‘existential vacuum’ (Frank, 2006) – a feeling of emptiness and meaninglessness that people suffer from. Possibly, a shared belief and community binds them, and aids them, in their collective conscience.

It is important to make mention of where these men may fit into Fowler’s (2000, 1978) work. The age of these men would suggests that most of them would be between stages three and five in their spiritual development. With the significant difference in the intrinsic Orientation, I would suggest that those men may be closest to stage four of spiritual development – Individuative-Reflective stage. This is

the time that a person makes his or her faith his or her own. One takes responsibility for one's lifestyle, choices, and beliefs. This often happens in early adulthood. This tends to be a demythologizing stage that changes symbols into reality, has considerable self-reflection, and separates the self from the collective. In some ways, the faith becomes simpler and clearer, and is full of clear distinctions and absolutes. Due to the age of many of the men, who are close to mid-life or beyond, many could be in the Conjunctive faith stage. This stage involves a greater honesty with self. Much of what was repressed during stage four is now integrated into one's self. The need for absolutes tends to give way to comfort with paradoxes and contradictions. These people tend to recognize the prejudices, unconscious myths, ideal images, heuristics and the like that tend to build in us through social class, religious traditions, ethnic groups, or so forth. In stage five, people are ready for closeness to things that they used to find threatening, and they can appreciate symbols, myths, other religions, and rituals, which many people in stage four tend to find threatening. Depending on where one find themselves in life's spiritual journey could drastically affect the results of the study.

Sadly, there is little to be garnered about the differences between congregations or other demographics. The sample size was simply too small and homogenous: most were Mennonite or Baptiste, almost all were married, and almost all were older than 30. The only significant finding was that Mennonites scored significantly higher than Baptiste or Catholic on the Intrinsic Religious Orientation. The significant difference was weak, but existed. Many Mennonite churches preach more about living a Christian lifestyle, 'wearing your faith on your sleeve,' share ministry duties, and focus less on dogma or traditions. There may also be something from the German roots that is being teased out, since many of the Mennonite roots in Saskatchewan were started through German Immigration. A larger sample size was needed to have a more sensitive study to the nuances of religion on masculinity.

Implications for Theory and Practice

Dr. Brandt (2001) suggests that all men are being conditioned into one of four archetypes: King, Warrior, Lover, Magician. At first, I was insulted by this suggestion. Then I realized how ingrained a sense of doing is in me, and now I would say in men. Vandallo (2008) puts out a strong argument that masculinity has always been about doing, not just reproduction. Even male secondary sex characteristics allow us to do, not so much be. For women, being able to have a baby can be seen as very womanly, before so, having a period is a monumental part of many young women's lives, their first step into womanhood. Men do not have the same obvious physiological or biological changes through puberty to show their manhood and are often left up to doing to show their manliness within their culture— be it playing sports, getting a job, or killing a lion.

Fowler (2000) speaks to becoming a Christian, once again, it's about what you do with your life and how you act. The Catechism doesn't speak specifically to maleness, but it does say that it is not good for man to be alone, and that men and women were created for each other (Catechism, 1995): still an act of doing. Even well-respected pastors such as Pipper and Grudem (2006) wrote on biblical maleness, and they say to serve the women in your life and the other people around you. The very definition of Manhood I used in Chapter 2 ,was based on Kostenberger's (2010) book, and it was all about doing, serving and taking care of the women around you. Our entire sense of self comes not from fighting, dominating, controlling, but from serving those around us. In hindsight, even the measure I chose to use that considered masculinity, was largely a measure of doing.

Christianity is a religion that has done much good, but has also, been the cause for evil. I am happy to see that people who are part of a religious community can be prone to being less violent and do not believe the playboy mantra often depicted in television and movies. These men do not believe that

violence is a solution to disagreements, nor do they believe that many sexual partners make them manlier. In other words, not all men need to be James Bond.

The largest question of science, is simply why does this research matter? The sample is small, but it does give us some insight on older married men. Men that will often be on the boards of the church, take on leader ship roles in the church and in the community. These are the men that are the coaches, teachers and workers, and leaders in the respective communities. I appreciate how they have a less patriarchal world view than is typical in the media. This bodes well for religious and social egalitarianism.

It may be because most of the men are married, but I do have some concerns about the importance of hetero-self-preservation. The instruments are not sensitive to the difference between homophobia and simply not wanting to appear gay. I have some concerns that, possibly, being in leadership positions, it may affect how they treat those of different sexual orientations.

Violence was negatively correlated with Extrinsic Orientation. It is important to note that in a larger sample size, this may have been different. Catholicism has often supported the use of force with a purpose in the past. This can be seen from the beginning of the faith, to the Holy Wars, to strong support for the Military and the priests that serve that serve the troops. This is similar for the Anglican Church that even has an acting priest working with the North Saskatchewan Regiment in Saskatoon. Within the sample, the anti-violent sentiment could influence voting patterns for those that are not interested in supporting military activity or even incarceration.

Heterosexual Self -Preservation and Emotional Control were positively correlated. This makes some sense for a sample composed of largely married men with children. It can be hard to raise a family or retain a stable job if your emotions are all over the place. As many other Mennonite churches in

Saskatchewan come from German ancestry, there is a chance that this is the product of a stoic culture. There are many stories among the traditional Mennonites of Germans who were very stoic, hard-working, and emotionally controlled – especially for the men. Be it cultural, religious, or social, this sample valued emotional control and the appearance of heterosexuality. Note, in the demographics, I was advised not to ask about participant's sexual orientation.

What I Have learned

Writing a thesis was more intense than I expected. I did not understand the discrepancies between different master's programs, I now think that a research intensive thesis-based master's degree should be the standard and not considered equivalent to its course-based alternative. This is the first time that I have ever felt challenged academically, but more importantly, the challenge of research. It is easy to look at what others have done and the journals they have published, and criticize them, but to do the work and write up your findings is considerably more difficult. I feel that this should be the standard of Master's level programing.

It is difficult to get the sample sizes that I wanted to get. For good reasons, relying on volunteers is tough. Both for getting enough people to participate and not improperly filled out forms that disqualified their feedback, but more concerning, how the instruments used affects the feedback that I can use. There was so much feedback that came with the likert scales – little notes on questions, writings of reasons, or even a question mark – this research does not include a qualitative component. and maybe it should have, there was much more feedback, ideas, and information that could have been valuable that I simply did not use. Even those who did answer all the questions, I do not think that most people had a similar view on the definition of religion or spirituality. Many of the comments considered one definition, or the other, to be offensive. This may have completely undermined the results I got for

the NIRO, and my entire study. I understand better the need for qualitative research that I never had before – especially on such a personal and emotionally loaded topic.

I have talked to many men in this project, and while not reported, I think that Vandello et al. (2008) has made a good observation about how men are socialized. It has been established through the years that it is expected that men need to ‘do.’ This can be seen as providing for the family or killing a lion before they are men in the community. More research has to be made on men as people of doing. Frankl (2006) has said that “being jobless was equated with being useless and being useless was equated with having a meaningless life.” Fowler (2000) may concur with this when he says, “shared values and lifestyles what will provide protection against the quicksand and the winds and terrors of cosmic aloneness” (p. 39).

I am happy to see from my results that men and women are seen with equity in this sample. I would go so far as to personally support Grudem (1995) when he suggests that: The Creation of man as male and female shows God’s Image in (1) harmonious interpersonal relationships, (2) equality in personhood and important, and (3) difference in roles and authority. Summarized, he later goes on to speak of the first relationship: God made Adam and Eve in such a way that they would share love and communication and mutual giving of honor to one another in their interpersonal relationship. This sounds like a healthy relationship to me. I do not mind the definition of servitude that I presented earlier in chapter 2, granted Grudem (1995) suggest that the two sexes are created “equally in God’s image.” The question left, the only one really matters, is, how are persons supposed to treat one another with love and respect as God desires?

Future Research Possibilities

More research needs to be completed with larger, heterogeneous samples, especially in regards to differing self-identified spiritualties, religions, and denominations. This includes expanding the number of denominations involved to the Catholic or United churches, often referred to as conservative and liberal respectively, to better reflect a broader spectrum of those that identify as Christians. Additional research could explore how closely the people that attend a congregation reflect the published beliefs of the churches that they participate in fellowship with and how this affects both their idea of masculinity and their worship orientation.

It is important that in future research a control group of individuals that do not identify as Christian is implemented to see if there is any difference in beliefs of what it takes to be masculine from the Christian community and the non-Christian community within the same demographic region.

More importantly, there needs to be further research that considers the differences between religions (for example, Judaism, Muslim, Atheist, etc.) on these same factors, thus seeing if there is any point in studying one religion independently of others or if it produces similar results. The research can easily be expanded to other groups or demographics including people of different sexualities, immigration status, ages, women (though this research is focused on men, How the majority of women see men will affect their relationship with men, dating, and marriage), disabilities, areas of the city and beyond, and people that consider themselves Christian but are not affiliated to a congregation.

Considering innovations emanating from the internet and the vast amount of resources like sermons, bibles and commentaries, and research that is available free for those with the resources to attain it, how has this affected people's approach to the church, denominations, and their role within? This also affects how people can be contacted and studied, but there is likely a large demographic that may be left

out of research that could be tapped into, to better understand the dynamic parameters of Christian communities.

Cultural backgrounds can be considered as well. While I have used the terms Mennonite or Baptiste or Catholic, there are huge differences geographically to be found in Canada, let alone the world. Mennonite congregations have a few different governing bodies that are exclusive of each other. Subsequently, there are large differences between them, with some allowing women to preach while others don't for example. This is similar to Baptistes, especially when you go to the southern states. The Catholic Church has 40 rites, all very different, Roman Catholic is just one of them.. Different parts of Canada have very different understanding and exposure to this diverse set of religions which will affect all research done in this very complicated field.

Many people in Canada grew up in cultures that have Christian roots and know some of the church's teachings. Some of the more contentious issues in the Christian, or even wider communities, are obvious, for example, when is abortion OK? Who should lead the church? How does sexuality and gender impact leadership potential in the church and its congregation? Is the objective to gain an understanding of truth or do you simply make our own answer to that eternal quest? Is there a hell? Who goes to heaven? What happens to people of other faiths who deviate from a churches' doctrines and belief systems and so on? I am not preaching, but these are simply controversial issues that are common even in Christian communities, let alone in secular ones. It is tough to decipher how much of the bible a person actually believes with the tools used. Moreover, it is difficult to conduct research with no standard definition of religion, faith, spirituality, Christianity, or any of the many division therein. Psychometric tools need to be developed that are more sensitive to these pertinent issues.

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Appendices

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APPENDICES A - NIRO

INSTRUCTIONS. Read the following carefully and think, 'Do I agree with it?'

If you *Agree Strongly*, put a ring round AS A NC D DS

If you *Agree*, put a ring round..... AS A NC D DS

If you are *Not Certain*, put a ring round AS A NC D DS

If you *Disagree*, put a ring round AS A NC D DS

If you *Disagree Strongly*, put a ring round..... AS A NC D DS

A key reason for my interest in church is that it is a pleasant social activity AS A NC D DS

There are many religious issues on which my views are still changing AS A NC D DS

I am constantly questioning my religious beliefs..... AS A NC D DS

I try hard to carry my religion over into all my other dealings in life AS A NC D DS

I pray chiefly because it deepens my relationship with God AS A NC D DS

The church is most important to me as a place to share fellowship with

other Christians AS A NC D DS

I pray at home because it helps me to be aware of God's presence AS A NC D DS

My religious beliefs really shape my whole approach to life AS A NC D DS

What prayer offers me most is comfort when sorrow or misfortune strike AS A NC D DS

As I grow and change, I expect my religion to grow and change as well..... AS A NC D DS

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For me doubting is an important part of what it means to be religious AS A NC D DS

I often read books about prayer and the spiritual life AS A NC D DS

I pray chiefly because it makes me feel better AS A NC D DS

I go to church because it helps me to feel close to God..... AS A NC D DS

One reason for me going to church is that it helps to establish me in
the community..... AS A NC D DS

I was driven to ask religious questions by a growing awareness of the
tensions in my world..... AS A NC D DS

Occasionally I compromise my religious beliefs to protect my social and
economic wellbeing AS A NC D DS

I allow almost nothing to prevent me from going to church on Sundays AS A NC D DS

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Part 2

<u>I value my religious doubts and uncertainties</u>	<u>.AS A NC D D</u>
<u>My life experiences have led me to rethink my religious beliefs</u>	<u>.AS A NC D D</u>
<u>My religious beliefs really shape the way I treat other people</u>	<u>.AS A NC D D</u>
<u>Questions are more important to my religious faith than are answers.....</u>	<u>.AS A NC D D</u>
<u>While I believe in my religion, there are more important things in my life</u>	<u>.AS A NC D D</u>
<u>One reason for me praying is that it helps me to gain relief and protection.....</u>	<u>.AS A NC D D</u>
<u>I go to church because it helps me to feel at home in my neighbourhood.....</u>	<u>.AS A NC D D</u>
<u>Religion only became very important for me when I began to ask</u> <u>questions</u>	
<u>about the meaning of my life</u>	<u>.AS A NC D D</u>
<u>While I am a religious person, I do not let religion influence my daily life.....</u>	<u>.AS A NC D D</u>

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Part 2 Mooring licences

Scoring of the NIRO

Extrinsic orientation

Compartmentalization

While I believe in my religion, there are more important things in my life

While I am a religious person, I do not let religion influence my daily life

Occasionally, I compromise my religious beliefs to protect my social and economic well-being

Social support

One reason for me going to church is that it helps to establish me in the community

A key reason for my interest in church is that it is a pleasant social activity

I go to church because it helps me to feel at home in my neighbourhood

Personal support

One reason for me praying is that it helps me to gain relief and protection

What prayer offers me most is comfort when sorrow or misfortune strike

I pray chiefly because it makes me feel better

Alpha

Intrinsic orientation

Integration

My religious beliefs really shape my whole approach to life

I try hard to carry my religion over into all my other dealings in life

My religious beliefs really shape the way I treat other people

Public religion

I allow almost nothing to prevent me from going to church on Sundays

I go to church because it helps me to feel close to God

The church is most important to me as a place to share fellowship with other Christians

Personal religion

I pray at home because it helps me to be aware of God's presence

I often read books about prayer and the spiritual life

I pray chiefly because it deepens my relationship with God

Alpha

Quest orientation

Existentialism

I was driven to ask religious questions by a growing awareness of the tensions in my world

My life experiences have led me to rethink my religious beliefs

Religion only became very important for me when I began to ask questions about the meaning of my life

Self-criticism

I value my religious doubts and uncertainties

For me, doubting is an important part of what it means to be religious

Questions are more important to my religious faith than are answers

Openness to change

As I grow and change, I expect my religion to grow and change as well

I am constantly questioning my religious beliefs

There are many religious issues on which my views are still changing

...

APPENDICES B - CMNI 46

CMNI-46 Scoring Instructions and Measure

Mike C. Parent, Ph.D. Updated: September 9, 2013

Researcher Preamble & Scoring Instructions:

The Conformity to Masculine Norms Inventory-46 (CMNI-46; Parent & Moradi, 2009) is a short form of the Conformity to Masculine Norms Inventory (CMNI; Mahalik, Locke, Diemer, Ludlow, Scott, Gottfried, & Freitas, 2003). Items for both measures are answered on a 4-point Likert-type scale, in accordance with Mahalik et al.'s (2003) conceptualization of masculine gender role conformity. Items reflect Winning, Emotional Control, Risk-Taking, Violence, Power Over Women, Playboy, Self-Reliance, Primacy of Work, and Heterosexual Self- Presentation (formerly Disdain for Homosexuals).

The preamble to the instrument is adapted directly from Mahalik et al.'s (2003) preamble to the CMNI. ——— [Part 2 inserted in Gazette 3 Jul 2009 p. 2702; amended in Gazette 31 Aug 2010 p. 4190-1; 29 Jul 2011 p. 3146; 29 Jun 2012 p. 2961-2; 18 Jun 2013 p. 2308; 20 Jun 2014 p. 2043.]

Part 3 — Authorised user payment

————— *[Heading inserted in Gazette 3 Jul 2009 p. 2702.]*

Item order for the CMNI-46 is consistent with item order for the CMNI.

Scoring:

Prior to scoring, ensure that responses are coded from 0 (strongly disagree) to 3 (strongly agree). The following items need to be reversed:

4, 5, 6, 7, 9, 10, 12, 13, 15, 17, 23, 25, 27, 33, 34, 38, 40, 41

Calculate subscales by summing or averaging scores thusly:

Winning: Emotional Control: Risk-Taking: Violence: Power Over

Women: Playboy: Self-Reliance: Primacy of Work: Heterosexual Self-

Presentation:

1 + 7 + 15 + 22 + 27 + 33 13 + 18 + 25 + 32 + 40 + 45 6 + 8 + 16 +
28 + 35 4 + 9 + 19 + 30 + 34 + 41 20 + 29 + 42 + 44 2 + 12
+ 21 + 36 3 + 10 + 26 + 38 + 43 11 + 23 + 31 + 39 5 + 14
+ 17 + 24 + 37 + 46

Mahalik, J.R., Locke, B., Ludlow, L., Diemer, M., Scott, R.P.J.,

Gottfried, M., & Freitas, G. (2003). Development of the Conformity to

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Masculine Norms Inventory. *Psychology of Men and Masculinity*, 4, 3-25.

Parent, M. C., & Moradi, B. (2009). Confirmatory factor analysis of the Conformity to Masculine Norms Inventory and development of the CMNI-46. *Psychology of Men & Masculinity*, 10, 175-189.

The Conformity to Masculine Norms Inventory-46 (CMNI-46; Parent & Moradi, 2009)

The following pages contain a series of statements about how men might think, feel or behave. The statements are designed to measure attitudes, beliefs, and behaviors associated with both traditional and non-traditional masculine gender roles. Thinking about your own actions, feelings and beliefs, please indicate how much you personally agree or disagree with each statement by circling SD for "Strongly Disagree", D for "Disagree", A for "Agree," or SA for "Strongly agree" to the left of the statement. There are no right or wrong responses to the statements. You should give the responses that most accurately describe your personal actions, feelings and beliefs. It is best if you respond with your first impression when answering.

[Response scale: Strongly Disagree – Disagree – Agree – Strongly Agree]

1 In general, I will do anything to win SD –
D – A – SA

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2 If I could, I would frequently change sexual partners SD –

D – A - SA

3 I hate asking for help SD –

D – A - SA

4 I believe that violence is never justified SD –

D – A - SA

5 Being thought of as gay is not a bad thing SD –

D – A - SA

6 In general, I do not like risky situations SD –

D – A - SA

7 Winning is not my first priority SD –

D – A - SA

8 I enjoy taking risks SD –

D – A - SA

9 I am disgusted by any kind of violence SD –

D – A - SA

10 I ask for help when I need it SD –

D – A - SA

11 My work is the most important part of my life SD –

D – A - SA

12 I would only have sex if I was in a committed relationship SD –

D – A - SA

13 I bring up my feelings when talking to others SD –

D – A - SA

14 I would be furious if someone thought I was gay SD –

D – A - SA

15 I don't mind losing SD –

D – A - SA

16 I take risks SD –

D – A - SA

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17 It would not bother me at all if someone thought I was gay SD –

D – A - SA

18 I never share my feelings SD –

D – A - SA

19 Sometimes violent action is necessary SD –

D – A - SA

20 In general, I control the women in my life SD –

D – A - SA

21 I would feel good if I had many sexual partners SD – D – A -

SA

22 It is important for me to win SD –

D – A - SA

23 I don't like giving all my attention to work SD –

D – A - SA

24 It would be awful if people thought I was gay SD –

D – A - SA

25 I like to talk about my feelings SD –

D – A - SA

26 I never ask for help SD –

D – A - SA

27 More often than not, losing does not bother me SD – D – A -

SA

28 I frequently put myself in risky situations SD –

D – A - SA

29 Women should be subservient to men SD –

D – A - SA

30 I am willing to get into a physical fight if necessary SD –

D – A - SA

31 I feel good when work is my first priority SD –

D – A - SA

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Part 3 Authorised user payment

32 I tend to keep my feelings to myself SD –

D – A - SA

33 Winning is not important to me SD –

D – A - SA

34 Violence is almost never justified SD –

D – A - SA

35 I am happiest when I'm risking danger SD –

D – A - SA

36 It would be enjoyable to date more than one person at a time SD –

D – A - SA

37 I would feel uncomfortable if someone thought I was gay SD –

D – A - SA

38 I am not ashamed to ask for help SD –

D – A - SA

39 Work comes first SD – D – A -

SA

40 I tend to share my feelings SD –

D – A - SA

41 No matter what the situation I would never act violently SD – D – A -
SA

42 Things tend to be better when men are in charge SD –

D – A - SA

43 It bothers me when I have to ask for help SD –

D – A - SA

44 I love it when men are in charge of women SD –

D – A - SA

45 I hate it when people ask me to talk about my feelings SD –

D – A - SA

46 I try to avoid being perceived as gay SD –

D – A - SA

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Part 3 Authorised user payment

APPENDICES C - Demographics sheet

Demographic Questions:

1. Do you regard yourself as a spiritual person?

no, yes - Christian, yes - other.

2. Do you regard yourself as a religious person?

no, yes - Christian, yes - other.

3. Do you have a denominational affiliation (please circle):

No, Baptist, Anglican, Mennonite, Catholic,

Lutheran, other: _____

4. Marital Status: Married, Single, Divorced, Widowed, Common-Law

5. How many Children do you have? 0, 1, 2, 3, 4 +

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Authorised user payment **Part 3**

6. What is your age? Under 18, 18-25, 26-35, 35-50, 50-70, 70+

7. How long have you self-identified as a Christian (in years)? 1-2, 3-5,
6-10, 11-20, 20+

8. How often do you attend Church on average (times per month)? 1, 2,
3+

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Part 3 Authorised user payment

APPENDICES D - Informed Consent



Participant Consent Form

~~\$45.50/m of length of auth vessel~~

~~Annual authorised user~~

~~7.~~

~~payment (r. 31B(3)(a)(ii)~~

~~and 31E(1)(b))~~

You are invited to participate in a research study entitled:

Christian Men and How their Sense of Masculinity is Correlated to How

They Worship

Researcher(s):

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PH: 306.966.6931; FAX: 306.966.7658

Purpose(s) and Objective(s) of the Research:

- To better understand the connection between Christian males’ sense of what is normal masculinity and how this connects to how they worship.

Procedures:

- An introduction of the purpose of the study which includes an explanation of informed consent.
- Handing out of folders with the surveys and demographic sheet inside. Demographics are collected to see if there are differences in the understanding of masculine norms and styles of worship between different denominations, ages, etc...

Rottneest Island Regulations 1988

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- The two surveys are statements; you simply need to indicate to which degree that you agree with the statement or that you do not.
- I leave the room and wait out the door with a box for participants to put folders in when they are done.
- Please feel free to ask any questions regarding the procedures and goals of the study or your role.
- After the thesis is complete, all the data attained will be sent to the original creators of the inventories used.

Potential Risks:

- There are questions in one of the surveys that asks the participant their ideas on sex and violence and how this connects to masculinity. If these topics may make you anxious than feel free to not participate.
- **Risk(s) will be addressed by:**
- You are free to leave at any time, even if the survey is not complete.
- If the survey has brought up uncomfortable topics for you and you wish to seek help, please contact a counselor:

Christian Counseling Services - (306) 244-9890

Potential Benefits:

- There can be some different potential benefits from this study:
 - It can help teachers and counselors in school to better understand their male pupils and patients who may be struggling with their sexuality and/or faith.
- The data may be used to aid churches both attract and support males in the church.
- Will be working with A Roman Catholic, Mennonite, and Baptist Church for the possibility of better intraChristian communication.

Compensation:

- Coffee and donuts will be supplied at the start of the survey.

Confidentiality:

- Confidentiality will be maintained through anonymity. Your name will not be collected and there will be no way to track your responses back to you.

- These surveys are filled out in a group setting. Please help to maintain confidentiality by not saying who else was present or talk about how you answered questions.
- Data will be kept for one year by Dr. Claypool, and shredded after that.

Right to Withdraw:

- Your participation is voluntary and you can answer only those questions that you are comfortable with. You may withdraw from the research project for any reason, at any time without explanation or penalty of any sort.
- Should you wish to withdraw, put your forms in the envelope and drop off at door. All incomplete forms will be shredded.
- Your right to withdraw from the study extends until you hand in your questionnaires. All participation in anonymous, and there will be no way to track your forms once they are handed in.

Follow up:

- To obtain results from the study, please listen to future announcements for when the data will be available.

Questions or Concerns:

- Contact the researcher(s) using the information at the top of page 1;
- This research project has been approved on ethical grounds by the University of Saskatchewan Research Ethics Board. Any questions regarding your rights as a participant may be addressed to that committee through the Research Ethics Office ethics.office@usask.ca (306) 966-2975. Out of town participants may call toll free (888) 966-2975.

Consent

IMPLIED CONSENT FOR SURVEYS

By completing and submitting the questionnaire, **YOUR FREE AND INFORMED CONSENT IS IMPLIED** and indicates that you understand the above conditions of participation in this study.

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APPENDICES E – Notices for Participation in Study

I will be conducting research on what Christian men consider masculinity to be and how this may influence their expression of faith. This will take place after the service and should only take about 15 minutes. All responses will be anonymous and voluntary. Coffee and donuts will be offered. Please see Andrew Herron after the service. Thank you for your support.

APPENDICES F – Participation Poster

Department of Education

University of Saskatchewan



PARTICIPANTS NEEDED FOR

RESEARCH IN A M.ED.: SCHOOL AND COUNSELING

PSYCHOLOGY

I am looking for volunteers to take part in a study of:

**Christian males, their sense of masculinity and how it may affect
their worship.**

As a participant, you would be asked to fill out two short anonymous
questionnaires and a short demographic sheet. All information is
completely anonymous.

I would involve *one session*, after a Sunday service (which will be posted in conjunction with your pastor or priest and posted soon), and should take *only about 20 minutes*.

In appreciation for you time, I will provide coffee and donuts and I will make sure that you have access to final findings of the study.

For more information about this study, or to volunteer for this study,

please contact:

Andrew Herron

College of Education, Masters of School and Counselling Psychology

@ aah546@gmail.com.

This study has been reviewed by, and received approval through, the Research Ethics Office, University of Saskatchewan.



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Rottnest Island Regulations 1988

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APPENDICES G – Ethics



**UNIVERSITY OF
SASKATCHEWAN**

Behavioural Research Ethics Board

Certificate of Approval

PRINCIPAL INVESTIGATOR
Tim Claypool

DEPARTMENT
Educational Psychology and Special Education

BEH#
16-164

INSTITUTION(S) WHERE RESEARCH WILL BE CONDUCTED
Ebenezer Baptist Church

First Mennonite Church

St. Mary's Church

STUDENT RESEARCHER(S)
Andrew Henson

FUNDER(S)
UNFUNDED

TITLE
Christian Men and How Masculine Norm Conformity is Correlated to Their Religiosity

ORIGINAL REVIEW DATE
04 May 2016

APPROVAL ON
07-Jun-2016

APPROVAL OF:
Application for Behavioural Research Ethics
Review
Recruitment Poster
Participant Consent Form
Questionnaires

EXPIRY DATE
06-Jun-2017

Full Board Meeting ☐

Delegated Review ☒

CERTIFICATION

The University of Saskatchewan Behavioural Research Ethics Board has reviewed the above-named research project. The proposal was found to be acceptable on ethical grounds. The principal investigator has the responsibility for any other administrative or regulatory approvals that may pertain to this research project, and for ensuring that the authorized research is carried out according to the conditions outlined in the original protocol submitted for ethics review. This Certificate of Approval is valid for the above time period provided there is no change in experimental protocol or consent process or documents.

Any significant changes to your proposed method, or your consent and recruitment procedures should be reported to the Chair for Research Ethics Board consideration in advance of its implementation.

ONGOING REVIEW REQUIREMENTS

In order to receive annual renewal, a status report must be submitted to the REB Chair for Board consideration within one month prior to the current expiry date each year the study remains open, and upon study completion. Please refer to the following website for further instructions: <http://research.usask.ca/for-researchers/ethics/index.php>

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Part 3 Authorised user payment

*~~_____ [Part 3 inserted in Gazette 3 Jul 2009 p. 2702; amended in
Gazette 4 Dec 2009 p. 4924 5; 31 Aug 2010 p. 4190 1; 29 Jul 2011
p. 3146; 29 Jun 2012 p. 2962; 18 Jun 2013 p. 2308; 20 Jun 2014
p. 2043.]~~*

~~Schedule 8 — Berthing fee for Main Ferry Jetty~~

~~[Heading inserted in Gazette 29 Jun 2004 p. 2547.]~~

~~[r. 7E]~~

Method of calculating annual rate

(based on surveyed passenger carrying capacity for the vessel's highest class of survey)

~~plus \$54.50 per passenger~~

~~Vessels less than 35 m: \$389.00/m x length of vessel~~~~Vessels 35 m and over: \$620.00/m x length of vessel~~

~~Fees for berthing at the Main Ferry Jetty are as follows~~

~~Annual rate:~~ Vessel occupying a berth overnight to be at annual rate.

~~Vessel occupying a berth for a portion of the day to be at 50% of the annual rate.~~

~~Quarterly rate: 30% of the annual rate.~~

Monthly rate: 12% of the annual rate.

Daily rate: ~~1% of the annual rate.~~

[Schedule 8 inserted in Gazette 29 Jun 2004 p. 2547-8; amended in Gazette 8 Aug 2006 p. 2908; 24 Jul 2007 p. 3667; 24 Jun 2008 p. 2912-13; 3 Jul 2009 p. 2703; 31 Aug 2010 p. 4191; 29 Jul 2011 p. 3146; 29 Jun 2012 p. 2962; 18 Jun 2013 p. 2308; 20 Jun 2014 p. 2043.]

Notes

¹—This is a compilation of the *Rottnest Island Regulations 1988* and includes the amendments made by the other written laws referred to in the following table. The table also contains information about any reprint.

Compilation table

Citation	Gazettal	Commencement
<i>Rottnest Island Regulations 1988</i>	30 May 1988 p. 1825–46	30 May 1988 (see r. 2 and <i>Gazette</i> 30 May 1988 p. 1823)
<i>Rottnest Island Amendment Regulations 1990</i> ⁴	9 Nov 1990 p. 5589–91	9 Nov 1990
<i>Rottnest Island Amendment Regulations 1991</i>	14 Jun 1991 p. 2914–15	14 Jun 1991
<i>Rottnest Island Authority Amendment Regulations 1993</i>	29 Oct 1993 p. 5928	29 Oct 1993
<i>Rottnest Island Amendment Regulations (No. 2) 1993</i>	14 Dec 1993 p. 6666–8	14 Dec 1993
<i>Rottnest Island Amendment Regulations 1994</i>	30 Dec 1994 p. 7347–9	30 Dec 1994
<i>Rottnest Island Amendment Regulations 1995</i>	21 Jul 1995 p. 3115–16	21 Jul 1995
<i>Rottnest Island Amendment Regulations 1997</i> ⁵	4 Jul 1997 p. 3510–39 (correction 18 Jul 1997 p. 3782)	4 Jul 1997
Reprint of the <i>Rottnest Island Regulations 1988</i> as at 1 Aug 1997 (includes amendments listed above)		
<i>Rottnest Island Amendment Regulations 1998</i>	19 Jun 1998 p. 3302–3	1 Jul 1998 (see r. 2)
<i>Rottnest Island Amendment Regulations 1999</i>	15 Jun 1999 p. 2574–5	15 Jun 1999
<i>Rottnest Island Amendment Regulations 2000</i>	23 Jun 2000 p. 3211–12	1 Jul 2000 (see r. 2)
<i>Rottnest Island Amendment Regulations 2001</i>	7 Dec 2001 p. 6188–90	7 Dec 2001
<i>Rottnest Island Amendment Regulations 2003</i> ⁶	24 Apr 2003 p. 1271–3	24 Apr 2003
<i>Rottnest Island Amendment Regulations (No. 2) 2003</i>	20 Jun 2003 p. 2251–2	1 Jul 2003 (see r. 2)

Citation	Gazettal	Commencement
<i>Rottnest Island Amendment Regulations (No. 3) 2003</i>	27 Jun 2003 p. 2406-8	1 Sep 2003 (see r. 2)
<i>Rottnest Island Amendment Regulations (No. 2) 2004</i>	29 Jun 2004 p. 2545-8	1 Jul 2004 (see r. 2)
Reprint 2: The Rottnest Island Regulations 1988 as at 14 Jan 2005 (includes amendments listed above)		
<i>Rottnest Island Amendment Regulations 2006</i>	8 Aug 2006 p. 2906-8	8 Aug 2006
<i>Rottnest Island Amendment Regulations 2007</i>	24 Jul 2007 p. 3665-7	r. 1 and 2: 24 Jul 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 25 Jul 2007 (see r. 2(b))
<i>Rottnest Island Amendment Regulations 2008</i>	24 Jun 2008 p. 2911-13	r. 1 and 2: 24 Jun 2008 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jul 2008 (see r. 2(b))
<i>Rottnest Island Amendment Regulations 2009</i>	3 Jul 2009 p. 2700-3	r. 1 and 2: 3 Jul 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 4 Jul 2009 (see r. 2(b)(ii))
Reprint 3: The Rottnest Island Regulations 1988 as at 21 Aug 2009 (includes amendments listed above)		
<i>Rottnest Island Amendment Regulations (No. 2) 2009</i>	4 Dec 2009 p. 4920-6	r. 1 and 2: 4 Dec 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 5 Dec 2009 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 3) 2009</i>	8 Dec 2009 p. 5002-9	r. 1 and 2: 8 Dec 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 9 Dec 2009 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 2) 2010</i>	31 Aug 2010 p. 4189-91	r. 1 and 2: 31 Aug 2010 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Sep 2010 (see r. 2(b)(ii))
<i>Rottnest Island Amendment Regulations 2010</i>	15 Oct 2010 p. 5176-7	r. 1 and 2: 15 Oct 2010 (see r. 2(a)); Regulations other than r. 1 and 2: 16 Oct 2010 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 3) 2010</i>	17 Dec 2010 p. 6359-62	r. 1 and 2: 17 Dec 2010 (see r. 2(a)); Regulations other than r. 1 and 2: 18 Dec 2010 (see r. 2(b))

Rottnest Island Regulations 1988

Citation	Gazettal	Commencement
<i>Rottnest Island Amendment Regulations 2011</i>	4 Mar 2011 p. 701	r. 1 and 2: 4 Mar 2011 (see r. 2(a)); Regulations other than r. 1 and 2: 5 Mar 2011 (see r. 2(b))
Reprint 4: The Rottnest Island Regulations 1988 as at 18 Mar 2011 (includes amendments listed above)		
<i>Rottnest Island Amendment Regulations (No. 2) 2011</i>	29 Jul 2011 p. 3144-6	r. 1 and 2: 29 Jul 2011 (see r. 2(a)); Regulations other than r. 1 and 2: 30 Jul 2011 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 3) 2011</i>	25 Oct 2011 p. 4512-17	r. 1 and 2: 25 Oct 2011 (see r. 2(a)); Regulations other than r. 1 and 2: 26 Oct 2011 (see r. 2(b))
<i>Rottnest Island Amendment Regulations 2012</i>	29 Jun 2012 p. 2960-2	r. 1 and 2: 29 Jun 2012 (see r. 2(a)); Regulations other than r. 1 and 2: 30 Jun 2012 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 2) 2012</i>	4 Jan 2013 p. 22-4	r. 1 and 2: 4 Jan 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 5 Jan 2013 (see r. 2(b))
<i>Rottnest Island Amendment Regulations (No. 2) 2013</i>	18 Jun 2013 p. 2307-8	r. 1 and 2: 18 Jun 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jul 2013 (see r. 2(b))
<i>Rottnest Island Amendment Regulations 2013</i>	24 Jan 2014 p. 113-14	r. 1 and 2: 24 Jan 2014 (see r. 2(a)); Regulations other than r. 1 and 2: 25 Jan 2014 (see r. 2(b))
Reprint 5: The Rottnest Island Regulations 1988 as at 4 Apr 2014 (includes amendments listed above)		
<i>Rottnest Island Amendment Regulations (No. 2) 2014</i>	20 Jun 2014 p. 2041-3	r. 1 and 2: 20 Jun 2014 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jul 2014 (see r. 2(b))
<i>Rottnest Island Amendment Regulations 2014</i>	8 Jan 2015 p. 149-50	r. 1 and 2: 8 Jan 2015 (see r. 2(a)); Regulations other than r. 1 and 2: 27 Apr 2015 (see r. 2(b) and <i>Gazette</i> 17 Apr 2015 p. 1371)

² — Formerly referred to the *Navigable Waters Regulations* the citation of which was changed to the *Navigable Waters Regulations 1958* by the *Navigable Waters*

~~*Amendment Regulations (No. 2) 2005* r. 3. The reference was changed under the *Reprints Act 1984* s. 7(3)(gb).~~

³ ~~Repealed by the *Fish Resources Management Act 1994* s. 265.~~

⁴ ~~Regulations 5, 7 and 18 disallowed on 28 May 1991, see *Gazette* 31 May 1991 p. 2710-11.~~

⁵ ~~The *Rottnest Island Amendment Regulations 1997* r. 5(2) is a transitional provision that is of no further effect.~~

⁶ ~~The *Rottnest Island Amendment Regulations 2003* r. 4(3) is a transitional provision that is of no further effect.~~

Defined terms

Defined terms

*[This is a list of terms defined and the provisions where they are defined.
The list is not part of the law.]*

Defined term	Provision(s)
accommodation	8(7), 10(2)
additional vessel	19
adequate insurance cover	3
aerodrome	63
aircraft	63, 66(2)
anchor	3
annual admission payment	3
approved	3
assault	70(2)
authorised person	68(2)
authorised user	19
authorised vessel	19
beach	37(2)
bicycle	3
Board	75(9)
by law	75(9)
capacity	Sch. 5
certificate of registration	3
collection period	6(1a)
commencement	75(9)
competent operator	13(2)
declare	3
declared	3
emergency vehicle	50(2)
explosive device	59(3a)
fauna	40(3), 59(3)
fish	40(3)
flora	39(2), 41B(1)
hired bicycle	51(2)
Kingstown Barracks Restricted Alcohol Consumption Area	72(1)
length	3
licensed vessel	19
liquid waste	38C(1)
liquor	3
litter	60B(2)
loss	18(1)
mooring	3
mooring area	3
mooring inspection report	19
mooring site	3

Defined terms

mooring site licence	3
mooring site licensee.....	3
nominated vessel	31B(2), 31C(3)
other road users	48(2)
overall length.....	3
owner.....	3
permanent resident	3
permitted area.....	37(2)
previous licensee	30(4)
register.....	3
rental licence	3
rental mooring	3
repealed by laws.....	75(9)
restricted area	36(1)
sandboard	60A(3)
settlement	47(3)
specified	15(6)
structure.....	52(5)
suitable vessel.....	19
sullage	38C(1)
take	39(2)
unlawfully	70(2)
use	3
vehicle	3, 46(2)
vessel.....	3
waiting list.....	19
water catchment area.....	61(3)
waters of the Island	3

